

SOLICITATION, OFFER AND AWARD			1. This Contract Is A Rated Order Under DPAS (15 CFR 700) ➡		Rating DOA6	Page 1	of 96	Pages
2. Contract Number		3. Solicitation Number W15QKN-25-R-0002		4. Type of Solicitation ☐ Sealed Bid (IFB) ☒ Negotiated (RFP)		5. Date Issued 2025MAY15		6. Requisition/Purchase Number SEE SCHEDULE
7. Issued By ARMY CONTRACTING COMMAND - NJ CCNJ-CA PICATINNY ARSENAL, NJ 07806-5000			Code W15QKN	8. Address Offer To (If Other Than Item 7)				

NOTE: In sealed bid solicitations 'offer' and 'offeror' mean 'bid' and 'bidder'.

SOLICITATION

9. Sealed offers in original and _____ copies for furnishing the supplies or services in the Schedule will be received at the place specified in item 8, or if handcarried, in the depository located in _____ until 04:00pm (hour) local time 2025JUL14 (Date).

Caution - Late Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. For Information Call: ➡		A. Name MICHAEL KLINE		B. Telephone (No Collect Calls) Area Code (520) Number 674-1381 Ext.			C. E-mail Address MICHAEL.J.KLINE56.CIV@ARMY.MIL
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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. Discount For Prompt Payment (See Section I, Clause No. 52.232-8) ➡	10 Calendar Days (%)	20 Calendar Days (%)	30 Calendar Days (%)	Calendar Days (%)
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14. Acknowledgment of Amendments (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):

15A. Name and Address of Offeror		Code	Facility	16. Name and Title of Person Authorized to Sign Offer (Type or Print)	
15B. Telephone Number Area Code Number Ext.		15C. Check if Remittance Address is ☐ Different From Above - Enter such Address In Schedule		17. Signature	
				18. Offer Date	

AWARD (To be completed by Government)

19. Accepted As To Items Numbered		20. Amount	21. Accounting And Appropriation	
22. Authority For Using Other Than Full And Open Competition: ☒ 10 U.S.C. 2304(c)(3) ☐ 41 U.S.C. 253(c)()			23. Submit Invoices To Address Shown In (4 copies unless otherwise specified) ➡	
24. Administered By (If other than Item 7) Code			25. Payment Will Be Made By Code	
26. Name of Contracting Officer (Type or Print)			27. United States Of America (Signature of Contracting Officer)	
			28. Award Date	

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

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SECTION A - SUPPLEMENTAL INFORMATION

Buyer Name: MICHAEL KLINE
 Buyer Office Symbol/Telephone Number: CCNJ-CA/(520)674-1381
 Type of Contract 1: Firm Fixed Price
 Kind of Contract: Supply Contracts and Priced Orders

*** End of Narrative A0000 ***

Executive Summary: This executive summary highlights some of the important features of this solicitation. If conflicts exist between this summary and the provisions of the solicitation, the provisions of the solicitation govern.

1. Introduction: The United States (US) Army Contracting Command - New Jersey (ACC-NJ) in support of the Office of the Project Manager Combat Ammunition Systems (PM CAS) has a requirement for the M739A1 Point Detonating/Delay (PD/DLY) Artillery Fuze. The M739A1 PD/DLY Fuze is the primary fuze for 105mm and 155mm bursting artillery projectiles for point detonating or delay fuze functions. The M739A1 PD/DLY Fuze is composed of a one-piece solid aluminum body with a standard 2-inch threaded base. Five modular subassemblies are incorporated as the functional fuze components. The M739A1 PD/DLY Fuze contains an Impact Delay Module (IDM) assembly that provides fuze initiation delay based upon the completion of mechanical actions caused by projectile deceleration. In the delay mode, the fuze will function 3-6 milliseconds after passing through the target. Function occurs when a spring-loaded firing pin is released. The outer surface of the M739A1 PD/DLY Fuze is anodized green to distinguish it from other fuzes in the inventory for Explosive Ordnance Disposal (EOD) purposes.

2. Acquisition Strategy: The contractor shall manufacture and produce the M739A1 PD/DLY Fuze in accordance with the Statement of Work (SOW) within Section C and all Request for Proposal (RFP) requirements. The proposed acquisition strategy will be restricted competition within the US, its outlying areas, and Canada only in accordance with FAR 6.302-3(a)(2)(i). In addition to the M739A1 PD/DLY Fuze, the Fuze Body assembly, Safe and Arm (S&A) Device, Booster for the M739A1, M99 Stab Detonator, M55 Stab Detonator, Explosive Lead, Lead Azide, Polymer-Bonded Explosive (PBXN-5), and High Melting Explosive (HMX) Grade B explosive are also restricted to the US, its outlying areas, and Canada. This acquisition may result in up to two (2) awards, with one award reserved for Small Business, Indefinite Delivery/Indefinite Quantity (ID/IQ) contracts with Firm Fixed Price (FFP) Delivery Orders over five (5) one (1) year ordering periods. However, the Government reserves the right to make a single award if it is determined to be in the best interest of the Government. The anticipated award for this acquisition is Fiscal Year 2026, Quarter Four (1)(FY26Q1).

Best Value Subjective Trade-off procedures in accordance with FAR 15.101-1 will be utilized. The Government will weigh the relative benefits of each proposal and award will be made based on an integrated assessment of the results of the evaluation. In making the integrated assessment of the evaluation results, the Government plans to evaluate Technical, Past Performance, Price, and Small Business Participation factors. For evaluation purposes, the Technical Factor is more important than the Past Performance Factor, the Past Performance Factor is more important than the Price Factor, and the Price Factor is more important than the Small Business Participation Factor. Price will be evaluated but will not be rated with a color or adjectival rating. Additionally, any offeror other than a small business offeror must have an acceptable Small Business Subcontracting Plan to receive an award in accordance with FAR 19.702(a). The basis for award of a contract resulting from this solicitation will be the results of the evaluation factors and subfactors. This process permits trade-offs among cost or price and non-cost factors and allows the Government to accept the proposal other than the lowest price.

3. Pricing Matrix: The Offeror shall submit pricing in the Excel Pricing Matrix provided in Section J as Attachment 0011 for each priced Contract Line-Item Number (CLIN) for all five (5) Ordering Periods, including all First Article Test (FAT), Additional FAT (AFAT), and Specified Quantities, as applicable. The prices shall be based on F.O.B. Origin.

Submission of data in accordance with Contract Data Requirements List (CDRLs), DD Form 1423, is a requirement for the contract but shall be Not Separately Priced (NSP).

4. Disclosure of Unit Price Information: This constitutes notification pursuant to Executive Order 12600, Pre-Disclosure Notification Procedures for Confidential Commercial Information (June 23, 1987), of our intention to release unit prices in response to any request under the Freedom of Information Act, 5 USC 552. Unit price is defined as the contract price for unit or item purchased. We consider any objection to be waived unless the Contracting Officer is notified of your objection to such posting prior to submission of initial proposals.

5. Security Requirements: This solicitation is UNCLASSIFIED. Specifications and drawings for some of the components contain export control data and restrictive distribution markings. Sources in drawings are suggested; however, contractors are still required to meet the requirements of the solicitation. Those specifications and drawings (TDPs) are Distribution Level D. Requests for Distribution Level D TDPs shall be accompanied by a fully executed signed Non-Disclosure Agreement (NDA), DD Form 2345 - Militarily Critical Technical Data Agreement, and an AMSTA-AR 1350 Technical Data Request Questionnaire found in Section J, Attachments 0008, 0009, and 0010, respectively.

The offeror shall not reproduce, duplicate or copy the TDP, or any portion thereof, except to the extent necessary for, and then only in

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connection with the preparation and/or submission of proposals related to this procurement being affected by the United States Government. This also applies to distribution of the TDP to all SUBCONTRACTORS at every level.

Instructions for completing the DD2345 can be found at HYPERLINK "https://www.dla.mil/Working-With-DLA/Forms/DDFormList/udt_94998_param_detail/322209/"https://www.dla.mil/Working-With-DLA/Forms/DDFormList/udt_94998_param_detail/322209/ under Documents. The phone number to coordinate the electronic submission of the DD 2345 is 800-352-3572.

Please download the DD Form 2345 and fill in the following and mail the original completed copy of this form, and a copy of your companys incorporation certificate, or state/provincial business license, or sales tax identification form or any other documentation which verifies the legitimacy of the company to the following address:

U.S./CANADA JOINT CERTIFICATION OFFICE
DEFENSE LOGISTICS INFORMATION SERVICE
FEDERAL CENTER, 74 WASHINGTON AVE.
NORTH BATTLE CREEK, MI USA 49037-3084

Note: If you already have a valid and certified DD Form 2345, submit that accordingly. You do not have to re-register for another DD Form 2345. If a valid and certified DD Form 2345 exists, please submit to:

Jennifer Hughes
ACC-NJ-CA
Email: jennifer.m.hughes56.civ@army.mil

Michael Kline
ACC-NJ-CA
Email: Michael.j.kline56.civ@army.mil

THE CERTIFICATE OF DESTRUCTION (ATTACHMENT 0012 Section J) MUST BE SENT TO THE POINT OF CONTACT FOR THIS SOLICITATION NO LATER THAN 10 DAYS AFTER RECEIPT OF AN UNSUCCESSFUL OFFEROR LETTER OR NO LATER THAN 10 DAYS AFTER THE SOLICITATION CLOSES AND THE VENDOR DECIDES NOT TO SUBMIT A PROPOSAL.

Upon completion, for the purposes which Government Technical Data has been provided, the Contractor is required to destroy all documents, including all reproductions, duplications, or copies thereof as may have been further distributed by the Contractor.

Destruction of this Technical data shall be accomplished by shredding, pulping, burning, or melting any physical copies of the TDP and/or deletion or removal of downloaded TDP files from computer drives and electronic devices, and any copies of those files.

6. Proposal Submission: All proposals are to be submitted in accordance with the instructions in the Solicitation. Award(s) will be made to the offeror(s) whose proposal offers the Best Value to the Government in accordance with Section M of this Solicitation. The Government assumes no liability whatsoever regarding the likelihood that orders will be placed for any particular quantities above the guaranteed minimum amount under the proposed ID/IQ Contract. Clauses and provisions that are applicable to the item are located in the appropriate sections of the solicitation document. In order to have a complete copy of the solicitation, you will need to download the entire solicitation document, inclusive of all applicable sections, and all applicable Attachments and Exhibits.

The Government shall issue the first Delivery Order to satisfy the contract minimum guarantee amount within ten (10) days of the base contract award. Additionally, the Government reserves the right to award quantities in the first Delivery Order that are above and beyond the contract minimum guarantee.

THE PRICE APPLICABLE TO AN INDIVIDUAL ORDER IS THE PRICE FOR THE ORDERING PERIOD IN WHICH THE ORDER IS ISSUED. THE DELIVERY DATE DOES NOT DETERMINE THE ORDERING YEAR.

7. Questions: All questions concerning this RFP procurement, either technical or contractual, must be submitted in writing to the Contracting Officer/Issuing Office.

No direct discussion between the technical representative and a prospective Offeror will be conducted. Questions shall be sent to the following point of contact via email: jennifer.m.hughes56.civ@army.mil and michael.j.kline56.civ@army.mil.

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SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

- B.1 General Information: Award(s) made as a result of this RFP will be five (5) year ID/IQ, FFP contract(s) with 5-one year Ordering Periods from Fiscal Year (FY) 2025-2030. The Government is only obligated to provide a minimum amount of \$1,000,000.00 for all 5 years combined for each contract awarded.
- The maximum contract value is \$712,480,000.00 for all awardees combined. The total contract term shall be 60 months from contract award or when the maximum contract value is reached, whichever comes first.
- B.2 Contract Period Structure: A Ordering Period is defined as:
- Ordering Period 1 is defined as the period of 12 months from the date of contract award; and
- Ordering Period 2 is defined as the period of 12 months from the end of Ordering Period 1; and
- Ordering Period 3 is defined as the period of 12 months from the end of Ordering Period 2; and
- Ordering Period 4 is defined as the period of 12 months from the end of Ordering Period 3; and
- Ordering Period 5 is defined as the period of 12 months from the end of Ordering Period 4.
- Note: The terms "Year" and "Ordering Period" may used interchangeably.
- B.3 Pricing: The Offeror shall fill in FFP for First Article Test (FAT), Additional FAT, and all Production Quantity for each CLIN within the Price Matrix (Attachment 0011), for Ordering Periods 1 through 5, as applicable.
- Submission of data in accordance with the Contract Data Requirements List (CDRL), DD For 1423, is a requirement for the contract but shall not be separately priced. See the section pertaining to pricing in Section L for details.
- B.4 Technical Data Package (TDP): A certified TDP is available and labeled as Distribution D. TDP Attachment is within Section J, Attachment 0001.
- B.5 Initial FAT: The initial FAT is the very first FAT awarded on the contract. This FAT is in accordance with the complete FAT requirements in the solicitation. The U.S. Government (USG) plans to award an initial FAT no more than once per contract for the M739A1 PD/DLY Fuze. Contractor is responsible for conducting First Article Acceptance on subassemblies and critical components (MIL-DTL-32267A, Para 3.1) including Environmental Testing (MIL-DTL-32267A, Table II), which will be conducted by the Government at a Government Facility IAW MIL-DTL-633267A. Contractor shall submit to the Government Test and Inspection Report (DI-NDTI-80809B, Data Item Number A007, as tailored). FAT may be waived, see FAR 52.209-3(h), or modified at the discretion of the Government. Inspection/Acceptance for FAT Report (FATR) Origin/Destination, only.
- B.6 Additional FAT (AFAT): An AFAT is a FAT ordered in accordance with Section J, Attachment 0002 entitled "Contract Quality Addendum Requirements", Paragraphs 7(e) and 8(f). Because this is an Additional FAT, existing processes and existing equipment are expected to be utilized to the maximum extent possible. Existing approved CDRL submissions from the Initial FAT may be utilized provided they are unaffected by any changes. AFAT may be waived, see FAR 52.209-3(h), or modified at the discretion of the Government. Inspection/Acceptance for AFAT Report (AFATR) Origin/Destination, only.
- B.7 CLIN Structure Notification:
- Pricing is based on Freight on Board (F.O.B) Origin. Shipping Transportation Account Code (TAC) for all deliverables will be provided at time of each Delivery Order Award.
 - Delivery destination Department of Defense Address Code (DODAAC) will be updated and is subject to change upon Delivery Order award. Until such time a default DODAAC of W15QKN shall be utilized as a default. No deliveries shall be made to DODAAC W15QKN.
 - For Packaging and Marking specifics, see Section D of this Solicitation.
 - For Inspection and Acceptance specifics, see Section E of this Solicitation. FATR/AFATR is Acceptance Destination, only.
 - For Deliveries and Performance specifics, see Section F of this Solicitation.

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1001	M739A1 PD/DLY FUZE-FAT-ORDERING PERIOD 1 NSN: 1390-01-600-4635 COMMODITY NAME: M739A1 PD/DLY FUZE - FAT CLIN CONTRACT TYPE: Firm Fixed Price Contractor is responsible for conducting First Article Acceptance on subassemblies and critical components (MIL-DTL-32267A, Para 3.1) including Environmental Testing (MIL-DTL-32267A, Table II), which will be conducted by the Government at a Government Facility IAW MIL-DTL-633267A. Contractor shall submit to the Government Test and Inspection Report (DI-NDTI-80809B, Data Item Number A007, as tailored). First Article is due no later than 450 calendar days after Delivery Order award. One Lot consisting of a quantity of 130 M739A1 PD/DLY Fuzes each shall be delivered to: DODAAC: W61P4X U.S. Army Yuma Proving Ground Yuma, AZ 86365 (End of narrative B001) Packaging and Marking Inspection and Acceptance INSPECTION: Origin ACCEPTANCE: Destination Government Approval/Disapproval Days: 60 Deliveries or Performance FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$ _____	\$ _____
1002	M739A1 PD/DLY ADDITIONAL FAT-ORDERING PERIOD 1 NSN: 1390-01-600-4635 COMMODITY NAME: M739A1 PD/DLY FUZE - AFAT CLIN CONTRACT TYPE: Firm Fixed Price			\$ _____	\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	Additional First Article Test (AFAT): An AFAT is a FAT ordered in accordance with Section J, Attachment 0002, Paragraphs 6(e) and 7(f). Because this is an AFAT, existing processes and equipment are expected to be utilized to the maximum extent possible. Existing approved CDRL submissions from the initial FAT may be utilized provided they are unaffected by any changes. (End of narrative B001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination Government Approval/Disapproval Days: 60 <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000				
1003	<u>M739A1 PD/DLY FUZE-PRODUCTION-ORDERING PERIOD 1</u> NSN: 1390-01-600-4635 COMMODITY NAME: M739A1 FUZE PRODUCTION CLIN CONTRACT TYPE: Firm Fixed Price Contractor shall manufacture, inspect, test, and deliver the M739A1 PD/DLY Fuze IAW the M739A1 PD/DLY Fuze Statement of Work (SOW). (End of narrative B001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin			\$ _____	\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2001	<u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000 <u>M739A1 PD/DLY FUZE-ADDITIONAL FAT-ORDERING PERIOD 2</u> NSN: 1390-01-600-4635 COMMODITY NAME: M739A1 PD/DLY FUZE - AFAT CLIN CONTRACT TYPE: Firm Fixed Price Additional First Article Test (AFAT): An AFAT is a FAT ordered in accordance with Section J, Attachment 0002, Paragraphs 6(e) and 7(f). Because this is an AFAT, existing processes and equipment are expected to be utilized to the maximum extent possible. Existing approved CDRL submissions from the initial FAT may be utilized provided they are unaffected by any changes. (End of narrative B001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination Government Approval/Disapproval Days: 60 <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000 <u>M739A1 PD/DLY FUZE-PRODUCTION-ORDERING PERIOD 2</u> NSN: 1390-01-600-4635			\$ _____ \$ _____	\$ _____ \$ _____
2002	<u>M739A1 PD/DLY FUZE-PRODUCTION-ORDERING PERIOD 2</u> NSN: 1390-01-600-4635			\$ _____	\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3001	COMMODITY NAME: M739A1 FUZE PRODUCTION CLIN CONTRACT TYPE: Firm Fixed Price Contractor shall manufacture, inspect, test, and deliver the M739A1 PD/DLY Fuze IAW the M739A1 PD/DLY Fuze Statement of Work (SOW). (End of narrative B001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000 <u>M739A1 PD/DLY FUZE-ADDITIONAL FAT-ORDERING PERIOD 3</u> NSN: 1390-01-600-4635 COMMODITY NAME: M739A1 PD/DLY FUZE - AFAT CLIN CONTRACT TYPE: Firm Fixed Price Additional First Article Test (AFAT): An AFAT is a FAT ordered in accordance with Section J, Attachment 0002, Paragraphs 6(e) and 7(f). Because this is an AFAT, existing processes and equipment are expected to be utilized to the maximum extent possible. Existing approved CDRL submissions from the initial FAT may be utilized provided they are unaffected by any changes. (End of narrative B001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u>			\$ _____	\$ _____

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ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3002	INSPECTION: Origin ACCEPTANCE: Destination Government Approval/Disapproval Days: 60 <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000 <u>M739A1 PD/DLY FUZE-PRODUCTION-ORDERING PERIOD 3</u> NSN: 1390-01-600-4635 COMMODITY NAME: M739A1 FUZE PRODUCTION CLIN CONTRACT TYPE: Firm Fixed Price Contractor shall manufacture, inspect, test, and deliver the M739A1 PD/DLY Fuze IAW the M739A1 PD/DLY Fuze Statement of Work (SOW). (End of narrative B001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$ _____	\$ _____
4001	<u>M739A1 PD/DLY FUZE-ADDITIONAL FAT-ORDERING PERIOD 4</u> NSN: 1390-01-600-4635 COMMODITY NAME: M739A1 PD/DLY FUZE - AFAT CLIN CONTRACT TYPE: Firm Fixed Price			\$ _____	\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	Additional First Article Test (AFAT): An AFAT is a FAT ordered in accordance with Section J, Attachment 0002, Paragraphs 6(e) and 7(f). Because this is an AFAT, existing processes and equipment are expected to be utilized to the maximum extent possible. Existing approved CDRL submissions from the initial FAT may be utilized provided they are unaffected by any changes. (End of narrative B001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination Government Approval/Disapproval Days: 60 <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000				
4002	<u>M739A1 PD/DLY FUZE-PRODUCTION-ORDERING PERIOD 4</u> NSN: 1390-01-600-4635 COMMODITY NAME: M739A1 FUZE PRODUCTION CLIN CONTRACT TYPE: Firm Fixed Price Contractor shall manufacture, inspect, test, and deliver the M739A1 PD/DLY Fuze IAW the M739A1 PD/DLY Fuze Statement of Work (SOW). (End of narrative B001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin			\$ _____	\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
5001	<u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000 <u>M739A1 PD/DLY FUZE-ADDITIOINAL FAT-ORDERING PERIOD 5</u> NSN: 1390-01-600-4635 COMMODITY NAME: M739A1 PD/DLY FUZE - AFAT CLIN CONTRACT TYPE: Firm Fixed Price Additional First Article Test (AFAT): An Additional First Article Test is a FAT ordered in accordance with Section J, Attachment 0002, Paragraphs 6(e) and 7(f). Because this is an Additional FAT, existing processes and equipment are expected to be utilized to the maximum extent possible. Existing approved CDRL submissions from the initial FAT may be utilized provided they are unaffected by any changes. (End of narrative B001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Destination Government Approval/Disapproval Days: 60 <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000 <u>M739A1 PD/DLY FUZE-PRODUCTION-ORDERING PERIOD 5</u>			\$ _____ \$ _____	\$ _____ \$ _____
5002				\$ _____	\$ _____

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ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	NSN: 1390-01-600-4635 COMMODITY NAME: M739A1 FUZE PRODUCTION CLIN CONTRACT TYPE: Firm Fixed Price Contractor shall manufacture, inspect, test, and deliver the M739A1 PD/DLY Fuze IAW the M739A1 PD/DLY Fuze Statement of Work (SOW). (End of narrative B001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL,NJ,07806-5000				
9001	<u>CONTRACT DATA REQUIREMENTS LISTS (CDRLS) A001-A023</u>				
A001	<u>DATA ITEMS - M739A1 PD/DLY FUZE - A001-A023</u> COMMODITY NAME: CDRLS A001-A023 CLIN9001, ELINA001 is Not Seperately Priced (NSP). The CDRLs (DD FORM 1423), A001-A023, associated within this Contract are provided within Section J, Exhibit A. Ship to D0DAAC, W15QKN, under CLIN9001-A001 is a place holder. All CDRLs shall be submitted in accordance with Contract requirements. (End of narrative B001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u>			\$ ** NSP **	\$ ** NSP **

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	INSPECTION: ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000				

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SECTION C - DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

STATEMENT OF WORK FOR PRODUCTION OF M739A1 POINT DETONATING/DELAY (PD/DLY) FUZES FOR ARTILLERY

C.1. SCOPE: This Statement of Work (SOW) defines the contract requirements for the manufacturing, inspection, testing and delivery of M739A1 (PD/DLY) Fuzes.

C.1.1 The contractor shall provide the necessary personnel, facilities and equipment to perform the requirements specified below.

C.1.1.1 The Government may require specific efforts applicable to production design or materiel changes, obsolescence mitigation concepts, malfunction investigations, and product teardowns for the M739A1 PD/DLY Fuze Program to address safety, cost, and performance issues during the contract period of performance. These efforts will be initiated through updates to this SOW or Engineering Change Proposals (ECPs) and reviewed by the contractor prior to incorporation into the contract via contract modification.

C.1.2. BACKGROUND:

C.1.2.1 The M739A1 PD/DLY Fuze is the primary fuze for 105mm and 155mm bursting projectiles for point detonating or delay fuze functions. The M739A1 PD/DLY Fuze is composed of a one-piece solid aluminum body with a standard 2-inch threaded base. Five modular subassemblies are incorporated as the functional fuze components. The M739A1 PD/DLY fuze contains an Impact Delay Module (IDM) assembly that provides fuze initiation delay based upon the completion of mechanical actions caused by projectile deceleration. In the delay mode, the fuze will function 3 6 milliseconds after target impact. There are no explosive components contained within the IDM. The outer surface of the M739A1 PD/DLY fuze is anodized green to distinguish it from other fuzes in the inventory for Explosive Ordnance Disposal (EOD) purposes.

C.2. APPLICABLE DOCUMENTS:

C.2.1. DETAIL SPECIFICATION

MIL-DTL-32267A	Detail Specification Fuze, Point Detonating, M739A1	28 Aug 2017
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C.2.2 DRAWINGS

Drawing 13039093	Combination of Adopted Items for Fuze, PD, M739A1(Mal-assembly feature, pallet change/arm time increase feature, PBXN-5 Lead & Booster)	23 Apr 2012
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C.2.3. MILITARY STANDARDS

MIL-STD-1168C	Ammunition Lot Numbering And Ammunition Data Card	11 Mar 2014
MIL-STD-1171B	Acceptance And Description Sheets (For Propellants and Explosives	31 May 2016
MIL-STD-1916	DOD Preferred Methods For Acceptance of Product	05 Jun 2014

C.2.4 DATA ITEM DESCRIPTIONS (DIDs)

DI-ADMN-81505A	Report, Record of Meeting/Minutes	20 Nov 1995
DI-MGMT-80004A	Management Plan	30 Oct 2006
DI-MISC-80043B	Certification/Data Report	12 Jul 2022
DI-MISC-80043B	Ammunition Data Card	23 Jun 2009
DI-SESS-80255B	Failure Summary & Analysis Report	15 Oct 2019
DI-NDTI-80809B	Test/Inspection Report	24 Jan 1997
DI-SESS-80639E	Engineering Change Proposal	11 Feb 2020
DI-SESS-80640E	Request For Variance (RFV)	11 Feb 2020

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DI-SESS-80642E	Notice of Revision	11 Feb 2020	
DI-SESS-80858D	Suppliers Configuration Management Plan	11 Feb 2020	
DI-SAFT-81563	Accident/Incident Report	02 Jun 1998	
DI-SAFT-80970A	Critical Safety Item, Characteristic and Critical Defect Report	02 Jun 1998	
DI-PACK-81059C	Performance Oriented Packaging Test Report	07 Jan 2023	
DI-MISC-80508B	Technical Report Study/Services	14 Nov 2006	
DI-QCIC-81722	Quality Program Plan	29 Nov 2006	
DI-QCIC-81891	Acceptance Test Report	18 Jan 2013	
DI-STDZ-80000C	Data Item Descriptions (DIDs)	03 Feb 2015	
DI-QCIC-81960	Measurement System Evaluation (MSE)	25 Feb 2014	
DI-MGMT-80934C	Operations Security (OPSEC) Plan	13 Dec 2010	
DI-MGMT-81978	Acceptance Description Sheets (ADS)	14 Jul 2015	
DI-MGMT-81986	Critical Characteristic Control Plan (CCCP)	14 Jul 2015	
DI-MGMT-81996	Critical Plan of Action (CPOA)	08 Sep 2015	
C.2.5. OTHER DOCUMENTS			
MIL- HDBK-781A (Guidance Only) Notice 1	Reliability Test Methods, Plans and Environments for Engineering Development Qualification and Production, Handbook for	30 Jan 2015	
MIL-STD-785B (Guidance Only)	Reliability Program for Systems and Equipment Development and Production	30 Jul 1998	
MIL-STD-3046 (Guidance Only)	Configuration Management	06 Mar 2013	
DOD 5100.76M	Physical Security of Sensitive Conventional Arms, Ammunition and Explosives	17 Apr 2012	
DOD 4145.26M	DOD Contractor's Safety Requirements for Ammunition and Explosives	03 Mar 2008	
DoD DLAH 4105.4 & DA 55-355/DLAR 4500.3	Defense Traffic Management Regulation	Jul 1992	
DA 385-64	Safety, Ammunition and Explosives Safety Program	24 Mar 2011	
4500.9-R	Defense Traffic Management	28 Jun 2016	
ISO 9001	Model for quality Assurance in Production, Installation and Servicing	17 Apr 2001	
CFR-29	Code of Federal Regulations - Labor	01 Jul 2008	
CFR-49	Code of Federal Regulations	19 Jul 2016	

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SAE EIA-649-1 Configuration Management Requirements
(Guidance Only) For Defense Contracts 20 Nov 2014

C.3 BASIC REQUIREMENTS:

C.3.1 The Contractor shall fabricate M739A1 PD/DLY Fuzes IAW Drawing 13039093 and MIL-DTL-32267A, inclusive of all approved Engineering Change Proposals (ECPs) and deliver in accordance with the delivery schedule in Section F. The Contractor shall set up the necessary facilities and provide Production, Engineering, and Quality Assurance/Reliability personnel to actively participate in the facility/production plan. These efforts shall include, but not be limited to, identifying quality control points, inspection stations, process control or statistical process control, special screening or test required.

C.3.1.1 The contractor shall adhere to concurrent engineering practices and hence, partake in a Government chaired Integrated Product Team (IPT). The IPT shall monitor the progress of the program, evaluate all data required to be submitted by the contractor, approve all TDP changes, and provide recommendations to reach consensus solutions to issues as they arise to encourage efficiency towards meeting the programs objectives. The contractor remains responsible for the M739A1 PD/DLY Fuze production in accordance with the requirements of the contract.

C.3.2 Delivery requirements for the fuzes produced will be detailed in Section F of this contract.

C.3.3 The Contractor shall establish a supplier network that will ensure timely delivery of material and parts throughout production to meet the M739A1 PD/DLY Fuze requirements. The contractor shall maintain control of the quality of all suppliers throughout production. The control techniques shall be defined but not limited to, incoming inspection, source inspection, and monitoring vendor selection, evaluation, and rating techniques. The contractor must inform potential suppliers that the Government reserves the right to inspect their facilities and processes.

C.3.4 The M739A1 PD/DLY Fuze shall be in accordance with the requirements specified in MIL-DTL-32267A inclusive of all approved Engineering Changes (ECPs).

C.3.5 The Contractor shall have the following components manufactured within the United States and Canada: the Fuze Body assembly, Safe and Arm (S&A) Device, Booster for the M739A1, M99 Stab Detonator, M55 Stab Detonator, Explosive Lead, Lead Azide, Polymer-Bonded Explosive (PBXN-5) and High Melting Explosive (HMX) Grade B explosive. The Contractor is required to deliver to the Government completed fuze assemblies (boostered).

C.3.6 Quality Management System: The Contractor shall implement, maintain and submit to the Government upon request, the Quality Management System (QMS) that is certified or equivalent to ISO:9001:2015. The Contractor shall submit their QMS certification in accordance with Contract Data Requirements List (CDRL), DD Form 1423 (DI-QCIC-81891), CDRL Number A001. The Contractors QMS shall include a Quality Program Plan (QPP) for the items under this contract. The QPP shall include but not limited to sections covering the Contractors and Subcontractors Quality Systems, Calibration System, Product Traceability, Lot Control, Verification of Purchased Product, Inspection/Test Plan, Acceptance Inspection Equipment (AIE), Automated Acceptance Inspection Equipment (AAIE), Process Control Documentation (PCD), Subcontractor and Vendor Audits, Physical Configuration Audits (PCA), First Article Acceptance Test (FAAT), Test Incident Reports (TIR), and Rework Procedures. In addition, the Contractor shall document all processes and procedures for control of non-conforming material generated or created throughout this contract within the QPP. The Contractor shall submit to the Government upon request, the Quality Program Plan (QPP) in accordance with DD Form 1423 (DI-QCIC-81722), CDRL A002. The Contractor shall maintain the QMS and QPP in a central location at the production facilities. The Contractor shall provide the Government access to the established central location for the QMS and QPP. The Contractor shall not implement changes to their established QPP without notification to and acceptance by the Contracting Officer.

C.3.6.1 The QMS shall encompass the following requirements as a minimum:

- 1) The plan shall identify all quality assurance tasks required for production.
- 2) The plan shall detail by specific task, the organization performing quality functions and interface with other organizations.
- 3) A brief description of each task shall be included in the plan and if it is not solely a quality function, the quality organizations participating in the control over the task shall be delineated.
- 4) The plan shall identify appropriate actions to be taken or data to be generated as a result of quality task milestone completion.
- 5) The plan shall include as a minimum all tasks specifically identified in this statement of work.
- 6) The plan shall specify specific samples and intervals for verifying processes for the fabrication of components, sub-assemblies, and assemblies.

C.3.6.2 Annual Quality Management System (QMS) Audits: At any time during this contract effort, the Government reserves the right to

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independently audit or examine the Contractors and any sub-Contractors QMS, QPP, Quality Records, and Inspection Records for compliance to all contractual requirements. The Contractor shall place the necessary provisions in all Subcontractor/vendor purchase orders/ contracts to grant the Government access to perform these audits. The Contractor shall provide personnel and facilities to support the above audits.

C.3.6.3 The Contractor shall develop and maintain in their QMS and QPP a plan for quality system audits (including vendor/suppliers) to verify compliance to contract requirements. The plan shall include an audit schedule and the provisions for the Government to participate as part of the audit team.

C.3.7 All materials that are specified in MIL-DTL-32267A shall be certified by the supplier. The certifications shall be submitted in the report (DI-MISC-82386, CDRL A003).

C.3.8 Government Furnished Equipment/Material (GFE/GFM): GFM will not be supplied for use on this contract.

ri259C.3.9 Ammunition Data Cards shall be prepared for all production items IAW MIL-STD-1168C and DI-MISC-80043B (CDRL A004) and shall follow the format required by the worldwide web application identified as WARP or Worldwide Ammunition-data Repository Program at <https://mhp.redstone.army.mil/> . Prior to gaining access to WARP, contractor/facility personnel involved in the preparation of ammunition data cards shall obtain a users name and password for the Army Electronic Production Support (AEPS) network. Detailed requirements for obtaining and using a manufacturers identification symbol, which is an integral component of the ammunition lot number, can be found in MIL-HDBK-1461A. Lot numbering shall be IAW MIL-STD-1168C.

C.3.10 Measurement System Evaluation (MSE): The contractor shall establish and maintain a documented measurement evaluation system for the identification and approval of Acceptance Inspection Equipment (AIE) / Automated Acceptance Inspection Equipment (AAIE) to include the calibration and verification of inspection equipment (i.e., calibration, validation, non-destructive testing, and standards) as necessary to meet contract requirements. Approved AIE/AAIE, in accordance with this requirement, shall be utilized for all hardware inspection and acceptance. The Government reserves the right to disapprove, at any time during the performance of this requirement, the use of any AIE/AAIE that is not meeting the requirements of the approved documentation (i.e., calibration, validation, non-destructive testing, standards) (DI-QCIC-81960, CDRL A005).

C.3.11 Failure Summary and Analysis Report. Contractor shall submit a Failure Summary and Analysis Report (DI-SESS-80255B CDRL A006, as tailored) that is acceptable to the government (see MIL-HDBK-781A, Para 4.6 and MIL-STD-785B (Task 104) for additional guidance.

C.3.12 First Article Acceptance Testing. The Contractor is responsible for conducting First Article Acceptance Test on subassemblies and critical components (MIL-DTL-32267A, Para 3.1) including Environmental Testing (MIL-DTL-32267A Para. 4.2), except for Ballistic Lot Acceptance gun firings (MIL-DTL-32267A, Table II,) which will be conducted by the Government at a Government Facility in accordance with MIL-DTL-32267A. Contractor shall submit to the Government Test and Inspection Report (FAT) (DI-NDTI-80809B, CDRL A007, as tailored).

C.3.13 Lot Acceptance Test (LAT). The Contractor is responsible for conducting Lot Acceptance Testing (MIL-DTL-32267A Para. 3.2), including Environmental Testing (MIL-DTL-32267A, Para. 4.3), except for Ballistic Lot Acceptance gun firings (MIL-DTL-32267A, Table II and Table III), which will be conducted by the Government at a Government Facility in accordance with (MIL-DTL-32267A). The contractor shall submit to the Government Test and Inspection Report (LAT) (DI-NDTI-80809B) CDRL A008) prior to final shipment of the Lot.

C.3.14 Configuration Management Plan. The contractor shall submit a Configuration Management Plan per DI-SESS-80858D (CDRL A009). For additional guidance see MIL-STD-3046.

C.3.15 Statistical Process Control (SPC): The contractor shall submit a General and Detailed Statistical Process Control Plan in accordance with the characteristics listed below (DI-MGMT-80004A, CDRL A010, as tailored). The contractor may propose alternate characteristics to conduct SPC on.

SPC Characteristic List

Drawing Number	Title	Spec Characteristic	Characteristic Description
12973181	Spinlock	4.4.1.33 Major 101	Weight
9258634	Setback Pin	4.4.1.44 Major 102	Weight
9258620	S&A Retainer	4.4.1.46 Major 103	Height of spinlock slots
9258655	Escape Wheel and pinion assembly	4.4.1.37 Major 106	Thickness of escape wheel
11720309	Pallet	4.4.1.39 Major 101	Profile of engagement surface (2 Places)
3258636	Setback Pin Spring	4.4.1.43 Major 101	Spring Rate
11836270	Impact Delay Module	4.4.1.73 Major 106	Alternative Sequential Drop Test

C.3.16 Critical Characteristic Control Plan The contractor shall submit a CCCP in accordance with DI-MGMT-81986 (CDRL A011).

C.3.16.1 CRITICAL CHARACTERISTICS. The contractor shall follow the critical characteristic clauses of this contract, and in accordance with the Critical Safety Item, Characteristic and Critical Defect Report (DI-SAFT-80970A, CDRL A012).

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C.3.17 Critical Plan of Action The contractor shall submit a CPOA in accordance with DI-MGMT-81996 (CDRL A013).

C.3.18 Acceptance and Description Sheets (For Propellants and Explosives) - The contractor shall submit an acceptance and description sheet per MIL-STD-1171B in accordance with DI-MGMT-81978 (CDRL A014).

C.3.19 OPERATIONS SECURITY (OPSEC) STANDARD OPERATING PROCEDURE PLAN.

C.3.19.1 OPSEC Plan and Training: The contractor shall develop an OPSEC Standard Operating Procedure (SOP)/Plan within 90 days of contract award, to be reviewed and approved by the responsible Government OPSEC officer, per Army Regulation 530-1, Operations Security. This SOP/Plan will include the governments critical information, why it needs to be protected, where it is located, who is responsible, and how to protect it. In addition, the contractor shall identify an individual who will be an OPSEC Coordinator. The contractor will ensure that this individual becomes OPSEC Level II certified per Army Regulation 530-1. Website:

<http://cdse.edu/catalog/elearning/GS130.html> Per AR 530-1, Operations Security, new contractor employees must complete Level I OPSEC training within 30 calendar days of their reporting for duty. All contractor employees must complete annual OPSEC awareness training. (DI-MGMT-80934C, CDRL A015).

- CUI pertaining to Information Systems/Networks: Contractor will need to receive, process, store and/or generate CUI on contractor-owned Information Systems and networks (DFARS Clause 252.204-7012 applies).

- CTI and/or DoD Critical Program Technology (Applicable standard language is outlined in ASA(ALT) Signed Memorandum Implementation of Enhanced Security Protections for Contractor Information Systems, 24Feb20): The language in the Signed Memo shall be included in the SOW/PWS that contain DFARS Clause 252.204-7012, when the contract or order: (1) Involves CTI, as described in references DoDI 5230.24 and DoDI 3200.12; or (2) Is identified in the DoD Critical Program and Technology list as directed by Section 1049 of the National Defense Authorization Act of Fiscal year 2019.

C.3.19.2 Information Assurance/ Cybersecurity: Safeguarding Covered Defense Information and Cyber Incident Reporting. The Contractor shall use the following to supplement Defense Federal Acquisition Regulation Supplement (DFARS) Clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting. System Security Plan and Plans of Action and Milestones (SSP/POAM) Reviews:

(a) Within thirty (30) days of contract award, unless otherwise notified by the Government, the Contractor shall make its System Security Plan(s) (SSP(s)) for its covered contractor information system(s) available for review by the Government at the Contractor's facility. The SSP(s) shall describe how the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 security requirements are implemented as required by Defense Federal Acquisition Regulation Supplement (DFARS) clause 252.204-7012, which is included in this contract, and identify all applicable Commercial and Government Entity Code codes affected. The Contractor shall fully cooperate in the Government's review of the SSPs at the Contractor's facility.

(b) If the Government determines that the SSP(s) does not adequately describe how the NIST SP 800-171 security requirements are implemented, then the Government shall notify the Contractor of each identified deficiency. The Contractor shall correct any identified deficiencies within thirty (30) days of notification by the Government. The contracting officer may provide for a correction period longer than thirty (30) days and, in such a case, may require the Contractor to submit a Plan of Action and Milestones (POAM) for the correction of the identified deficiencies. The Contractor shall immediately notify the contracting officer of any failure or anticipated failure to meet a milestone in such a POAM.

(c) Upon conclusion of the correction period, the Government may conduct a follow-on review of the SSP(s) at the Contractor's facilities. The Government may continue to conduct follow-on reviews until the Government determines that the Contractor has corrected all identified deficiencies in the SSP(s).

(d) The Government may, in its sole discretion or in response to a cyber incident, conduct subsequent reviews at the Contractor's site to verify the information in the SSP(s). The Government may conduct reviews at any time upon thirty (30) days' notice to the Contractor.

C.3.19.3 Compliance to NIST SP 800-171: The Contractor shall fully implement the Controlled Unclassified Information (CUI) Security Requirements (Requirements) in NIST SP 800-171 in effect at the time the solicitation is issued or as authorized by the Contracting Officer, or establish a SSP(s) and POAMs that varies from NIST SP 800-171 only in accordance with DFARS clause 252.204-7012(b)(2), for all covered contractor information systems affecting this contract. Notwithstanding the allowance for such variation, the Contractor shall identify in any SSP and POAM their plans to implement the following, at a minimum:

(1) Multi-factor authentication. This means that multi-factor authentication is required for all users, privileged and unprivileged accounts that log into a network. In other words, any system that is not standalone should be required to utilize acceptable multi-factor authentication. For legacy systems and systems that cannot support this requirement, a combination of physical and logical protections acceptable to the Government may be substituted;

(2) Least privilege and associated requirements, and identify practices that the Contractor implements to restrict the unnecessary sharing with, or flow of, covered defense information to its subcontractors, suppliers, or vendors based on need-to-know principles;

(3) Monitoring and control remote access sessions Require monitoring and controlling of remote access sessions and include mechanisms to

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audit the sessions and methods;

(4) Audit user privileges on at least an annual basis;

(5) Federal Information Processing Standards (FIPS) 140-2 validated cryptology or implementation of National Security Agency- or NIST- approved algorithms (i.e., FIPS 140-2 Annex A: Advanced Encryption Standard (AES) Or Triple Data Encryption Standard (DES) or compensating controls as documented in a SSP and POAM;

(6) Protect the confidentiality of CUI at rest or provide a POAM for implementation which can be evaluated by the Government Program Manager for risk to the program;

(7) Encrypt CUI on mobile devices or provide a plan of action for implementation which can be evaluated by the Government Program Manager for risk to the program.

C.3.19.4 Cyber Incident Response: The Contractor shall, within fifteen (15) days of discovering the cyber incident (inclusive of the 72-hour reporting period in DFARS clause 252.204-7012), deliver all data used in performance of the contract that the Contractor determines is impacted by the incident and begin assessment of potential warfighter/program impact. Incident data shall be delivered in accordance with the Department of Defense Cyber Crimes Center (DC3) Instructions for Submitting Media available at: https://www.acq.osd.mil/dpap/dars/pgi/pgi_pdf/r20230301/PGI204_73.pdf. In delivery of the incident data, the Contractor shall, to the extent practical, remove contractor-owned information from Government covered defense information. If the Contractor subsequently identifies any such data not previously delivered to DC3, then the Contractor shall immediately notify the contracting officer in writing and shall deliver the incident data within ten (10) days of identification. In such a case, the Contractor may request a delivery date later than ten (10) days after identification. The contracting officer will approve or disapprove the request after coordination with DC3.

C.3.19.5 Army Counterintelligence (CI) Outreach: The Contractor shall engage, whenever practicable, with Army CI industry outreach efforts and consider recommendations for hardening of covered contractor information systems affecting Army programs and technologies; and make Contractor personnel available for threat briefings specific to foreign intelligence threats to Army programs and technologies.

C.3.19.6 Army CI/Industry Monitoring: In the event of a cyber-incident or at any time the Government has indication of a vulnerability or potential vulnerability, the Contractor shall cooperate with the Army CI, which may include cooperation related to: threat indicators; pre-determined incident information derived from the Contractor's infrastructure systems; and the continuous provision of all Contractor, subcontractor, or vendor logs that show network activity, including any additional logs the Contractor, subcontractor or vendor agrees to initiate as a result of the cyber incident or notice of actual or potential vulnerability. If the Government determines that the collection of all logs does not adequately protect its interests, the Contractor will coordinate with Army CI to implement additional measures, which may include allowing the installation of an appropriate network device that is owned and maintained by the Army CI, on the Contractor's information systems or information technology assets. The specific details (e.g., type of device, type of data gathered, monitoring period) regarding the installation of an Army CI network device shall be the subject of a separate agreement negotiated between Army CI and the Contractor. In the alternative, the Contractor may install network sensor capabilities or a network monitoring service, either of which must be reviewed for acceptability by Army CI. Use of this alternative approach shall also be the subject of a separate agreement negotiated between Army CI and the Contractor. In all cases, the collection or provision of data and any activities associated with this statement of work shall be in accordance with federal, state, and non-US law.

C.3.19.7 Security/Controlled Unclassified Information (CUI): CUI is Government information to which access or distribution limitations have been applied in accordance with applicable national laws, regulations or government-wide policies. Contractor employees that will require access to CUI will follow all DoD (DoDI 5200.48) and Army policies regarding access to CUI, and the handling, storage, transmission, and destruction of CUI. Contractor employees are required to complete initial CUI training (available at <https://securityawareness.usalearning.gov/cui/index.html>) within 30 days of start of performance on the contract, and then annually thereafter. CUI may be transmitted electronically (e.g., data, website, or e-mail), via approved secure communications systems or systems utilizing other protective measures such as Public Key Infrastructure or transport layer security (e.g., https). Secure file transfer tools, such as the DoD Safe Access File Exchange (SAFE) website (<https://safe.apps.mil/>), should be utilized.

C.4 CONFIGURATION MANAGEMENT

C.4.1 The contractor shall work with the IPT in updating designs within TDP P24C27to include all changes under this contract. The IPT shall monitor the progress of the program, evaluate all data required to be submitted by the contractor, approve all TDP changes, and provide recommendations to encourage efficiency towards meeting the programs objectives.

C.4.1.1 The contractor shall maintain a Configuration Management (CM) Program and refer to respective appendices of SAE EIA-649-1 which may be used as guidance. The contractor shall obtain concurrence from the IPT on the methodology and strategy for conducting the CM Program. The CM Program shall address all aspects of the contract effort, which ultimately lead to establishment, deviation or modification of any item of the Technical Data Packages.

C.4.1.2 Once the IPT has formally approved the changes to the TDP, the contractor shall prepare and submit change documentation, i.e., Engineering Change Proposals (ECPs), (DI-SESS-80639E, CDRL A016) Request for Variance (RFVs), (DI-SESS-80640E) CDRL A017, and Notice of

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Revision (NORs) (DI-SESS-80642E CDRL A018). The contracting officer will provide disposition of all such submissions. The contractor shall provide a record by drawing and revision level, specification and revision level of each component, subassembly and assembly used in any hardware builds. The record shall include, with each applicable item, any nonconformance to drawing or specification requirements; ISO 9001-2015 (or equivalent) may be used as reference. Waivers and Variance for non-conforming material shall include the revision level of the document in effect.

C.4.1.2.1 Configuration Audit: At the option of the Government, the Integrated Product Team (IPT) may conduct a Physical Configuration Audit (PCA) assessing the conformance of the built hardware to the Technical Data Packages. The Contractor may use EIA-649-1A paragraph 3.5.3 as a reference on the conduct of the audit. The Contractor shall be responsible for the performance of inspections and tests determined necessary by the Government to demonstrate conformance with the Technical Data Packages. The Contractor shall provide the Government with advanced notification and schedule of all activities while conducting Configuration Audit. The Contractor shall submit the data to the Government in accordance DD Form 1423 (DI-STDZ-80000C), CDRL A019. The audit shall consider materials, components, subassemblies and complete assemblies. The audit is conducted to establish that the final Technical Data Packages accurately, adequately and completely expresses the design and manufacturing details to the lowest level, to permit complete traceability and to ensure that the total system has been reviewed.

C.5 SAFETY

C.5.1 U.S. Army Accident/Incident Report. The Contractor shall report immediately any major accident/incident (including fire) resulting in anyone or more of the following; causing one or more fatalities, one or more disabling injuries, damage to government property exceeding \$10,000; affecting program planning or production schedules; degrading the safety of the equipment under contract such that personnel injury or property damage may be involved; identifying a potential hazard requiring corrective action. The Contractor shall prepare the report. (DI-SAFT-81563), CDRL A020.

C.5.2 Hazardous Component Safety Data Statements (HCSDS) are applicable to this SOW and are provided in Section J.

C.5.3 All activities must be in compliance with Federal, State, local and Army Environmental laws and regulations.

C.5.4 HAZARD CLASSIFICATION. The contractor shall obtain a hazard classification from the Department of Transportation prior to shipment of any energetic material ammunition and explosives. The contractor shall provide hazard classification test data report when applicable. (DI-MISC-80508B, CDRL A021).

C.5.5 The contractor shall not use Class I or Class II Ozone Depleting Chemicals in the execution of the contract.

C.6. PERFORMANCE ORIENTED PACKAGING (POP). The contractor shall provide POP information for the M739A1 PD/DLY Fuze (DI-PACK-81059C). Prior to shipment, the contractor shall make sure the container has been tested by a Government approved Performance Oriented Packaging (POP) Test Laboratory for compliance with POP requirements in accordance with Title 49 Code of Federal Regulations. POP marking shall not be applied to the container until verified by the Government. The contractor shall submit a POP test report (DI-PACK-81059C, CDRL A022) following the test.

C.7 PRODUCTION OF LOT ACCEPTANCE TESTING (Government Facility)

C.7.1 A Production lot acceptance test is required to be submitted by the contractor from each production lot tendered to the government for acceptance per MIL-DTL-32267A.

C.7.2 The production Lot Acceptance Test (LAT) sample shall consist of (see SOW C.3.13).

C.7.3 The production lot acceptance test sample units shall be randomly selected from the entire lot by in the presence of the Government Quality Assurance Representative (QAR). Prior to selection of the production lot acceptance test sample units, the lot shall have been inspected to, and shall meet all requirements of the contract. Unless authorized by the Contracting Officer, a test sample shall not be submitted from a lot, which is or has been rejected for nonconformance to the detailed requirements of the contract, the specification(s) and/or the drawing(s).

C.7.4 The Production lot acceptance test sample (including, if applicable, basic issue items and/or repair parts) shall be packaged and packed in accordance with the contract; if packaging and packing requirements are not specified in the contract, the production lot acceptance test sample shall be packaged and packed in accordance with best commercial practices. The production lot acceptance test sample shall be appropriately marked, to include the drawing/part number, the contract number, the name of the contractor and FOR PRODUCTION LOT ACCEPTANCE TESTING. The production lot acceptance test sample shall be accompanied by a DD Form 1222, Request For and Results of Test, appropriately completed by the Government QAR. A copy of the results of the contractor's examination and/or test shall be attached to the DD form 1222. Simultaneous with shipment of the production lot acceptance test samples, a copy of the DD Form 1222 (including attached documentation) shall be submitted to FCDD-ACE-QMA, Attn: Michael Fan.

C.7.5 The production lot acceptance test sample shall be shipped Free On Board (FOB) Destination to the location designated below unless transportation protective service and/or transportation protective service and/or transportation security is required; the test sample shall be shipped FOB Origin on a Government Bill of Landing (GBL). Shipping Destination: YUMA PROVING GROUND (YPG) (See Section F for

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Details)

C.7.5.1 The production lot acceptance test sample shall be examined and tested by the Government for and/or in accordance with (SOW Para. C.3.13).

C.7.6 Within 45 days after receipt of the production lot acceptance test sample at the government facility, the Contracting Officer shall provide written notification to the Contractor as to the approval, disapproval or conditional approval of the production lot acceptance test sample. Unless Authorized by the Contracting Officer, the lot from which the production lot acceptance test sample is drawn shall not be shipped from the Contractor's facility, nor shall final acceptance of the lot to be made until such time as notification has been provided by the Contracting Officer that the production lot acceptance test samples have been approved or conditionally approved.

C.7.7 If the production lot acceptance test sample fails to meet any applicable contractual requirement, the lot from which the test sample was drawn shall be considered rejected. The contractor shall take immediate corrective action, both to correct the deficiency/nonconformance (if applicable) and to prevent recurrence of such deficiency/nonconformance and shall submit an additional production lot acceptance test sample (from the reworked lot or from a new lot as applicable). Such corrective action shall be taken by the contractor at no increase in contract price and shall apply to all items (including, if applicable, basic items and/or repair parts) either in process or final assembly which have been produced (or are in production) since the last successful production lot acceptance test. Any and all costs associated with testing the additional production lot acceptance test sample shall be borne by the contractor.

C.7.8 The Contractor is responsible for conducting Contractor Laboratory Lot Acceptance Testing on subassemblies and critical components with the exception of Government Conducted Ballistic Lot Acceptance Tests outlined in MIL-DTL-32267A.

C.8 ENVIRONMENTAL COMPLIANCE - All activities must comply with Federal, State, and Local Environmental Laws and Regulations, Executive Orders, Treaties and Agreements.

C.9 The contractor shall host quarterly Program Management Review (PMR): starting six months after contract award. This meeting shall include a discussion of the Integrated Master Schedule (IMS) and Integrated Master Program Plan (IMPP). The contractor and the government shall mutually derive review agenda provided by the contractor no later than 5 working days prior to each review. The contractor is responsible for providing PMR and Post Award meeting minutes in accordance with DI-ADMN-81250C (CDRL A023).

C.10 Demilitarization: At the conclusion of this contract, all excess or unaccepted fuzes shall be destroyed, such that they are no longer usable or reclaimable for their original purposes. Once material is destroyed, it will be disposed of only as scrap.

C.11 PHYSICAL SECURITY STANDARDS FOR SENSITIVE ITEMS

1. When the contract contains sensitive conventional Arms, Ammunition and Explosives (AA&E) the contractor will be required to provide proper storage and accountability. These standards are set forth in Department of Defense (DOD) 5100.76M, entitled "Physical Security of Sensitive Conventional Arms, Ammunition and Explosives".

2. When the contract requires transportation of Sensitive Conventional AA&E, the standards are set forth in Department of the Army (DA) 55-355/DLAR 4500.3 "Defense Traffic Management Regulation", and (DOD) DLAH 4105.4

3. The following is the address to obtain the above publications:

National Technical Information Service
5301 Shawnee Road
Alexandria, VA 22312
Website: <https://www.ntis.gov/index.xhtml>
Directives Division Website: <https://www.esd.whs.mil/DD/>

*** END OF NARRATIVE C0001 ***

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SECTION D - PACKAGING AND MARKING

The following packaging instructions are applicable to the M739A1 PD/DLY Fuze:

D.1 Commercial packaging requirement shall NOT apply to this procurement.

D.2 Detailed Requirements shall apply to this procurement:

Detailed Preservation and Packaging Requirements: In accordance with (IAW) 8861213 and 8864492, Preservation and Packaging shall also be in compliance with Code of Federal Regulations (CFR) Title 49, Part 100-199 and also must include all packaging related sub-assemblies. To help maintain the maximum of 9% moisture contents of packaging materials, it is advisable pack-out be conducted in a humidity controlled room temperature of 72 degrees Fahrenheit but not less than 67 degrees Fahrenheit (or equivalent). Prior to shipment, the contractors shall make sure the outer shipping container has been tested by a DOT certified test laboratory for compliance with the Performance Oriented Packaging (POP) requirements in accordance with 49 Code of Federal Regulations. The POP test report generated by test facility shall be in accordance with DI-PACK-81509 and shall be submitted to the Government for authentication. The POP marking with DoD logo shall not be applied to the outer container until verified by the Government.

(a) Detailed Packing Requirements: Metal Ammunition container IAW 8864492 where two metal containers are packed per wirebound box IAW 8861213

(b) Marking drawings, SPIs, detailed marking instructions: 8861213, BOX, WIREBOUND, PACKING AMMUNITION FOR ARTILLERY TYPE FUZES

(c) Bar Code Requirements: Bar Codes/AEPPL per packaging drawings, SPI, detailed packaging instructions

(d) Detailed Unitization Requirements: Unitization Drawing: IAW 19-48-4116/156-UNITIZATION PROCEDURES FOR BOXED AMMUNITION AND COMPONENTS ON 4-WAY ENTRY PALLETS AND COMPONENTS ON 4-WAY ENTRY PALLETS

D.3 Applicable Exception(s)/Special Notes to Packaging Requirements:

Wood Packaging Materials: Heat Treatment and Marking of Wood Packaging Materials: In accordance with the requirements of International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). WPM is defined as wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frames, and cleats. Packaging materials exempt from the requirements are materials that have undergone a manufacturing process such as corrugated fiberboard, plywood, particleboard, veneer and oriented strand board. All WPM shall be constructed from Heat Treated (HT to 56 degrees Centigrade for 30 minutes) lumber and certified by an accredited agency recognized by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: <http://www.alsc.org>). All materials must include certification markings in accordance with ALSC standards and be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides and ends of the pallet and be contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ALSC approved DUNNAGE stamp. Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment of materials at the point of entry.

D.4 Performance-Oriented Packaging: Prior to marking and shipment, the contractor shall ensure that the container has been tested by a U.S. Government approved Performance-oriented Packaging (POP) test laboratory in compliance with POP requirements in accordance with Title 49, Code of Federal Regulations. The test will be conducted to a weight of at least 10% greater than the gross package (pack out) weight or to the specified POP certification weight listed on the corresponding Packing and Marking drawing(s), whichever is greater:

(a) The POP test report shall be prepared by the POP test laboratory in accordance with DI-PACK-81059 (Data Item Description) IAW Part 178, CFR 49 with the appropriate POP marking of the test laboratory.

(b) The report must be submitted to the U.S. Government for approval as directed in the contract data requirement list (CDRL) DD Form 1423.

(c) The U.S. DoD POP symbol shall not be applied to the container unless the Government approves the contractors test report and authorizes to apply the DoD POP symbol to the container.

D.5 For multi-year contracts, the contractor shall re-perform the POP testing at a U.S. Government approved Performance-oriented Packaging (POP) test laboratory IAW CFR 49 if:

(a) There is a change in container manufacturer, design, materials, or manufacturing processes of the container.

(b) The current POP certification has expired.

(c) POP recertification is required every 2 years for a combination pack per CFR 49.

D.6 EXCEPTION TO POP MARKINGS: If the container is manufactured outside the USA, the contractor/container manufacturer shall be responsible to perform the POP certification tests IAW the United Nations Recommendations on the Transport of Dangerous Goods and apply the marking authorized by the Transportation Competent Authority of the country of manufacture.

D.7 Destination of delivered items:

a. SU W39Z CRANE ARMY AMMO ACTIVITY

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WHOLESALE SUPPLY ACCOUNT
BLDG 3373 300 HWY 361
CRANE, IN 47522-5099

b. XR W390 MCALESTER ARMY AMMO PLANT
WHOLESALE SUP ACCT
MCALESTER, OK 74501-5000

c. XR W0MM T00ELE ARMY DEPOT
T00ELE ARMY DEPOT TPF
T00ELE, UT 84074-5003

d. XU W0L7 BLUE GRASS ARMY DEPOT
BLUE GRASS ARMY DEPOT
431 BATTLEFIELD MEMORIAL HIGHWAY
RICHMOND, KY 40475-5070

e. SR W0K4 USA OSC PINE BLUFF ARS
BLDG 23330 CONSOL PROP OFFICE
DEXTER GATE
PINE BLUFF, AR 71602-9500

f. Transportation Officer
U.S. Army Yuma Proving Ground
Bldg. 3740 KOFA Firing Range
Yuma, AZ 85365

D.8 Estimated weight of the item in its shipping container: Less than 200 pounds

D.9 Security classification of the material to be shipped: Unclassified

D.10 DOT Container Marking and Hazard Classification:

- Proper Shipping Name (PSN): Fuzes, Detonating
- Identification Number: UN: 0409
- Hazard Classification (Explosives Only): DOT Hazard Class: 1.2D

D.11 Transportation Security Category for Arms, Ammunition or Explosives (AA&E) as categorized in DoD 5100.76-M: Category IV

D.12 Government Furnished Property (GFP): No GFP

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SECTION E - INSPECTION AND ACCEPTANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>
For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
E-1	52.246-2	INSPECTION OF SUPPLIES--FIXED-PRICE	AUG/1996
E-2	52.246-15	CERTIFICATE OF CONFORMANCE	APR/1984
E-3	52.246-16	RESPONSIBILITY FOR SUPPLIES	APR/1984
E-4	52.246-11	HIGHER-LEVEL CONTRACT QUALITY REQUIREMENT	DEC/2014

(a) The contractor shall comply with the higher-level quality standard(s) listed below:

<u>Title</u>	<u>Number</u>	<u>Date</u>	<u>Tailoring</u>
Quality Management System (QMS)	ISO 9001:2015	21 Oct 2015	Tailored by excluding paragraph 8.3

(b) The contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts in--
(1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or
(2) When the technical requirements of a subcontract require--
(i) Control of such things as design, work operations, in-process control, testing and inspection; or
(ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.
(End of clause)

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SECTION F - DELIVERIES OR PERFORMANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
F-1	52.211-17	DELIVERY OF EXCESS QUANTITIES	SEP/1989
F-2	52.242-15	STOP-WORK ORDER	AUG/1989
F-3	52.242-17	GOVERNMENT DELAY OF WORK	APR/1984
F-4	52.247-29	F.O.B. ORIGIN	FEB/2006
F-5	252.211-7008	USE OF GOVERNMENT-ASSIGNED SERIAL NUMBERS	SEP/2010
F-6	52.211-8	TIME OF DELIVERY	JUN/1997

(a) The Government requires delivery to be made according to the following schedule for the M739A1 PD/DLY Fuze:

REQUIRED DELIVERY SCHEDULE

ITEM NO.	QUANTITY	WITHIN DAYS AFTER DELIVERY ORDER AWARD
First Article Test (FAT)	1 Lot	450 Calendar Days after Delivery Order Award
Additional FAT (AFAT)	1 Lot	450 Calendar Days after Delivery Order Award
Production Quantities	Per DO Requirements	90 Calendar Days after FAT Approval, if FAT is not required, Production Quantities are due 180 days after Delivery Order Award

FAT shipments shall be made to:

DODAAC: W61P4X
Yuma Proving Ground
Transportation Officer
U.S. Army Yuma Proving Ground
Bldg. 3740 KOFA Firing Range
Yuma, AZ 85365

LOT Shipments shall be made in accordance with Section D.

Shipping Transportation Account Code (TAC) and delivery destination DODAAC will be provided at time of Delivery Order Award.

FAT Report (FATR) is due 450 days after Delivery Order Award is Inspection/Acceptance is Origin/Destination for FATR only.

The Government will evaluate equally, in regards time of delivery, offers that propose delivery of each quantity within the applicable delivery period specified above. Offers that propose delivery that will not clearly fall within the applicable required delivery period specified above, will be considered nonresponsive and rejected. The Government reserves the right to award either the required delivery schedule or the proposed delivery schedule, when an offeror offers an earlier delivery schedule than required above. If the offeror proposes no other delivery schedule, the required delivery schedule above will apply.

OFFERORS PROPOSED DELIVERY SCHEDULE

ITEM NO.	QUANTITY	WITHIN DAYS AFTER DATE OF CONTRACT
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May be submitted in accordance with each Contemplation Letter/Delivery Order award as needed.

(b) Attention is directed to the Contract Award provision of the solicitation that provides that a written award or acceptance of offer mailed, or otherwise furnished to the successful offeror, results in a binding contract. The Government will mail or otherwise furnish to the offeror an award or notice of award not later than the day award is dated. Therefore, the offeror should compute the time

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available for performance beginning with the actual date of award, rather than the date the written notice of award is received from the Contracting Officer through the ordinary mails. However, the Government will evaluate an offer that proposes delivery based on the Contractors date of receipt of the contract or notice of award by adding

- (1) five calendar days for delivery of the award through the ordinary mails, or
- (2) one working day if the solicitation states that the contract or notice of award will be transmitted electronically. (The term working day excludes weekends and U.S. Federal holidays.) If, as so computed, the offered delivery date is later than the required delivery date, the offer will be considered nonresponsive and rejected.

(End of Clause)

F-7 252.211-7003 ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023) JAN/2023

(a) Definitions. As used in this clause--

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means

- (1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

- (2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Governments unit acquisition cost" means

- (1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;
- (2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractors estimated fully burdened unit cost to the Government at the time of delivery; and
- (3) For items produced under a time-and-materials contract, the Contractors estimated fully burdened unit cost to the Government at the time of delivery.

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"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459 .

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html> .

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
N/A	N/A

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
N/A	N/A

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- (iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparable as specified in Attachment Number: N/A.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number: N/A.

(v) Any item not included in paragraphs (c)(1)(i), (ii), (iii), or (iv) of this clause for which the contractor creates and marks a unique item identifier for traceability.
- (2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology--International symbology specification--Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that--

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology-Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall--

(A) Determine whether to--

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: Original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code--

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- (A) Shall not be placed on the item; and
- (B) Shall be derived from the data qualifier for the enterprise identifier.
- (d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:
- (1) Unique item identifier.
 - (2) Unique item identifier type.
 - (3) Issuing agency code (if concatenated unique item identifier is used).
 - (4) Enterprise identifier (if concatenated unique item identifier is used).
 - (5) Original part number (if there is serialization within the original part number).
 - (6) Lot or batch number (if there is serialization within the lot or batch number).
 - (7) Current part number (optional and only if not the same as the original part number).
 - (8) Current part number effective date (optional and only if current part number is used).
 - (9) Serial number (if concatenated unique item identifier is used).
 - (10) Governments unit acquisition cost.
 - (11) Unit of measure.
 - (12) Type designation of the item as specified in the contract schedule, if any.
 - (13) Whether the item is an item of Special Tooling or Special Test Equipment.
 - (14) Whether the item is covered by a warranty.
- (e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:
- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
 - (2) Unique item identifier of the embedded subassembly, component, or part.
 - (3) Unique item identifier type.**
 - (4) Issuing agency code (if concatenated unique item identifier is used).**
 - (5) Enterprise identifier (if concatenated unique item identifier is used).**
 - (6) Original part number (if there is serialization within the original part number).**
 - (7) Lot or batch number (if there is serialization within the lot or batch number).**
 - (8) Current part number (optional and only if not the same as the original part number).**
 - (9) Current part number effective date (optional and only if current part number is used).**
 - (10) Serial number (if concatenated unique item identifier is used).**
 - (11) Description.
- ** Once per item.

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(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/> .

(2) Embedded items shall be reported by one of the following methods--

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/> ; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number, as applicable, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

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SECTION G - CONTRACT ADMINISTRATION DATA

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
G-1	252.232-7006	WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)	JAN/2023

(a) Definitions. As used in this clause

Department of Defense Activity Address Code (DoDAAC) is a six position code that uniquely identifies a unit, activity, or organization.

Document type means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

Local processing office (LPO) is the office responsible for payment certification when payment certification is done external to the entitlement system.

Payment request and receiving report are defined in the clause at 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov> ; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the Web Based Training link on the WAWF home page at <https://wawf.eb.mil/> .

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Invoice and Receiving Report (Combo)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

As required by each delivery order

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF combo document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF

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when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	TBD
Issue By DoDAAC	W15QKN
Admin DoDAAC**	TBD
Inspect By DoDAAC	TBD
Ship To Code	See Individual Delivery Order
Ship From Code	TBD
Mark For Code	TBD
Service Approver (DoDAAC)	N/A
Service Acceptor (DoDAAC)	N/A
Accept at Other DoDAAC	N/A
LPO DoDAAC	N/A
DCAA Auditor DoDAAC	N/A
Other DoDAAC(s)	N/A

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activities WAWF point of contact.

N/A

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

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SECTION H - SPECIAL CONTRACT REQUIREMENTS

H.1 Evaluation and basis for Award of Future Delivery Orders (applicable if multiple awards are made):

(a) Basis for Award for Future Delivery Orders: The Government will select for award the offer(s) that is (are) the most advantageous to the Government on a Best Value with Subjective Trade-offs with appropriate consideration given to one or more of the following evaluation factors: Delivery Schedule, Past Performance, and/or Price. It is anticipated that each contemplation letter(s) may include a request for Additional FAT (AFAT) and Production Unit Prices for any and all future delivery orders, as applicable. Each awardee will be allowed to propose lower unit prices than those stated in the base contract; however higher unit prices will not be allowed to be proposed. Please note that due to known requirements at the time of issuance of the contemplation letter(s), there may be a change in the delivery schedule from the estimated schedule listed in the solicitation, but within the parameters of the contract requirements. The Government reserves the right to make an award to other than the lowest priced offeror for a Best Value with Subjective Trade-offs decision.

(b) The exact criteria for awarding future delivery orders will be identified in a contemplation letter issued by the Contracting Officer to the contractors who have been awarded a basic Indefinite Delivery/Indefinite Quantity (ID/IQ) contract resulting from this solicitation. When in the best interest of the Government, the contemplation letter will also state if multiple awards are desired. This decision will be based on economical quantities, industrial base considerations, military delivery requirements, or other factors.

(c) In accordance with FAR 16.505 (b)(i), the Government will make every attempt to provide each contractor a fair opportunity to be considered for each delivery order, however, the Government reserves the right to award a sole source order if the conditions at FAR 16.505(b)(2) exist.

(d) The Government reserves the right to split each delivery order in order to meet the current requirement. The quantities for future delivery orders may be split among the awardees based on the evaluation results of the factors identified in the contemplation letter.

(e) The Contracting Officer on the prescribed Government forms will issue FFP delivery orders and will indicate:

- (1) Date of Delivery Order
- (2) Contract Number and Order Number
- (3) Contract Line-Item Number (CLIN) or Sub Contract Line-Item Number (SubCLIN) and description
- (4) Period of Performance
- (5) Place of Performance
- (6) Accounting and Appropriation Data
- (7) Payment Office

(f) The Contracting Officer is the only Government representative with the authority to issue delivery orders against this contract. Delivery Orders will be transmitted and received via e-mail. Delivery Orders will be competed among the offerors who have been awarded ID/IQ base contracts.

H.2 Pricing Curve for Delivery Orders:

(a) Based upon the unit prices proposed for the specified quantities for the Production CLINs, corresponding pricing curve formulae will be automatically calculated, and the formulae will be reflected in the applicable cell in the Price Matrix. A separate pricing curve will be established for every interval between two specified quantities, based upon the unit prices proposed for those quantities, and the corresponding power curve formula will be utilized to calculate a unit price for the quantities within that interval. Offerors shall not change or edit the curve formulae provided in the Price Matrix. Any alteration of the formulae for the pricing curve may result in the Offerors proposal being rejected. The power curve formula will be $Y = Ax^b$, whereby:

- Y represents the unit price to be calculated,
- A represents the T-1 value, which is the theoretical unit price for the first unit based upon the respective curve formula,
- x represents the quantity to be ordered, and
- b represents the slope for the applicable quantity curve.

(b) The resultant curve formulae will be incorporated into the awarded contract(s) and utilized on future delivery orders to calculate a unit price when quantities other than the specified quantity points are ordered.

H.3 Army Contract Writing System (ACWS) Transition Information for Offerors:

(a) The Army Contracting Enterprise (ACE) is in the process of deploying new solicitation and contract writing software to Army contracting offices worldwide. Known as the Army Contract Writing System (ACWS), this modern software suite will soon replace most existing Army contract writing systems, including the system used to create and release this Solicitation.

(b) During this transition period, Offerors are hereby advised:

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The Contracting Office may use any combination of contract writing systems to create and release documents related to this solicitation (e.g. solicitation amendments and awards, if any). Due to this:

- (1) This solicitation may contain different offer submission instructions than other solicitations released by the same Contracting Office (e.g. requiring offer submission via the PIEE Solicitation Module vs. e-mail). Offerors should review all offer submission instructions contained in the solicitation documents and direct any questions or concerns to the Contract Specialist or Contracting Officer.
- (2) If the Contracting Office switches contract writing systems prior to award, documents you receive from the Contracting Officer or view on SAM.gov or other forums may appear noticeably different than the initial solicitation or previous solicitations or awards from the same Contracting Office. This is normal and expected.
- (3) A change between contract writing systems may cause important information concerning solicitation response (amendments) or accepted terms (awards) to take on different formatting or appear in different parts of later documents issued. Offerors shall review all documents carefully to locate this important information and direct any questions or concerns to the Contract Specialist or Contracting Officer.
- (4) The Government does not intend to use the transition between contract writing systems to effect any changes to solicitation or award terms and conditions without accompanying document narratives explicitly stating such changes are deliberate and desired. While the Contract Specialist and Contracting Officer will take care to minimize or eliminate any inadvertent changes when adapting to the new contract writing software, you, as the Offeror, may still be the first to spot such errors. Therefore, Offerors shall:
 - a. Notify the Contracting Officer immediately if any observed changes, removals, or additions affect your award eligibility, violate or alter existing quote/proposal terms, or could affect Contract performance post-award. T
 - b. Take special care to ensure all fill-in Clauses are populated and remain populated across documents received from the Contracting Office throughout the Solicitation and Award process.
 - c. Contact the Contracting Officer listed on the first page of the solicitation or solicitation amendment for guidance if you notice or suspect any inadvertent change has occurred between document issuances.
 - d. The Contracting Officer will correct problems affecting award documents (if any) via bilateral modification, at no cost to the Contractor. Any such modification will reconcile the award with the latest version of this solicitation reflecting deliberate action by the Contracting Officer (e.g. the first issuance if no amendments, or the latest amendment with accompanying narratives), inclusive of any documented pre-award negotiations or accepted supplemental offer terms.
- (5) In the unlikely event a network disruption, contract writing system error, or financial system error threatens timely award of the requirement set forth in this solicitation, the Contracting Officer:
 - a. May elect to use alternative mechanisms to obligate funds and allow work or deliveries to legally begin to the benefit of, and with legal protection for, both parties.
 - b. Will incorporate the latest version of this Solicitation into such mechanisms to serve as a framework for contract execution until any such system problems are resolved.
 - c. Will ensure any action taken does not conflict with the stated offer evaluation and award methodology of this requirement will issue a complete, properly-formatted award accurately reflecting this requirement and all applicable terms and conditions once systems return to normal.

*** END OF NARRATIVE H0001 ***

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SECTION I - CONTRACT CLAUSES

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
I-1	52.202-1	DEFINITIONS	JUN/2020
I-2	52.203-3	GRATUITIES	APR/1984
I-3	52.203-5	COVENANT AGAINST CONTINGENT FEES	MAY/2014
I-4	52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (NOV 2021)	NOV/2021
I-5	52.203-7	ANTI-KICKBACK PROCEDURES	JUN/2020
I-6	52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-7	52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-8	52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	JUN/2020
I-9	52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN/2017
I-10	52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS	JUN/2020
I-11	52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT/2018
I-12	52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE	AUG/2020
I-13	52.204-23	PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEC 2023)	DEC/2023
I-14	52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2025)	JAN/2025
I-15	52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	OCT/2018
I-16	52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV/2015
I-17	52.210-1	MARKET RESEARCH	NOV/2021
I-18	52.211-5	MATERIAL REQUIREMENTS	AUG/2000
I-19	52.211-15	DEFENSE PRIORITY AND ALLOCATION REQUIREMENTS	APR/2008
I-20	52.215-2	AUDIT AND RECORDS--NEGOTIATIONS	JUN/2020
I-21	52.215-8	ORDER OF PRECEDENCE--UNIFORM CONTRACT FORMAT	OCT/1997
I-22	52.215-14	INTEGRITY OF UNIT PRICES	NOV/2021
I-23	52.215-15	PENSION ADJUSTMENTS AND ASSET REVERSIONS	OCT/2010
I-24	52.215-18	REVERSION OR ADJUSTMENT OF PLANS FOR POSTRETIREMENT BENEFITS (PRB) OTHER THAN PENSIONS	JUL/2005
I-25	52.215-21	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA --MODIFICATIONS	NOV/2021
I-26	52.215-23	LIMITATIONS ON PASS-THROUGH CHARGES	JUN/2020
I-27	52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE	NOV/2020
I-28	52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (JAN 2025)	JAN/2025
I-29	52.219-9	SMALL BUSINESS SUBCONTRACTING PLAN (JAN 2025)	JAN/2025
I-30	52.219-16	LIQUIDATED DAMAGES--SUBCONTRACTING PLAN	SEP/2021
I-31	52.219-32	ORDERS ISSUED DIRECTLY UNDER SMALL BUSINESS RESERVES	MAR/2020
I-32	52.219-33	NONMANUFACTURER RULE	SEP/2021
I-33	52.222-3	CONVICT LABOR	JUN/2003
I-34	52.222-4	CONTRACT WORK HOURS AND SAFETY STANDARDS--OVERTIME COMPENSATION	MAY/2018
I-35	52.222-20	CONTRACTS FOR MATERIALS, SUPPLIES, ARTICLES, AND EQUIPMENT	JUN/2020
I-36	52.222-37	EMPLOYMENT REPORTS ON VETERANS	JUN/2020
I-37	52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT	DEC/2010
I-38	52.222-50	COMBATING TRAFFICKING IN PERSONS	NOV/2021
I-39	52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (JAN 2025)	JAN/2025
I-40	52.223-23	SUSTAINABLE PRODUCTS AND SERVICES MAR 2025) (DEVIATION 2025-000004)	MAR/2025

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I-41	52.225-13	RESTRICTIONS ON CERTAIN FOREIGN PURCHASES	FEB/2021
I-42	52.226-7	DRUG-FREE WORKPLACE (MAY 2024)	MAY/2024
I-43	52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)	MAY/2024
I-44	52.227-1	AUTHORIZATION AND CONSENT	JUN/2020
I-45	52.227-2	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT	JUN/2020
I-46	52.229-3	FEDERAL, STATE, AND LOCAL TAXES	FEB/2013
I-47	52.232-1	PAYMENTS	APR/1984
I-48	52.232-8	DISCOUNTS FOR PROMPT PAYMENT	FEB/2002
I-49	52.232-11	EXTRAS	APR/1984
I-50	52.232-17	INTEREST	MAY/2014
I-51	52.232-23	ASSIGNMENT OF CLAIMS (MAY 2014) -- ALTERNATE I (APR 1984)	APR/1984
I-52	52.232-25	PROMPT PAYMENT	JAN/2017
I-53	52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER--SYSTEM FOR AWARD MANAGEMENT	OCT/2018
I-54	52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS	JUN/2013
I-55	52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS(MAR 2023)	MAR/2023
I-56	52.233-1	DISPUTES	MAY/2014
I-57	52.233-3	PROTEST AFTER AWARD	AUG/1996
I-58	52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT/2004
I-59	52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024)	NOV/2024
I-60	52.242-5	PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	JAN/2017
I-61	52.242-13	BANKRUPTCY	JUL/1995
I-62	52.243-1	CHANGES--FIXED PRICE	AUG/1987
I-63	52.244-5	COMPETITION IN SUBCONTRACTING (AUG 2024)	AUG/2024
I-64	52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-00003)	MAR/2025
I-65	52.246-23	LIMITATION OF LIABILITY	FEB/1997
I-66	52.246-26	REPORTING NONCONFORMING ITEMS (AUG 2024)	AUG/2024
I-67	52.247-15	CONTRACTOR RESPONSIBILITY FOR LOADING AND UNLOADING	APR/1984
I-68	52.247-63	PREFERENCE FOR U.S.-FLAG AIR CARRIERS (JAN 2025)	JAN/2025
I-69	52.247-68	REPORT OF SHIPMENT (REPSHIP)	FEB/2006
I-70	52.248-1	VALUE ENGINEERING	JUN/2020
I-71	52.249-2	TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE)	APR/2012
I-72	52.249-8	DEFAULT (FIXED-PRICE SUPPLY AND SERVICE)	APR/1984
I-73	52.251-1	GOVERNMENT SUPPLY SOURCES	APR/2012
I-74	52.253-1	COMPUTER GENERATED FORMS	JAN/1991
I-75	252.203-7000	REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS	SEP/2011
I-76	252.203-7001	PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-RELATED FELONIES (JAN 2023)	JAN/2023
I-77	252.203-7002	REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022)	DEC/2022
I-78	252.203-7003	AGENCY OFFICE OF THE INSPECTOR GENERAL	AUG/2019
I-79	252.203-7004	DISPLAY OF HOTLINE POSTERS (JAN 2023)	JAN/2023
I-80	252.204-7000	DISCLOSURE OF INFORMATION	OCT/2016
I-81	252.204-7002	PAYMENT FOR SUBLINE ITEMS NOT SEPARATELY PRICED	APR/2020
I-82	252.204-7003	CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT	APR/1992
I-83	252.204-7004	ANTITERRORISM AWARENESS TRAINING FOR CONTRACTORS	JAN/2023
I-84	252.204-7006	BILLING INSTRUCTIONS--COST VOUCHERS (MAY 2023)	MAY/2023
I-85	252.204-7012	SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (MAY 2024) (DEVIATION 2024-00013, REVISION 1)	MAY/2024
I-86	252.204-7015	NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT (JAN 2023)	JAN/2023
I-87	252.204-7018	PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023)	JAN/2023
I-88	252.204-7020	NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)	NOV/2023
I-89	252.205-7000	PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS (OCT 2024)	OCT/2024
I-90	252.209-7004	SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY E GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM (MAY 2019)	MAY/2019
I-91	252.215-7006	USE OF EMPLOYEES OR INDIVIDUAL SUBCONTRACTORS WHO ARE MEMBERS OF THE SELECTED RESERVE	MAR/2022

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I-92	252.216-7010	POSTAWARD DEBRIEFINGS FOR TASK ORDERS AND DELIVERY ORDERS (DEC 2022)	DEC/2022
I-93	252.219-7003	SMALL BUSINESS SUBCONTRACTING PLAN (DOD CONTRACTS)--BASIC	DEC/2019
I-94	252.222-7006	RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS (JAN 2023)	JAN/2023
I-95	252.223-7002	SAFETY PRECAUTIONS FOR AMMUNITION AND EXPLOSIVES (NOV 2023)	NOV/2023
I-96	252.223-7003	CHANGE IN PLACE OF PERFORMANCE--AMMUNITION AND EXPLOSIVES	DEC/1991
I-97	252.223-7008	PROHIBITION OF HEXAVALENT CHROMIUM (JAN 2023)	JAN/2023
I-98	252.225-7001	BUY AMERICAN AND BALANCE OF PAYMENTS PROGRAM--BASIC (FEB 2024)	FEB/2024
I-99	252.225-7002	QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS	MAR/2022
I-100	252.225-7004	REPORT OF INTENDED PERFORMANCE OUTSIDE THE UNITED STATES AND CANADA--SUBMISSION AFTER AWARD (JUL 2024)	JUL/2024
I-101	252.225-7007	PROHIBITION ON ACQUISITION OF CERTAIN ITEMS FROM COMMUNIST CHINESE MILITARY COMPANIES	DEC/2018
I-102	252.225-7008	RESTRICTION ON ACQUISITION OF SPECIALTY METALS	MAR/2013
I-103	252.225-7009	RESTRICTION ON ACQUISITION OF CERTAIN ARTICLES CONTAINING SPECIALTY METALS (JAN 2023)	JAN/2023
I-104	252.225-7012	PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES	APR/2022
I-105	252.225-7048	EXPORT-CONTROLLED ITEMS	JUN/2013
I-106	252.225-7052	RESTRICTION ON THE ACQUISITION OF CERTAIN MAGNETS, TANTALUM, AND TUNGSTEN (MAY 2024)	MAY/2024
I-107	252.225-7056	PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023)	JAN/2023
I-108	252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China	AUG/2022
I-109	252.225-7058	POSTAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA (JAN 2023)	JAN/2023
I-110	252.225-7060	PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION (JUN 2023)	JUN/2023
I-111	252.226-7001	UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC ENTERPRISES, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS (JAN 2023)	JAN/2023
I-112	252.227-7013	RIGHTS IN TECHNICAL DATA--OTHER THAN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)	JAN/2025
I-113	252.227-7014	RIGHTS IN NONCOMMERCIAL COMPUTER SOFTWARE AND NONCOMMERCIAL COMPUTER SOFTWARE DOCUMENTATION(JAN 2025)	JAN/2025
I-114	252.227-7015	TECHNICAL DATA--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)	JAN/2025
I-115	252.227-7016	RIGHTS IN BID OR PROPOSAL INFORMATION (JAN 2023)	JAN/2023
I-116	252.227-7019	VALIDATION OF ASSERTED RESTRICTIONS?COMPUTER SOFTWARE (JAN 2025)	JAN/2025
I-117	252.227-7027	DEFERRED ORDERING OF TECHNICAL DATA OR COMPUTER SOFTWARE	APR/1988
I-118	252.227-7030	TECHNICAL DATA--WITHHOLDING OF PAYMENT	MAR/2000
I-119	252.227-7037	VALIDATION OF ASSERTED RESTRICTIONS ON TECHNICAL DATA (JAN 2025)	JAN/2025
I-120	252.231-7000	SUPPLEMENTAL COST PRINCIPLES	DEC/1991
I-121	252.232-7002	PROGRESS PAYMENTS FOR FOREIGN MILITARY SALES ACQUISITIONS(MAY 2023)	MAY/2023
I-122	252.232-7003	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS	DEC/2018
I-123	252.232-7010	LEVIES ON CONTRACT PAYMENTS	DEC/2006
I-124	252.242-7004	MATERIAL MANAGEMENT AND ACCOUNTING SYSTEM (JAN 2025)	JAN/2025
I-125	252.243-7001	PRICING OF CONTRACT MODIFICATIONS	DEC/1991
I-126	252.243-7002	REQUESTS FOR EQUITABLE ADJUSTMENT (DEC 2022)	DEC/2022
I-127	252.244-7000	SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023)	NOV/2023
I-128	252.246-7003	NOTIFICATION OF POTENTIAL SAFETY ISSUES (JAN 2023)	JAN/2023
I-129	252.246-7006	WARRANTY TRACKING OF SERIALIZED ITEMS	MAR/2016
I-130	252.246-7008	SOURCES OF ELECTRONIC PARTS (JAN 2023)	JAN/2023
I-131	252.247-7023	TRANSPORTATION OF SUPPLIES BY SEA--BASIC (OCT 2024)	OCT/2024
I-132	252.247-7028	APPLICATION FOR U.S. GOVERNMENT SHIPPING DOCUMENTATION/INSTRUCTIONS	JUN/2012
I-133	52.209-3	FIRST ARTICLE APPROVAL -- CONTRACTOR TESTING (SEP 1989) -- ALTERNATE I (JAN 1997) AND ALTERNATE II (SEP 1989)	SEP/1989

(a) The Contractor shall test 1 Lot of the M739A1 Fuze units as specified in this contract. At least 30 calendar days before the beginning of first article tests, the Contractor shall notify the Contracting Officer, in writing, of the time and location of the testing so that the Government may witness the tests.

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(b) The Contractor shall submit the first article test report within 450 calendar days from the date of FAT completion marked First Article Test Report: Contract No. TBD, Lot/Item No. TBD. Within 90 calendar days after the Government receives the test report, the Contracting Officer shall notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article. The notice of conditional approval or approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval shall state any further action required of the Contractor. A notice of disapproval shall cite reasons for the disapproval.

(c) If the first article is disapproved, the Contractor, upon Government request, shall repeat any or all first article tests. After each request for additional tests, the Contractor shall make any necessary changes, modifications, or repairs to the first article or select another first article for testing. All costs related to these tests are to be borne by the Contractor, including any and all costs for additional tests following a disapproval. The Contractor shall then conduct the tests and deliver another report to the Government under the terms and conditions and within the time specified by the Government. The Government shall take action on this report within the time specified in paragraph (b) above. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule, or for any additional costs to the Government related to these tests.

(d) If the Contractor fails to deliver any first article report on time, or the Contracting Officer disapproves any first article, the Contractor shall be deemed to have failed to make delivery within the meaning of the Default clause of this contract.

(e) Unless otherwise provided in the contract, and if the approved first article is not consumed or destroyed in testing, the Contractor may deliver the approved first article as part of the contract quantity if it meets all contract requirements for acceptance.

(f) If the Government does not act within the time specified in paragraph (b) or (c) above, the Contracting Officer shall, upon timely written request from the Contractor, equitably adjust under the changes clause of this contract the delivery or performance dates and/or the contract price, and any other contractual term affected by the delay.

(g) Before first article approval, the Contracting Officer may, by written authorization, authorize the Contractor to acquire specific materials or components or to commence production to the extent essential to meet the delivery schedules. Until first article approval is granted, only costs for the first article and costs incurred under this authorization are allocable to this contract for

- (1) progress payments, or
 - (2) termination settlements if the contract is terminated for the convenience of the Government. If first article tests reveal deviations from contract requirements, the Contractor shall, at the location designated by the Government, make the required changes or replace all items produced under this contract at no change in the contract price.
- (h) The Government may waive the requirement for first article approval test where supplies identical or similar to those called for in the schedule have been previously furnished by the offeror/ contractor and have been accepted by the Government. The offeror/contractor may request a waiver.
- (i) The Contractor shall produce both the first article and the production quantity at the same facility.

(End of Clause)

I-134 52.209-4 FIRST ARTICLE APPROVAL -- GOVERNMENT TESTING (SEP 1989) -- ALTERNATE SEP/1989
I (JAN 1997) AND ALTERNATE II (SEP 1989)

(a) The Contractor shall deliver 1 LQT of M739A1 PD/DLY Fuze within 450 calendar days from the date of this contract to the Government at U.S. Army Proving Ground (DODAAC: W61P4X), Bldg. 3740, Firing Front Road, ATTN: TEDT-YPY-G-AM, Yuma, Arizona 85365-9108 for first article tests. The shipping documentation shall contain this contract number and the Lot/Item identification. The characteristics that the first article must meet and the testing requirements are specified elsewhere in this contract.

(b) Within 60 calendar days after the Government receives the first article, the Contracting Officer shall notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article. The notice of conditional approval or approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval shall state any further action required of the Contractor. A notice of disapproval shall cite reasons for the disapproval.

(c) If the first article is disapproved, the Contractor, upon Government request, shall submit an additional first article for testing. After each request, the Contractor shall make any necessary changes, modifications, or repairs to the first article or select another first article for testing. All costs related to these tests are to be borne by the Contractor, including any and all costs for additional tests following a disapproval. The Contractor shall furnish any additional first article to the Government under the terms and conditions and within the time specified by the Government. The Government shall act on this first article within the time limit specified in paragraph (b) of this clause. The Government reserves the right to require an equitable adjustment of the contract price

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for any extension of the delivery schedule or for any additional costs to the Government related to these tests.

(d) If the Contractor fails to deliver any first article on time, or the Contracting Officer disapproves any first article, the Contractor shall be deemed to have failed to make delivery within the meaning of the Default clause of this contract.

(e) Unless otherwise provided in the contract, the Contractor --

(1) May deliver the approved first article as a part of the contract quantity, provided it meets all contract requirements for acceptance and was not consumed or destroyed in testing; and

(2) Shall remove and dispose of any first article from the Government test facility at the Contractors expense.

(f) If the Government does not act within the time specified in paragraph (b) or (c) of this clause, the Contracting Officer shall, upon timely written request from the Contractor, equitably adjust under the Changes clause of this contract the delivery or performance dates and/or the contract price, and any other contractual term affected by the delay.

(g) The Contractor is responsible for providing operating and maintenance instructions, spare parts support, and repair of the first article during any first article test.

(h) Before first article approval, the Contracting Officer may, by written authorization, authorize the Contractor to acquire specific materials or components or to commence production to the extent essential to meet the delivery schedules. Until first article approval is granted, only costs for the first article and costs incurred under this authorization are allocable to this contract for

(1) progress payments, or

(2) termination settlements if the contract is terminated for the convenience of the Government.

If first article tests reveal deviations from contract requirements, the Contractor shall, at the location designated by the Government, make the required changes or replace all items produced under this contract at no change in the contract price.

(i) The Government may waive the requirement for first article approval test where supplies identical or similar to those called for in the schedule have been previously furnished by the Offeror/Contractor and have been accepted by the Government. The Offeror/Contractor may request a waiver.

(j) The Contractor shall produce both the first article and the production quantity at the same facility.

(End of Clause)

I-135 52.216-18 ORDERING AUG/2020

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from Base Contract Award through 60 months.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

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I-136 52.216-19 ORDER LIMITATIONS OCT/1995

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than 50,000, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor --

(1) Any order for a single item in excess of 800,000;

(2) Any order for a combination of items in excess of 800,000; or

(3) A series of orders from the same ordering office within 10 days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 15 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

I-137 52.216-22 INDEFINITE QUANTITY OCT/1995

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the maximum. The Government shall order at least the quantity of supplies or services designated in the Schedule as the minimum.

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract beyond the Delivery Order Award Date or 10 years after Contract Award.

(End of Clause)

I-138 52.216-32 TASK-ORDER AND DELIVERY-ORDER OMBUDSMAN SEP/2019

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

Ms. Suzanne Anderson
ACC-New Jersey Task and Delivery Order Ombudsman
5418 South Scott Plaza
Fort Dix, NJ 08640-5003
Phone Number: 609-562-3844
E-mail: usarmy.picatinny.acc.mbx.accnjombudsman@army.mil

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

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(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

I-139 52.219-7 NOTICE OF PARTIAL SMALL BUSINESS SET-ASIDE NOV/2020

(a) Definition. Small business concern, as used in this clause

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the size standards in this solicitation.

(2) Affiliates, as used in paragraph (a)(1) of this clause, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) Applicability. This clause applies only to contracts that have been partially set aside for small business concerns.

(c) General.

(1) A portion of this requirement, identified elsewhere in this solicitation, has been set aside for award to one or more small business concerns identified in 19.000(a)(3). Offers received from concerns that do not qualify as small business concerns shall be considered nonresponsive and shall be rejected on the set-aside portion of the requirement.

(2) Small business concerns may submit offers and compete for the non-set-aside portion and the set-aside portion.

(d) The Offeror shall--

[] Submit a separate offer for each portion of the solicitation for which it wants to compete (i.e. set-aside portion, non-set-aside portion, or both); or

[X] Submit one offer to include all portions for which it wants to compete.

(e) Partial set-asides of multiple-award contracts.

(1) Small business concerns will not compete against other than small business concerns for any order issued under the part or parts of the multiple-award contract that are set aside.

(2) Small business concerns may compete for orders issued under the part or parts of the multiple-award contract that are not set aside, if the small business concern received a contract award for the non-set-aside portion.

(End of clause)

I-140 52.219-14 LIMITATIONS ON SUBCONTRACTING (DEVIATION 2021-00008) OCT/2022

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

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(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are--

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are--

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractors 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:

(i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.

(ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractors 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractors 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractors 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

[] By the end of the base term of the contract and then by the end of each subsequent option period; or

[X] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

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(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business prot[eacute]g[eacute] and its mentor approved by the Small Business Administration, the small business prot[eacute]g[eacute] shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business prot[eacute]g[eacute] in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions..

(End of clause)

I-141

52.243-7

NOTIFICATION OF CHANGES

JAN/2017

(a) Definitions. "Contracting Officer," as used in this clause, does not include any representative of the Contracting Officer.

"Specifically Authorized Representative (SAR)," as used in this clause, means any person the Contracting Officer has so designated by written notice (a copy of which shall be provided to the Contractor) which shall refer to this subparagraph and shall be issued to the designated representative before the SAR exercises such authority.

(b) Notice. The primary purpose of this clause is to obtain prompt reporting of Government conduct that the Contractor considers to constitute a change to this contract. Except for changes identified as such in writing and signed by the Contracting Officer, the Contractor shall notify the Administrative Contracting Officer in writing promptly, within 30 (to be negotiated) calendar days from the date that the Contractor identifies any Government conduct (including actions, inactions, and written or oral communications) that the Contractor regards as a change to the contract terms and conditions. On the basis of the most accurate information available to the Contractor, the notice shall state --

(1) The date, nature, and circumstances of the conduct regarded as a change;

(2) The name, function, and activity of each Government individual and Contractor official or employee involved in or knowledgeable about such conduct;

(3) The identification of any documents and the substance of any oral communication involved in such conduct;

(4) In the instance of alleged acceleration of scheduled performance or delivery, the basis upon which it arose;

(5) The particular elements of contract performance for which the Contractor may seek an equitable adjustment under this clause, including --

(i) What line items have been or may be affected by the alleged change;

(ii) What labor or materials or both have been or may be added, deleted, or wasted by the alleged change;

(iii) To the extent practicable, what delay and disruption in the manner and sequence of performance and effect on continued performance have been or may be caused by the alleged change;

(iv) What adjustments to contract price, delivery schedule, and other provisions affected by the alleged change are estimated; and

(6) The Contractor's estimate of the time by which the Government must respond to the Contractor's notice to minimize cost, delay or disruption of performance.

(c) Continued performance. Following submission of the notice required by paragraph (b) of this clause, the Contractor shall diligently continue performance of this contract to the maximum extent possible in accordance with its terms and conditions as construed by the Contractor, unless the notice reports a direction of the Contracting Officer or a communication from a SAR of the Contracting Officer, in either of which events the Contractor shall continue performance; provided, however, that if the Contractor regards the direction or communication as a change as described in paragraph (b) of this clause, notice shall be given in the manner provided. All directions, communications, interpretations, orders and similar actions of the SAR shall be reduced to writing promptly and copies furnished to the Contractor and to the Contracting Officer. The Contracting Officer shall promptly countermand any action which exceeds the authority of the SAR.

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(d) Government response. The Contracting Officer shall promptly, within 30 (to be negotiated) calendar days after receipt of notice, respond to the notice in writing. In responding, the Contracting Officer shall either --

(1) Confirm that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance;

(2) Countermand any communication regarded as a change;

(3) Deny that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance; or

(4) In the event the Contractor's notice information is inadequate to make a decision under subparagraphs (d)(1), (2), or (3) of this clause, advise the Contractor what additional information is required, and establish the date by which it should be furnished and the date thereafter by which the Government will respond.

(e) Equitable adjustments.

(1) If the Contracting Officer confirms that Government conduct effected a change as alleged by the Contractor, and the conduct causes an increase or decrease in the Contractor's cost of, or the time required for, performance of any part of the work under this contract, whether changed or not changed by such conduct, an equitable adjustment shall be made --

(i) In the contract price or delivery schedule or both; and

(ii) In such other provisions of the contract as may be affected.

(2) The contract shall be modified in writing accordingly. In the case of drawings, designs or specifications which are defective and for which the Government is responsible, the equitable adjustment shall include the cost and time extension for delay reasonably incurred by the Contractor in attempting to comply with the defective drawings, designs or specifications before the Contractor identified, or reasonably should have identified, such defect. When the cost of property made obsolete or excess as a result of a change confirmed by the Contracting Officer under this clause is included in the equitable adjustment, the Contracting Officer shall have the right to prescribe the manner of disposition of the property. The equitable adjustment shall not include increased costs or time extensions for delay resulting from the Contractor's failure to provide notice or to continue performance as provided, respectively, in paragraphs (b) and (c) of this clause.

NOTE: The phrases "contract price" and "cost" wherever they appear in the clause, may be appropriately modified to apply to cost-reimbursement or incentive contracts, or to combinations thereof.

(End of Clause)

I-142	252.223-7007	SAFEGUARDING SENSITIVE CONVENTIONAL ARMS, AMMUNITION, AND EXPLOSIVES	NOV/2023
		(NOV 2023)	

(a) Definition. Arms, ammunition, and explosives (AA&E), as used in this clause, means those items within the scope (chapter 1, paragraph B) of DoD Manual 5100.76, Physical Security of Sensitive Conventional Arms, Ammunition, and Explosives.

(b) The requirements of DoD Manual 5100.76 apply to the following items of AA&E being developed, produced, manufactured, or purchased for the Government, or provided to the Contractor as Government-furnished property under this contract:

<u>NOMENCLATURE</u>	<u>NATIONAL STOCK NUMBER</u>	<u>SENSITIVITY/CATEGORY</u>
M739A1 PD/DLY Fuze	1390-01-600-4635	IV

(c) The Contractor shall comply with the requirements of DoD Manual 5100.76, as specified in the statement of work. The edition of DoD DoD Manual 5100.76 in effect on the date of issuance of the solicitation for this contract shall apply.

(d) The Contractor shall allow representatives of the Defense Counterintelligence and Security Agency (DCSA), and representatives of other appropriate offices of the Government, access at all reasonable times into its facilities and those of its subcontractors, for the purpose of performing surveys, inspections, and investigations necessary to review compliance with the physical security standards applicable to this contract.

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(e) The Contractor shall notify the cognizant DCSA field office of any subcontract involving AA&E within 10 days after award of the subcontract.

(f) Subcontracts. The Contractor shall ensure that the requirements of this clause are included in all subcontracts, at every tier--

- (1) For the development, production, manufacture, or purchase of AA&E; or
- (2) When AA&E will be provided to the subcontractor as Government-furnished property.

(g) Nothing in this clause shall relieve the Contractor of its responsibility for complying with applicable Federal, state, and local laws, ordinances, codes, and regulations (including requirements for obtaining licenses and permits) in connection with the performance of this contract.

(End of clause)

I-143 52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT NOV/2021
(a) Definitions. As used in this clause--

"Agent" means any individual, including a director, an officer, an employee, or an independent Contractor, authorized to act on behalf of the organization.

"Full cooperation"--

(1) Means disclosure to the Government of the information sufficient for law enforcement to identify the nature and extent of the offense and the individuals responsible for the conduct. It includes providing timely and complete response to Government auditors and investigators' request for documents and access to employees with information;

(2) Does not foreclose any Contractor rights arising in law, the FAR, or the terms of the contract. It does not require--

- (i) A Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine; or
- (ii) Any officer, director, owner, or employee of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; and

(3) Does not restrict a Contractor from--

- (i) Conducting an internal investigation; or
- (ii) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

"Subcontract" means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.

"Subcontractor" means any supplier, distributor, vendor, or firm that furnished supplies or services to or for a prime contractor or another subcontractor.

"United States," means the 50 States, the District of Columbia, and outlying areas.

(b) Code of business ethics and conduct.

(1) Within 30 days after contract award, unless the Contracting Officer establishes a longer time period, the Contractor shall--

- (i) Have a written code of business ethics and conduct; and
- (ii) Make a copy of the code available to each employee engaged in performance of the contract.

(2) The Contractor shall--

- (i) Exercise due diligence to prevent and detect criminal conduct; and

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(ii) Otherwise promote an organizational culture that encourages ethical conduct and a commitment to compliance with the law.

(3)(i) The Contractor shall timely disclose, in writing, to the agency Office of the Inspector General (OIG), with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of this contract or any subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed--

(A) A violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 of the United States Code; or

(B) A violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(ii) The Government, to the extent permitted by law and regulation, will safeguard and treat information obtained pursuant to the Contractors disclosure as confidential where the information has been marked confidential or proprietary by the company. To the extent permitted by law and regulation, such information will not be released by the Government to the public pursuant to a Freedom of Information Act request, 5 U.S.C. Section 552, without prior notification to the Contractor. The Government may transfer documents provided by the Contractor to any department or agency within the Executive Branch if the information relates to matters within the organizations jurisdiction.

(iii) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the Contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract.

(c) Business ethics awareness and compliance program and internal control system. This paragraph (c) does not apply if the Contractor has represented itself as a small business concern pursuant to the award of this contract or if this contract is for the acquisition of a commercial product or commercial service as defined at FAR 2.101. The Contractor shall establish the following within 90 days after contract award, unless the Contracting Officer establishes a longer time period:

(1) An ongoing business ethics awareness and compliance program.

(i) This program shall include reasonable steps to communicate periodically and in a practical manner the Contractors standards and procedures and other aspects of the Contractors business ethics awareness and compliance program and internal control system, by conducting effective training programs and otherwise disseminating information appropriate to an individuals respective roles and responsibilities.

(ii) The training conducted under this program shall be provided to the Contractors principals and employees, and as appropriate, the Contractors agents and subcontractors.

(2) An internal control system.

(i) The Contractors internal control system shall--

(A) Establish standards and procedures to facilitate timely discovery of improper conduct in connection with Government contracts; and

(B) Ensure corrective measures are promptly instituted and carried out.

(ii) At a minimum, the Contractors internal control system shall provide for the following:

(A) Assignment of responsibility at a sufficiently high level and adequate resources to ensure effectiveness of the business ethics awareness and compliance program and internal control system.

(B) Reasonable efforts not to include an individual as a principal, whom due diligence would have exposed as having engaged in conduct that is in conflict with the Contractors code of business ethics and conduct.

(C) Periodic reviews of company business practices, procedures, policies, and internal controls for compliance with the Contractors code of business ethics and conduct and the special requirements of Government contracting, including--

(1) Monitoring and auditing to detect criminal conduct;

(2) Periodic evaluation of the effectiveness of the business ethics awareness and compliance program and internal control system, especially if criminal conduct has been detected; and

(3) Periodic assessment of the risk of criminal conduct, with appropriate steps to design, implement, or modify the business ethics awareness and compliance program and the internal control system as necessary to reduce the risk of criminal conduct identified through this process.

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(D) An internal reporting mechanism, such as a hotline, which allows for anonymity or confidentiality, by which employees may report suspected instances of improper conduct, and instructions that encourage employees to make such reports.

(E) Disciplinary action for improper conduct or for failing to take reasonable steps to prevent or detect improper conduct.

(F) Timely disclosure, in writing, to the agency OIG, with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of any Government contract performed by the Contractor or a subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed a violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 U.S.C. or a violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(1) If a violation relates to more than one Government contract, the Contractor may make the disclosure to the agency OIG and Contracting Officer responsible for the largest dollar value contract impacted by the violation.

(2) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract, and the respective agencies contracting officers.

(3) The disclosure requirement for an individual contract continues until at least 3 years after final payment on the contract.

(4) The Government will safeguard such disclosures in accordance with paragraph (b)(3)(ii) of this clause.

(G) Full cooperation with any Government agencies responsible for audits, investigations, or corrective actions.

(d) Subcontracts.

(1) The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts that exceed the threshold specified in FAR 3.1004(a) on the date of subcontract award and a performance period of more than 120 days.

(2) In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(End of clause)

I-144 52.203-17 CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS AND REQUIREMENTS TO INFORM NOV/2023
EMPLOYEES OF WHISTLEBLOWER RIGHTS (NOV2023)

(a) This contract and employees working on this contract will be subject to the whistleblower rights and remedies established at 41 U.S.C. 4712 and Federal Acquisition Regulation (FAR) 3.900 through 3.905.

(b) The Contractor shall inform its employees in writing, in the predominant language of the workforce, of employee whistleblower rights and protections under 41 U.S.C. 4712, as described in FAR 3.900 through 3.905.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts.

(End of clause)

I-145 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS DEC/2014

The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

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I-146 52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS NOV/2021

(a) Definitions. As used in this clause--

"Covered contractor information system" means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

"Federal contract information" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public Web sites) or simple transactional information, such as necessary to process payments.

"Information" means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

"Information system" means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

"Safeguarding" means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

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(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

I-147 52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO NOV/2021
SURVEILLANCE SERVICES OR EQUIPMENT

(a) Definitions. As used in this clause--

"Backhaul" means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

"Covered foreign country" means The Peoples Republic of China.

"Covered telecommunications equipment or services" means--

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

"Critical technology" means--

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

"Interconnection arrangements" means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

"Reasonable inquiry" means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or

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third-party audit.

"Roaming" means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

"Substantial or essential component" means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) Exceptions. This clause does not prohibit contractors from providing--

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement. (1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at <https://dibnet.dod.mil> . For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil> .

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

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Information technology, as defined in 40 U.S.C. 11101(6)

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

(b) Prohibition. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, No TikTok on Government Devices Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractors employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in accordance with OMB Memorandum M-23-13.

(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I-149 52.215-11 PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA-- OCT/2021
MODIFICATIONS (DEVIATION 2022-00001)

(a) This clause shall become operative only for any modification to this contract involving a pricing adjustment expected to exceed \$2 million on the date of execution of the modification, except that this clause does not apply to any modification if an exception under Federal Acquisition Regulation (FAR) 15.403-1(b) applies.

(b) If any price, including profit or fee, negotiated in connection with any modification under this clause, or any cost reimbursable under this contract, was increased by any significant amount because--

(1) The Contractor or a subcontractor furnished certified cost or pricing data that were not complete, accurate, and current as certified in its Certificate of Current Cost or Pricing Data;

(2) A subcontractor or prospective subcontractor furnished the Contractor certified cost or pricing data that were not complete, accurate, and current as certified in the Contractors Certificate of Current Cost or Pricing Data; or

(3) Any of these parties furnished data of any description that were not accurate, the price or cost shall be reduced accordingly and the contract shall be modified to reflect the reduction. This right to a price reduction is limited to that resulting from defects in data relating to modifications for which this clause becomes operative under paragraph (a) of this clause.

(c) Any reduction in the contract price under paragraph (b) of this clause due to defective data from a prospective subcontractor that was not subsequently awarded the subcontract shall be limited to the amount, plus applicable overhead and profit markup, by which--

(1) The actual subcontract price; or

(2) The actual cost to the Contractor, if there was no subcontract awarded, was less than the prospective subcontract cost estimate submitted by the Contractor; provided, that the actual subcontract price was not itself affected by defective certified cost or pricing data.

(d)(1) If the Contracting Officer determines under paragraph (b) of this clause that a price or cost reduction should be made, the Contractor agrees not to raise the following matters as a defense:

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(i) The Contractor or subcontractor was a sole source supplier or otherwise was in a superior bargaining position and thus the price of the contract would not have been modified even if accurate, complete, and current certified cost or pricing data had been submitted.

(ii) The Contracting Officer should have known that the certified cost or pricing data in issue were defective even though the Contractor or subcontractor took no affirmative action to bring the character of the data to the attention of the Contracting Officer.

(iii) The contract was based on an agreement about the total cost of the contract and there was no agreement about the cost of each item procured under the contract.

(iv) The Contractor or subcontractor did not submit a Certificate of Current Cost or Pricing Data.

(2)(i) Except as prohibited by subdivision (d)(2)(ii) of this clause, an offset in an amount determined appropriate by the Contracting Officer based upon the facts shall be allowed against the amount of a contract price reduction if--

(A) The Contractor certifies to the Contracting Officer that, to the best of the Contractors knowledge and belief, the Contractor is entitled to the offset in the amount requested; and

(B) The Contractor proves that the certified cost or pricing data were available before the as of date specified on its Certificate of Current Cost or Pricing Data, and that the data were not submitted before such date.

(ii) An offset shall not be allowed if--

(A) The understated data were known by the Contractor to be understated before the as of date specified on its Certificate of Current Cost or Pricing Data; or

(B) The Government proves that the facts demonstrate that the contract price would not have increased in the amount to be offset even if the available data had been submitted before the as of date specified on its Certificate of Current Cost or Pricing Data.

(e) If any reduction in the contract price under this clause reduces the price of items for which payment was made prior to the date of the modification reflecting the price reduction, the Contractor shall be liable to and shall pay the United States at the time such overpayment is repaid

(1) Interest compounded daily, as required by 26 U.S.C. 6622, on the amount of such overpayment to be computed from the date(s) of overpayment to the Contractor to the date the Government is repaid by the Contractor at the applicable underpayment rate effective for each quarter prescribed by the Secretary of the Treasury under 26 U.S.C. 6621(a)(2); and

(2) A penalty equal to the amount of the overpayment, if the Contractor or subcontractor knowingly submitted certified cost or pricing data that were incomplete, inaccurate, or noncurrent.

(End of clause)

I-150 52.215-12 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA (DEVIATION 2022-00001) OCT/2021

(a) Before awarding any subcontract expected to exceed \$2 million, on the date of agreement on price or the date of award, whichever is later; or before pricing any subcontract modification involving a pricing adjustment expected to exceed \$2 million, the Contractor shall require the subcontractor to submit certified cost or pricing data (actually or by specific identification in writing), in accordance with Federal Acquisition Regulation (FAR) 15.408, Table 15-2 (to include any information reasonably required to explain the subcontractors estimating process such as the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data, and the nature and amount of any contingencies included in the price), unless an exception under FAR 15.403-1(b) applies. If the \$2 million threshold for submission of certified cost or pricing data is adjusted for inflation as set forth in FAR 1.109(a), then pursuant to FAR 1.109(d) the changed threshold applies throughout the remaining term of the contract, unless there is a subsequent threshold adjustment.

(b) The Contractor shall require the subcontractor to certify in substantially the form prescribed in FAR 15.406-2 that, to the best of its knowledge and belief, the data submitted under paragraph (a) of this clause were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract or subcontract modification.

(c) In each subcontract that, when entered into, exceeds \$2 million, the Contractor shall insert either--

(1) The substance of this clause, including this paragraph (c), if paragraph (a) of this clause requires submission of certified cost or pricing data for the subcontract; or

(2) The substance of the clause at 52.215-13, Subcontractor Certified Cost or Pricing Data Modifications (DEVIATION 2022-00001).

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(End of clause)

I-151 52.215-19 NOTIFICATION OF OWNERSHIP CHANGES OCT/1997

(a) The Contractor shall make the following notifications in writing:

(1) When the Contractor becomes aware that a change in its ownership has occurred, or is certain to occur, that could result in changes in the valuation of its capitalized assets in the accounting records, the Contractor shall notify the Administrative Contracting Officer (ACO) within 30 days.

(2) The Contractor shall also notify the ACO within 30 days whenever changes to asset valuations or any other cost changes have occurred or are certain to occur as a result of a change in ownership.

(b) The Contractor shall --

(1) Maintain current, accurate, and complete inventory records of assets and their costs;

(2) Provide the ACO or designated representative ready access to the records upon request;

(3) Ensure that all individual and grouped assets, their capitalized values, accumulated depreciation or amortization, and remaining useful lives are identified accurately before and after each of the Contractors ownership changes; and

(4) Retain and continue to maintain depreciation and amortization schedules based on the asset records maintained before each Contractor ownership change.

(c) The Contractor shall include the substance of this clause in all subcontracts under this contract that meet the applicability requirement of FAR 15.408(k).

(End of Clause)

I-152 52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REPRESENTATION (JAN 2025) JAN/2025
(a) Definitions. As used in this clause

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

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(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards> .

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraph (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it __ is, __ is not a small business concern under NAICS Code ____ assigned to contract number ____.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not a women-owned small business concern.

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(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __ .]

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it ___ is, ___ is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it ___ is, ___ is not a service-disabled veteran-owned small business concern.

(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it ___ is, ___ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(9) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that

(i) It ___ is, ___ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It ___ is, ___ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[Contractor to sign and date and insert authorized signer's name and title._____]

(End of clause)

I-153 52.222-19 CHILD LABOR--COOPERATION WITH AUTHORITIES AND REMEDIES (JAN 2025) JAN/2025
0(a) Applicability. This clause does not apply to the extent that the Contractor is supplying end products mined, produced, or manufactured in--

- (1) Israel, and the anticipated value of the acquisition is \$50,000 or more;
- (2) Mexico, and the anticipated value of the acquisition is \$102,280 or more; or

(3) Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Italy, Japan, Korea, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or the United Kingdom and the anticipated value of the acquisition is \$174,000 or more.

(b) Cooperation with Authorities. To enforce the laws prohibiting the manufacture or importation of products mined, produced, or manufactured by forced or indentured child labor, authorized officials may need to conduct investigations to determine whether forced or indentured child labor was used to mine, produce, or manufacture any product furnished under this contract. If the solicitation includes the provision 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products, or the equivalent at 52.212-3(i), the Contractor agrees to cooperate fully with authorized officials of the contracting agency, the Department of the Treasury, or the Department of Justice by providing reasonable access to records, documents, persons, or premises upon reasonable request by the authorized officials.

(c) Violations. The Government may impose remedies set forth in paragraph (d) for the following violations:

(1) The Contractor has submitted a false certification regarding knowledge of the use of forced or indentured child labor for listed end products.

(2) The Contractor has failed to cooperate, if required, in accordance with paragraph (b) of this clause, with an investigation of the use of forced or indentured child labor by an Inspector General, Attorney General, or the Secretary of the Treasury.

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(3) The Contractor uses forced or indentured child labor in its mining, production, or manufacturing processes.

(4) The Contractor has furnished under the contract end products or components that have been mined, produced, or manufactured wholly or in part by forced or indentured child labor. (The Government will not pursue remedies at paragraph (d)(2) or paragraph (d)(3) of this clause unless sufficient evidence indicates that the Contractor knew of the violation.)

(d) Remedies.

(1) The Contracting Officer may terminate the contract.

(2) The suspending and debarring official may suspend the Contractor in accordance with procedures in FAR subpart 9.4.

(3) The suspending and debarring official may debar the Contractor for a period not to exceed 3 years in accordance with the procedures in FAR subpart 9.4.

(End of clause)

I-154 52.222-35 EQUAL OPPORTUNITY FOR VETERANS JUN/2020
(a) Definitions. As used in this clause--

"Active duty wartime or campaign badge veteran," "Armed Forces service medal veteran," "disabled veteran," "protected veteran," "qualified disabled veteran," and "recently separated veteran" have the meanings given at Federal Acquisition Regulation (FAR) 22.1301.

(b) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

(c) Subcontracts. The Contractor shall insert the terms of this clause in subcontracts valued at or above the threshold specified in FAR 22.1303(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

I-155 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES JUN/2020
(a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1408(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

I-156 52.223-3 HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (FEB 2021) FEB/2021

(a) Hazardous material, as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (if none, insert None) Identification

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No. _____

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

- (1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to --
- (i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.
- (2) To use, duplicate, and disclose data furnished under this clause, in accordance with subparagraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.
- (3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of Clause)

I-15752.223-11OZONE-DEPLETING SUBSTANCES AND HIGH GLOBAL WARMING POTENTIALMAY/2024

HYDROFLUOROCARBONS (MAY 2024)

(a) Definitions. As used in this clause--

"Global warming potential" means how much a given mass of a chemical contributes to global warming over a given time period compared to the same mass of carbon dioxide. Carbon dioxide's global warming potential is defined as 1.0.

"High global warming potential hydrofluorocarbons" means any hydrofluorocarbons in a particular end use for which EPA's Significant New Alternatives Policy (SNAP) program has identified other acceptable alternatives that have lower global warming potential. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables of alternatives available at <https://www.epa.gov/snap/>.

"Hydrofluorocarbons" means compounds that only contain hydrogen, fluorine, and carbon.

"Ozone-depleting substance" means any substance the Environmental Protection Agency designates in 40 CFR part 82 as--

- (1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or
- (2) Class II, including, but not limited to, hydrochlorofluorocarbons.
- (b) The Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j (b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

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Warning: Contains (or manufactured with, if applicable) *_____, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(c) The Contractor shall refer to EPA's SNAP program to identify alternatives. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables available at <https://www.epa.gov/snap/> .

(End of clause)

I-158 52.234-1 INDUSTRIAL RESOURCES DEVELOPED UNDER DEFENSE PRODUCTION ACT TITLE III SEP/2016

(a) Definitions. Title III industrial resource means materials, services, processes, or manufacturing equipment (including the processes, technologies, and ancillary services for the use of such equipment) established or maintained under the authority of Title III, Defense Production Act (50 U.S.C. App. 2091-2093).

Title III project contractor means a contractor that has received assistance for the development or manufacture of an industrial resource under Title III of Defense Production Act (50 U.S.C. App. 2091-2093).

(b) The Contractor shall refer any request from a Title III project contractor for testing and qualification of a Title III industrial resource to the Contracting Officer.

(c) Upon the direction of the Contracting Officer, the Contractor shall test Title III industrial resources for qualification. The Contractor shall provide the test results to the Defense Production Act Office, Title III Program, located at Wright Patterson Air Force Base, Ohio 45433-7739.

(d) When the Contracting Officer modifies the contract to direct testing pursuant to this clause, the Government will provide the Title III industrial resource to be tested and will make an equitable adjustment in the contract for the costs of testing and qualification of the Title III industrial resource.

(e) The Contractor agrees to insert the substance of this clause, including paragraph (e), in every subcontract issued in performance of this contract.

(End of clause)

I-159 52.252-2 CLAUSES INCORPORATED BY REFERENCE FEB/1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address:

For FAR clauses: <https://www.acquisition.gov/>
For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of Clause)

I-160 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES NOV/2020

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DoD Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

I-161252.223-7001HAZARD WARNING LABELSDEC/1991

(a) Hazardous material, as used in this clause, is defined in the Hazardous Material Identification and Material Safety Data clause of this contract.

(b) The Contractor shall label the item package (unit container) of any hazardous material to be delivered under this contract in accordance with the Hazard Communication Standard (29 CFR 1910.1200 et seq). The Standard requires that the hazard warning label conform to the requirements of the standard unless the material is otherwise subject to the labeling requirements of one of the following statutes:

- (1) Federal Insecticide, Fungicide and Rodenticide Act;
- (2) Federal Food, Drug and Cosmetics Act;
- (3) Consumer Product Safety Act;
- (4) Federal Hazardous Substances Act; or
- (5) Federal Alcohol Administration Act.

(c) The Offeror shall list which hazardous material listed in the Hazardous Material Identification and Material Safety Data clause of this contract will be labeled in accordance with one of the Acts in paragraphs (b)(1) through (5) of this clause instead of the Hazard Communication Standard. Any hazardous material not listed will be interpreted to mean that a label is required in accordance with the Hazard Communication Standard.

MATERIAL (If None, Insert None.)	ACT

(d) The apparently successful Offeror agrees to submit, before award, a copy of the hazard warning label for all hazardous materials not listed in paragraph (c) of this clause. The Offeror shall submit the label with the Material Safety Data Sheet being furnished under the Hazardous Material Identification and Material Safety Data clause of this contract.

(e) The Contractor shall also comply with MIL-STD-129, Marking for Shipment and Storage (including revisions adopted during the term of this contract).

(End of clause)

I-162252.225-7013DUTY-FREE ENTRYNOV/2023

(a) Definitions. As used in this clause--

"Component," means any item supplied to the Government as part of an end product or of another component.

"Customs territory of the United States" means the 50 States, the District of Columbia, and Puerto Rico.

"Eligible product" means--

- (1) Designated country end product, as defined in the Trade Agreements (either basic or alternate) clause of this contract;
- (2) Free Trade Agreement country end product, other than a Bahraini end product, a Moroccan end product, a Panamanian end product, or a Peruvian end product, as defined in the Buy American--Free Trade Agreements--Balance of Payments Program (either basic or alternate II) clause of this contract; or
- (3) Free Trade Agreement country end product other than a Bahraini end product, Korean end product, Moroccan end product,

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Panamanian end product, or Peruvian end product, as defined in the Buy American--Free Trade Agreements--Balance of Payments Program (either alternate IV or alternate V) clause of this contract.

"Qualifying country" and "qualifying country end product" have the meanings given in the Trade Agreements clause, the Buy American and Balance of Payments Program clause, or the Buy AmericanFree Trade AgreementsBalance of Payments Program clause of this contract, basic or alternate.

(b) Except as provided in paragraph (i) of this clause, or unless supplies were imported into the customs territory of the United States before the date of this contract or the applicable subcontract, the price of this contract shall not include any amount for duty on--

- (1) End items that are eligible products or qualifying country end products;
- (2) Components (including, without limitation, raw materials and intermediate assemblies) produced or made in qualifying countries, that are to be incorporated in U.S.- made end products to be delivered under this contract; or
- (3) Other supplies for which the Contractor estimates that duty will exceed \$300 per shipment into the customs territory of the United States.

(c) The Contractor shall--

- (1) Claim duty-free entry only for supplies that the Contractor intends to deliver to the Government under this contract, either as end items or components of end items; and
- (2) Pay duty on supplies, or any portion thereof, that are diverted to nongovernmental use, other than--
 - (i) Scrap or salvage; or
 - (ii) Competitive sale made, directed, or authorized by the Contracting Officer.

(d) Except as the Contractor may otherwise agree, the Government will execute duty-free entry certificates and will afford such assistance as appropriate to obtain the duty-free entry of supplies--

- (1) For which no duty is included in the contract price in accordance with paragraph (b) of this clause; and
- (2) For which shipping documents bear the notation specified in paragraph (e) of this clause.

(e) For foreign supplies for which the Government will issue duty-free entry certificates in accordance with this clause, shipping documents submitted to Customs shall--

- (1) Consign the shipments to the appropriate--
 - (i) Military department in care of the Contractor, including the Contractor's delivery address; or
 - (ii) Military installation; and
- (2) Include the following information:
 - (i) Prime contract number and, if applicable, delivery order number.
 - (ii) Number of the subcontract for foreign supplies, if applicable.
 - (iii) Identification of the carrier.

(iv)(A) For direct shipments to a U.S. military installation, the notation: UNITED STATES GOVERNMENT, DEPARTMENT OF DEFENSE Duty-Free Entry to be claimed pursuant to Section XXII, Chapter 98, Subchapter VIII, Item 9808.00.30 of the Harmonized Tariff Schedule of the United States. Upon arrival of shipment at the appropriate port of entry, District Director of Customs, please release shipment under 19 CFR part 142 and notify Commander, Defense Contract Management Agency (DCMA), St. Louis, MO, ATTN: Duty Free Entry Team, 1222 Spruce Street, Room 9.300, St. Louis, MO 63103-2812, for execution of Customs Form 7501, 7501A, or 7506 and any required duty-free entry certificates.

(B) If the shipment will be consigned to other than a military installation, e.g., a domestic contractor's plant, the shipping document notation shall be altered to include the name and address of the contractor, agent, or broker who will notify Commander, DCMA New York, for execution of the duty-free entry certificate. (If the shipment will be consigned to a contractors plant and no duty-free

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entry certificate is required due to a trade agreement, the Contractor shall claim duty-free entry under the applicable trade agreement and shall comply with the U.S. Customs Service requirements. No notification to Commander, DCMA New York, is required.)

- (v) Gross weight in pounds (if freight is based on space tonnage, state cubic feet in addition to gross shipping weight).
- (vi) Estimated value in U.S. dollars.
- (vii) Activity address number of the contract administration office administering the prime contract, e.g., for DCMA Dayton, S3605A.
- (f) Preparation of customs forms.
 - (1)(i) Except for shipments consigned to a military installation, the Contractor shall--
 - (A) Prepare any customs forms required for the entry of foreign supplies into the customs territory of the United States in connection with this contract; and
 - (B) Submit the completed customs forms to the District Director of Customs, with a copy to DCMA NY for execution of any required duty-free entry certificates.
 - (ii) Shipments consigned directly to a military installation will be released in accordance with sections 10.101 and 10.102 of the U.S. Customs regulations.
 - (2) For shipments containing both supplies that are to be accorded duty-free entry and supplies that are not, the Contractor shall identify on the customs forms those items that are eligible for duty-free entry.
- (g) The Contractor shall--
 - (1) Prepare (if the Contractor is a foreign supplier), or shall instruct the foreign supplier to prepare, a sufficient number of copies of the bill of lading (or other shipping document) so that at least two of the copies accompanying the shipment will be available for use by the District Director of Customs at the port of entry;
 - (2) Consign the shipment as specified in paragraph (e) of this clause; and
 - (3) Mark on the exterior of all packages--
 - (i) "UNITED STATES GOVERNMENT, DEPARTMENT OF DEFENSE"; and
 - (ii) The activity address number of the contract administration office administering the prime contract.
- (h) The Contractor shall notify the Administrative Contracting Officer (ACO) in writing of any purchase of eligible products or qualifying country supplies to be accorded duty-free entry, that are to be imported into the customs territory of the United States for delivery to the Government or for incorporation in end items to be delivered to the Government. The Contractor shall furnish the notice to the ACO immediately upon award to the supplier and shall include in the notice--
 - (1) The Contractors name, address, and Commercial and Government Entity (CAGE) code;
 - (2) Prime contract number and, if applicable, delivery order number;
 - (3) Total dollar value of the prime contract or delivery order;
 - (4) Date of the last scheduled delivery under the prime contract or delivery order;
 - (5) Foreign supplier's name and address;
 - (6) Number of the subcontract for foreign supplies;
 - (7) Total dollar value of the subcontract for foreign supplies;
 - (8) Date of the last scheduled delivery under the subcontract for foreign supplies;
 - (9) List of items purchased;
 - (10) An agreement that the Contractor will pay duty on supplies, or any portion thereof, that are diverted to nongovernmental use other than--

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- (i) Scrap or salvage; or
- (ii) Competitive sale made, directed, or authorized by the Contracting Officer;
- (11) Country of origin; and
- (12) Scheduled delivery date(s).
- (i) This clause does not apply to purchases of eligible products or qualifying country supplies in connection with this contract if--
 - (1) The supplies are identical in nature to supplies purchased by the Contractor or any subcontractor in connection with its commercial business; and
 - (2) It is not economical or feasible to account for such supplies so as to ensure that the amount of the supplies for which duty-free entry is claimed does not exceed the amount purchased in connection with this contract.
- (j) Subcontracts. The Contractor shall--
 - (1) Insert the substance of this clause, including this paragraph (j), in all subcontracts for--
 - (i) Qualifying country components; or
 - (ii) Nonqualifying country components for which the Contractor estimates that duty will exceed \$200 per unit;
 - (2) Require subcontractors to include the number of this contract on all shipping documents submitted to Customs for supplies for which duty-free entry is claimed pursuant to this clause; and
 - (3) Include in applicable subcontracts--
 - (i) The name and address of the ACO for this contract;
 - (ii) The name, address, and activity address number of the contract administration office specified in this contract; and
 - (iii) The information required by paragraphs (h)(1), (2), and (3) of this clause.

(End of clause)

I-163 252.225-7061 RESTRICTION ON THE ACQUISITION OF PERSONAL PROTECTIVE EQUIPMENT AND JAN/2023
CERTAIN OTHER ITEMS FROM NON-ALLIED FOREIGN NATIONS (JAN 2023)

(a) Definitions. As used in this clause

Covered country means

- (1) The Democratic Peoples Republic of North Korea;
- (2) The Peoples Republic of China;
- (3) The Russian Federation; and
- (4) The Islamic Republic of Iran.

Covered item means an article or item of

- (1) Personal protective equipment for use in preventing spread of disease, such as by exposure to infected individuals or contamination or infection by infectious material, including
 - (i) Nitrile and vinyl gloves;
 - (ii) Surgical masks;
 - (iii) Respirator masks and powered air purifying respirators and required filters;

Name of Offeror or Contractor:

- (iv) Face shields and protective eyewear;
 - (v) Surgical and isolation gowns and head and foot coverings; or
 - (vi) Clothing; and
 - (vii) The materials and components thereof, other than sensors, electronics, or other items added to and not normally associated with such personal protective equipment or clothing; or
- (2) Sanitizing and disinfecting wipes, testing swabs, gauze, and bandages.
- (b) Restriction. The Contractor shall not deliver under this contract a covered item from a covered country (10 U.S.C. 4875).
- (c) Subcontracts. The Contractor shall insert this clause, including this paragraph (c), without alteration other than to identify the appropriate parties, in subcontracts valued above \$150,000 that are for the acquisition of covered items, including subcontracts for commercial products, including commercially available off-the-shelf items, and commercial services.

(End of clause)

I-164	252.225-7972	PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS (DEVIATION 2024-00014)	AUG/2024
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- (a) Definition. As used in this clause
Covered foreign country means any of the following:
- (1) The Peoples Republic of China.
 - (2) The Russian Federation.
 - (3) The Islamic Republic of Iran.
 - (4) The Democratic Peoples Republic of Korea.
- (b) Prohibition. In accordance with section 848 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2020 and section 817 of the NDAA for FY 2023, the Contractor shall not
- (1) Provide or use an unmanned aircraft system (UAS), or any related services or equipment, that
 - (i) Is manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;
 - (ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;
 - (iii) Uses a ground control system or operating software developed in a covered foreign country, or by an entity domiciled in a covered foreign country; or
 - (iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, a covered foreign country;
 - (2) Provide or use a system for the detection or identification of a UAS, or any related services or equipment, that is manufactured in a covered foreign country or by an entity domiciled in a covered foreign country; or
 - (3) On or after October 1, 2024, be an entity that operates equipment, as determined by the Secretary of Defense, from
 - (i) Da-Jiang Innovations, or any subsidiary or affiliate of Da-Jiang Innovations;
 - (ii) Any entity that produces or provides unmanned aircraft systems and is included on the Consolidated Screening List maintained by the International Trade Administration of the Department of Commerce (<https://www.trade.gov/consolidated-screening-list>); or
 - (iii) Any entity that produces or provides unmanned aircraft systems and
 - (A) Is domiciled in a covered foreign country; or
 - (B) Is subject to unmitigated foreign ownership, control, or influence by a covered foreign country, as determined by the Secretary of Defense in accordance with the National Industrial Security Program.
- (c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts or other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(End of clause)

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SECTION J - LIST OF ATTACHMENTS

<u>List of Addenda</u>	<u>Title</u>	<u>Date</u>	<u>Number of Pages</u>	<u>Transmitted By</u>
Exhibit A	CONTRACT DATA REQUIREMENTS LIST (CDRL) A001-A023		069	EMAIL
Attachment 0001	TECHNICAL DATA PACKAGE (TDP) - M739A1 PD/DLY FUZE		001	EMAIL
Attachment 0002	CONTRACT QUALITY ADDENDUM REQUIREMENTS		026	EMAIL
Attachment 0003	ADDITIONAL SOLICITATION AND CONTRACT REQUIREMENTS		005	EMAIL
Attachment 0004	DATA ITEM DESCRIPTION (DID) - CONTAINS 21 INDIVIDUAL DIDS		002	EMAIL
Attachment 0005	HAZARDOUS COMPONENT SAFETY DATA STATEMENT HCSDS) - CONTAINS 18 INDIVIDUAL HCSDS		001	EMAIL
Attachment 0006	AMSTA-AR FORM 3002 - CLEARANCE OF TECHNICAL INFORMATION FOR PUBLIC RELEASE		002	EMAIL
Attachment 0007	SF LLL - DISCLOSURE OF LOBBYING ACTIVITIES		002	EMAIL
Attachment 0008	NON-DISCLOSURE AGREEMENT (NDA)		001	EMAIL
Attachment 0009	DD2345 - MILITARY CRITICAL TECHNICAL DATA AGREEMENT		001	EMAIL
Attachment 0010	AMSTA-AR 1350 - TECHNICAL DATA REQUEST QUESTIONNAIRE		002	EMAIL
Attachment 0011	PRICE MATRIX - M739A1 PD/DLY FUZE		001	EMAIL
Attachment 0012	CERTIFICATE OF DESTRUCTION		001	EMAIL
Attachment 0013	PAST PERFORMANCE LETTER AND QUESTIONNAIRE		005	EMAIL

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SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the provision requires additional or unique information, then that information is provided immediately after the provision title.

	Regulatory Cite	Title	Date
K-1	252.203-7005	REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (Sep 2022)	SEP/2022
K-2	252.204-7008	COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS	OCT/2016
K-3	252.219-7000	ADVANCING SMALL BUSINESS GROWTH (JUN 2023)	JUN/2023
K-4	252.225-7055	Representation Regarding Business Operations with the Maduro Regime	MAY/2022
K-5	252.227-7017	IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2025)	JAN/2025
K-6	252.227-7028	TECHNICAL DATA OR COMPUTER SOFTWARE PREVIOUSLY DELIVERED TO THE GOVERNMENT	JUN/1995
K-7	52.204-8	ANNUAL REPRESENTATIONS AND CERTIFICATIONS (MAR 2025) (DEVIATION 2025--00003) and (DEVIATION 2025-000004)	MAR/2025

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 332993.

(2) The small business size standard is 1,500 employees.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (d) applies.

☐ (ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract

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- or fixed-price contract with economic price adjustment is contemplated, unless
- (A) The acquisition is to be made under the simplified acquisition procedures in part 13;
- (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
- (C) The solicitation is for utility services for which rates are set by law or regulation.
- (ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.
- (iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
- (iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.
- (v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-
- (A) Are not set aside for small business concerns;
- (B) Exceed the simplified acquisition threshold; and
- (C) Are for contracts that will be performed in the United States or its outlying areas.
- (vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.
- (vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
- (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
- (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (xiv) [Reserved].
- (xv) [Reserved].
- (xvi) 52.222-38, Compliance with Veterans Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
- (xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of

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biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPADesignated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

 X (i) 52.204-17, Ownership or Control of Offeror.

 (ii) 52.204-20, Predecessor of Offeror.

 (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

 (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

 (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

 (vi) 52.223-9, with its Alternate I, Estimate of Percentage of Recovered Material Content for EPADesignated Products (Alternate I only).

 (vii) 52.227-6, Royalty Information.

 (A) Basic.

 (B) Alternate I.

 (viii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov> . After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

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FAR Clause # Title Date Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

Alternate I (Mar 2023). As prescribed in 4.1202(a), substitute the following paragraph (a) for paragraph (a) of the basic provision:

(a)(1) The North American Industry Classification System (NAICS) codes and corresponding size standards for this acquisition are as follows; the categories or portions these NAICS codes are assigned to are specified elsewhere in the solicitation:

NAICS Code	Size standard

[Contracting Officer to insert NAICS codes and size standards].

(2) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce, (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(End of provision)

K-8 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATION (FEB 2024) FEB/2024
(a) Definitions. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern--

- (1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
- ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).
- (3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that--

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business

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Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program. Small business concern

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C.101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 332993.

(2) The small business size standard is 1,500 employees.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

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- (c) Representations.
- (1) The offeror represents as part of its offer that
- (i) it ? is, ? is not a small business concern; or
- (ii) It ? is, ? is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]
- (2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ? is, ? is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.
- (3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ? is, ? is not a women-owned small business concern.
- (4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it ? is, ? is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]
- (5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it ? is, ? is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]
- (6) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ? is, ? is not a veteran-owned small business concern.
- (7) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it ? is, ? is not an SDVOSB concern.
- (i) It ? is, ? is not a service-disabled veteran-owned small business concern; or
- (ii) It ? is, ? is not a service-disabled veteran-owned joint venture that complies with the requirements of 13 CFR 125.18(b)(1) and (2). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.] Each service-disabled veteran-owned small business concern participating in the joint venture shall provide representation of its service-disabled veteran-owned small business concern status.
- (8) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision]. The offeror represents as part of its offer that it ? is, ? is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]
- (9) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that
- (i) It ? is, ? is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and
- (ii) It ? is, ? is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.
- (d) Notice. Under 15 U.S.C.645(d), any person who misrepresents a firms status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-
- (1) Be punished by imposition of fine, imprisonment, or both;
- (2) Be subject to administrative remedies, including suspension and debarment; and

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(3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

K-9 252.204-7007 ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024) OCT/2024
Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

- ☐ (i) Paragraph (e) applies.
- ☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

- (i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.
- (ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.
- (iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.
- (iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.
- (v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.
- (vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations and contracts when contract performance will be in Italy.
- (vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations and contracts when contract performance will be in Spain.
- (viii) 252.247-7022, Representation of Extent of Transportation by Sea. Applies to all solicitations except those for direct purchase of ocean transportation services or those with an anticipated value at or below the simplified acquisition threshold.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:

- ☒ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.
- ☒ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.
- ☐ (iii) 252.225-7020, Trade Agreements Certificate.
- ☐ Use with Alternate I.
- ☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.
- ☒ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

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- Use with Alternate I.

Use with Alternate II.

Use with Alternate III.

Use with Alternate IV.

Use with Alternate V.
- (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

(vii) 252.232-7015, Performance-Based Payments--Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> . After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

K-10

252.215-7010

REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA (DEVIATION 2024-00007) (FEB 2024)

FEB/2024

(a) Definitions. As used in this provision

Market prices means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

Non-Government sales means sales of the supplies or services to non-'02Governmental entities for purposes other than governmental purposes.

Relevant sales data means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

Sufficient non-Government sales means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by FAR 15.404- 1(b)(2)(ii)(B).

Uncertified cost data means the subset of data other than certified cost or pricing data (see FAR 2.101) that relates to cost.

(b) Exceptions from certified cost or pricing data.

(1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs

(b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) Exception for price set by law or regulation - Identification of the law or regulation establishing the price offered. If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) Commercial item exception. For a commercial item exception, the Offeror shall submit, at a minimum, information that is adequate for evaluating the reasonableness of the price for this acquisition, including prices at which the same item or similar items have been sold in the commercial market. Such information shall include

(A) For items previously determined to be commercial, the contract

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number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For items priced based on a catalog

(1) A copy of or identification of the Offerors current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not

consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(C) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit DoD to verify the accuracy of the description;

(D) For items included on an active Federal Supply Service Multiple

Award Schedule contract, proof that an exception has been granted for the schedule item; or

(E) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.

(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.

(c) Requirements for certified cost or pricing data. This acquisition is accomplished under the authority of section 890 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2019 (Pub. L. 115-232), as amended by section 825 of the NDAA for FY 2020 (Pub. L. 116-92), section 818 of the NDAA for FY 2023 (Pub. L. 117-263), and section 841 of the NDAA for FY 2024 (Pub. L. 118-31). The intent of this pilot program

is to test the efficacy of basing price reasonableness determinations primarily on actual costs of performance for prior purchases of the same or similar products for the Department of Defense. If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) In lieu of providing complete cost or pricing data, as defined in FAR 2.101, the Offeror shall submit a subset of cost or pricing data and supporting attachments as follows: [Contracting Officer shall list the specific cost or pricing data deemed necessary to establish price reasonableness for this acquisition, and describe the required

submission format for each type of data. At a minimum, the Contracting Officer shall identify the specific prior DoD purchases of the same or similar products for which the Offeror is required to submit the actual cost of performance. The Offeror is not required to submit cost or pricing data that is not listed within this provision. If the Contracting Officer finds that additional cost or pricing data are needed in order to determine that the price is fair and reasonable, the Contracting Officer shall issue an amendment to the solicitation, revising this paragraph as needed to require the submission of the additional data.]

(2)(i) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, using the following language:

Certificate of Current Cost or Pricing Data for Acquisitions Accomplished under the Authority of Section 890 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2019, as amended by Section 825 of the NDAA for FY 2020, Section 818 of the NDAA for 2023, and Section 841 of the NDAA for FY 2024This is to certify that, to the best of my knowledge and belief, the cost or pricing data required by the provision at 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data (DEVIATION 2024-00007) of the Request for Proposal for this action, and submitted either actually or by specific identification in writing, to the Contracting Officer or to the Contracting Officer's Representative in support of _____* are accurate, complete, and current as of

_____.** This certification includes the cost or pricing data supporting any advance agreements and forward pricing rate agreements between the Offeror and the Government that are part of the proposal.

Firm _____

Signature _____

Name _____

Title _____

Date of execution***_____

*Identify the proposal involved, giving the appropriate identifying number (e.g., RFP No.).

**Insert the day, month, and year when price negotiations were concluded and price agreement was reached or, if applicable, an earlier date agreed upon between the parties that is as close as practicable to the date of agreement on price.

***Insert the day, month, and year of signing, which should be as close as practicable to the date when the price negotiations were concluded and the contract price was agreed to.

(ii) The certificate does not constitute a representation as to the accuracy of the Offerors judgment on the estimate of future costs or projections. It applies to the data upon which the judgment or estimate was based. This distinction between fact and judgment should be clearly understood. With respect to the certified cost or pricing data required by paragraphs (c)(1) or (e) of this provision (as revised by solicitation amendment, if applicable), if the Offeror had information reasonably available at the time of agreement showing that the negotiated price was not based on accurate, complete, and current data, the Offerors responsibility is not limited by any lack

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of personal knowledge of the information on the part of its negotiators.

(iii) The Contracting Officer and Offeror are encouraged to reach a prior agreement on criteria for establishing closing or cutoff dates when appropriate in order to minimize delays associated with proposal updates. Closing or cutoff dates applicable to the certified cost or pricing data required by paragraphs (c)(1) or (e) of this provision

should be included as part of the data submitted with the proposal and, before agreement on price, data should be updated by the contractor to the latest closing or cutoff dates for which the data are available. Use of cutoff dates coinciding with reports is acceptable, as certain data may not be reasonably available before normal periodic closing dates (e.g., actual indirect costs). Data within the Offerors or a subcontractors organization on matters significant to contractor management and to the Government will be treated as reasonably available, if that data was required to be submitted by paragraph (c)(1) or (e) of this provision. What is significant depends upon the circumstances of each acquisition.

(iv) Possession of a Certificate of Current Cost or Pricing Data is not a substitute for examining and analyzing the Offerors proposal.

(v) If certified cost or pricing data are requested by the Government and submitted by the Offeror, but an exception is later found to apply, the data shall not be considered certified cost or pricing data and shall not be certified in accordance with this subsection.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR 15.403-1(c)(1).

(d) Requirements for data other than certified cost or pricing data.

(1) Data other than certified cost or pricing data submitted in accordance with this provision shall include all data necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in DFARS 215.402(a)(i) and 215.404-1(b).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) The Offeror shall provide information described as follows: [Insert description of the data and the format that are required, including access to records necessary to permit an adequate evaluation of the proposed price in accordance with FAR 15.403-3].

(4) Within 10 days of a written request from the Contracting Officer for additional information to support proposal analysis, the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(5) Subcontract price evaluation.

(i) The Offeror shall obtain from subcontractors the minimum information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.

(ii) No cost information may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented, but excluding paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(e) Subcontracts.

(1) For subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4 to which the authority of the Section 890 pilot has been flowed down, in lieu of the requirements in paragraphs (a) and (b) of the clause at 52.215-12, Subcontractor Certified Cost or Pricing Data, of this solicitation, the Offeror shall require the subcontractor to submit a subset of cost or pricing data (actually or by specific identification in writing) as follows:

(i) [Contracting Officer shall add paragraphs as necessary to identify each first-tier subcontract to which the authority of the Section 890 pilot has been flowed down, and the specific certified cost or pricing data required for each subcontract. Contracting Officer shall list the specific cost or pricing data deemed necessary to determine that the price is fair and reasonable for each subcontract, and describe the required submission format for each type of data. The type and extent of data required may differ based on the dollar value of the subcontract proposal, or other appropriate considerations. At a minimum, the Contracting Officer shall identify the specific prior subcontracts awarded in support of the DoD purchases of the same or similar products for which the subcontractor is required to submit the actual cost of performance. The Contracting Officer shall specify whether the authority of the Section 890 pilot is further flowed down to any lower-tier subcontract pertaining to each first-tier subcontract. Where the pilot authority is flowed down to lower-tier subcontracts, the Contracting Officer shall describe the specific certified cost or pricing data that is to be provided by each affected lower-tier subcontractor. The subcontractor and lower tier subcontractors to which the pilot authority is flowed down are not required to submit certified cost or pricing data that is not listed within this provision. If the Contracting Officer finds that additional certified cost or pricing data are needed in order to determine that the price is fair and reasonable, the Contracting Officer shall issue an amendment to the solicitation, revising this paragraph as needed to require the submission of the additional data.]

(ii) In the event a subcontractor denies the Offeror access to the data described in paragraph (e)(1)(i) of this provision, the data may be provided directly to the Contracting Officer.

(iii) If a subcontractor is unable to provide the extent of historical actual cost experience required by paragraph (e)(1)(i), then the Offeror shall require the subcontractor to provide certified cost or pricing data in accordance with paragraph (e)(2) of this clause.

(iv) The Offeror shall require the subcontractor to certify in substantially the form prescribed in paragraph (c)(2) of this provision

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that, to the best of its knowledge and belief, the data submitted under paragraph (e)(1)(i) of this provision were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract.

(2) For subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4 to which the authority of the Section 890 pilot has not been flowed down, the Offeror shall require the subcontractor to provide certified cost or pricing data in accordance with the clause at 52.215-12, Subcontractor Certified Cost or Pricing Data, of this solicitation and shall require the subcontractor to certify in substantially the form prescribed in FAR 15.406-2 that, to the best of its knowledge and belief, the data submitted under paragraph (a) of the clause at 52.215-12 were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract.

(End of provision)

K-11 252.225-7059 PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR JUN/2023
AUTONOMOUS REGION-REPRESENTATION (JUN 2023)

(a) Definitions. Forced labor and XUAR, as used in this provision, have the meaning given in the 252.225-7060, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region, clause of this solicitation.

(b) Prohibition. DoD may not knowingly procure any products mined, produced, or manufactured wholly or in part by forced labor from XUAR or from an entity that has used labor from within or transferred from XUAR as part of any forced labor programs, as specified in paragraph (b) of the 252.225-7060, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region, clause of this solicitation.

(c) Representation. By submission of its offer, the Offeror represents that it has made a good faith effort to determine that forced labor from XUAR will not be used in the performance of a contract resulting from this solicitation.

(End of provision)

K-12 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO NOV/2021
SURVEILLANCE SERVICES OR EQUIPMENT

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Items.

(a) Definitions. As used in this provision--

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an

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entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [] will, [] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [] does, [] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

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(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

K-13 52.207-4 ECONOMIC PURCHASE QUANTITY-SUPPLIES AUG/1987

(a) Offerors are invited to state an opinion on whether the quantity(ies) of supplies on which bids, proposals or quotes are requested in this solicitation is (are) economically advantageous to the Government.

(b) Each offeror who believes that acquisitions in different quantities would be more advantageous is invited to recommend an economic purchase quantity. If different quantities are recommended, a total and a unit price must be quoted for applicable items. An economic purchase quantity is that quantity at which a significant price break occurs. If there are significant price breaks at different quantity points, this information is desired as well.

ITEM	QUANTITY	PRICE QUOTATION	TOTAL

(c) The information requested in this provision is being solicited to avoid acquisitions in disadvantageous quantities and to assist the Government in developing a data base for future acquisitions of these items. However, the Government reserves the right to amend or cancel the solicitation and resolicit with respect to any individual item in the event quotations received and the Governments requirements indicate that different quantities should be acquired.

(End of Provision)

K-14 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS OCT/2018

(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means--

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

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(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in--
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
- (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> .

(End of provision)

K-15 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS--CERTIFICATION NOV/2021
(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined at FAR 2.101.

(b) Certification. [Offeror shall check either (1) or (2).]

- _____ (1) The Offeror certifies that--
- (i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/> ; and
 - (ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/> ; or

_____ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

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(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless--

- (1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or
- (2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has--

- (i) Waived application under U.S.C. 2593e(d) or (e); or
- (ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C.2593e(b).

(e) Remedies. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

K-16 252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION MAY/2021

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. Covered defense telecommunications equipment or services, covered mission, critical technology, and substantial or essential component, as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

Name of Offeror or Contractor:

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

- (1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).
- (2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.
- (3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).
- (4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

K-17	252.225-7973	PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS--REPRESENTATION (DEVIATION 2024-00014)	AUG/2024
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(a) Definition. As used in this provision, covered foreign country has the meaning given in the 252.225-7972, Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems (DEVIATION 2024-00014), clause of this solicitation.

(b) Prohibition. Section 848 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2020 (Pub. L. 116-92) and section 817 of the NDAA for FY 2023 (Pub. L. 117-263) prohibit DoD from

(1) Using or procuring an unmanned aircraft system (UAS), or any related services or equipment, that

- (i) Is manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;
- (ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;
- (iii) Uses a ground control system or operating software developed in a covered foreign country, or by an entity domiciled in a covered foreign country; or
- (iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, a covered foreign country;

(2) Using or procuring a system for the detection or identification of a UAS, or any related services or equipment, that is manufactured in a covered foreign country or by an entity domiciled in a covered foreign country; or

(3) On or after October 1, 2024, entering into or renewing a contract with an entity that operates, as determined by the Secretary of Defense, equipment from

- (i) Da-Jiang Innovations (or any subsidiary or affiliate of Da-Jiang Innovations);
- (ii) Any entity that produces or provides unmanned aircraft systems and is included on the Consolidated Screening List maintained by the International Trade Administration of the Department of Commerce ([https://www.trade.gov/consolidated %20screening-list](https://www.trade.gov/consolidated%20screening-list)); or
- (iii) Any entity that produces or provides unmanned aircraft systems and

- (A) Is domiciled in a covered foreign country; or
- (B) Is subject to unmitigated foreign ownership, control, or influence by a covered foreign country, as determined by the Secretary of Defense in accordance with the National Industrial Security Program.

(c) Representations.

(1) By submission of its offer, the Offeror represents that

- (i) It will not provide or use a UAS, as described in paragraph (b)(1) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation; and
- (ii) It will not provide or use a system for the detection or identification of a UAS, as described in paragraph (b)(2) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation.

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(2) It is not an entity described in paragraph (b)(3) of this provision.

(End of provision)

K-18

252.239-7098

PROHIBITION ON CONTRACTING TO MAINTAIN OR ESTABLISH A COMPUTER
NETWORK UNLESS SUCH NETWORK IS DESIGNED TO BLOCK ACCESS TO CERTAIN
WEBSITES--REPRESENTATION (DEVIATION 2021-00003)

APR/2021

(a) In accordance with section 8116 of Division C of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions, none of the funds appropriated (or otherwise made available) by this or any other Act for DoD may be used to enter into a contract to maintain or establish a computer network unless such network is designed to block access to pornography websites. This prohibition does not limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities, or for any activity necessary for the national defense, including intelligence activities.

(b) Representation. By submission of its offer, the Offeror represents that it is not providing as part of its offer a proposal to maintain or establish a computer network unless such network is designed to block access to pornography websites.

(End of provision)

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SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1. PROPOSAL SUBMISSION

L.1.1 Offerors shall provide information by addressing each Factor/Subfactor in the format and sequence identified in the solicitation. The Offerors must provide information in sufficient detail to allow the Government to make a best value assessment of the Offerors capability to support the proposed response to the evaluation criteria. Proposals that do not contain the information requested in the solicitation risk being determined unacceptable by the Government. The Government will not assume the Offeror possesses any capability, understanding, or commitment not specified in the proposal. The proposal must not merely repeat the solicitation requirements but rather must provide convincing documentary evidence in support of conclusive statements of how contract requirements will be met.

L.1.2 Complete Proposals shall be valid for until 31 October 2025, as Base Contract Award is anticipated 1QFY26.

L.1.3 All questions concerning this procurement, either technical or contractual must be submitted in writing to the Contracting Officer. No direct discussion between the technical representative and a prospective Offeror shall be conducted. Questions and proposals shall be submitted to the following point of contact:

Army Contracting Command New Jersey
ACC-NJ (CCNJ-CA), Bldg. 10
ATTN: Michael Kline
Telephone: (520) 674-1381
Picatinny Arsenal, NJ 07806-5000
E-mail: Michael.j.kline56.civ@army.mil

Army Contracting Command New Jersey
ACC-NJ (CCNJ-CA), Bldg. 10
ATTN: Jennifer Hughes
Telephone: (520) 669-8546
Picatinny Arsenal, NJ 07806-5000
E-mail: Jennifer.m.hughes56.civ@army.mil

L.2 PROPOSAL SUBMISSION REQUIREMENTS

L.2.1 Electronic copies of each volume shall be submitted through the Solicitation Module of the Procurement Integrated Enterprise Environment (PIEE) suite at <https://piee.eb.mil/>. Proposals submitted by mail or hand-carried will not be evaluated. Proposals sent through proprietary or third-party File Transfer Protocol (FTP) sites or DoD SAFE will not be retrieved. It is the responsibility of the Offeror to confirm receipt of proposals. All proposals received after the exact time specified for receipt shall be treated as late submissions and will not be considered except under facts and circumstances allowed by the Federal Acquisition Regulation (FAR). For instructions on how to post an offer, please refer to the Posting Offer demo: https://pieetraining.eb.mil/wbt/sol/Posting_Offer.pdf.

L.2.2 It is the Offerors responsibility to obtain written confirmation of receipt of all electronic files of the full proposal by the ACC-NJ Contracting office. In the event that the Solicitation Module is down, the alternate method for proposal submission is via email or DoD SAFE site to: michael.j.kline56.civ@army.mil and jennifer.m.hughes54.civ@army.mil ONLY. The Offeror must obtain prior approval from the Contracting Officer to use the alternate submission method.

L.2.3 Offerors are responsible for ensuring electronic copies are virus-free and shall run an anti-virus scan before submission. Electronic copies of each volume shall be compatible with the following software products: Adobe Acrobat Reader 11 and Microsoft Office Suite 2016. Narrative portions of the proposal shall be in Adobe Acrobat portable document file (pdf) searchable text format. The Offeror shall not embed sound or video (e.g., MPEG) files into the proposal files. Electronic files shall be clearly identified for each volume, section, and item. Each volume shall be submitted electronically to the Contracting Officer and Contract Specialist via PIEE at <https://piee.eb.mil/>. Any portion of the proposal that is changed (as a result of discussions or proposal revisions) should be annotated and dated. Each volume shall begin at the top of a page and be clearly labeled with its Title and a copy number (e.g., copy 1 of 5).

L.2.4 Each paragraph should be single spaced and shall be separated by at least one blank line. A standard, 12-point minimum font size applies. Arial or New Times Roman fonts are required. Tables and illustrations may use a reduced font size no less than 8-point and may be produced in landscape mode.

L.2.5 Each volume shall be as brief as possible, consistent with complete submission. Pages that exceed the required page limitations will not be evaluated. Additional pages over the maximum allowed will be removed or not read and will not be evaluated by the Government. The page count will be made by counting the pages from left to right, consecutively. Pages that exceed the page limitation will be returned to the Offeror and will not be evaluated. Each paragraph shall be separated by at least one blank line. Annexes, documentation and attachments that are submitted by the Offeror, which are not required as part of the RFP, will count against the page limitations. If pages are printed on both sides, each side will count as a separate page. The following will not count against page limitations: volume title pages, table of contents pages, cross-referencing pages, indices, acronym lists and page dividers (used to separate proposal sections). Pages should not exceed 8-1/2 inches in width by 11 inches in length; foldout pages depicting such items as

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sketches, factory floor layouts, etc. may be used, with each fold counted as one additional page. The font used shall not be less than 10 point.

L.2.6 The following volumes of material shall be submitted:

Volume	Title	Digital Copies	Maximum Pages
I	Technical	2	100
II	Past Performance	2	25
III	Price*	2	No Page Limit
IV	Small Business Participation	2	10
V	Solicitation, Offer and Award Documents, and Certifications/Representations	2	No Page Limit

*The Offerors Pricing Matrix and any documentation that is based on or includes mathematical calculations (e.g., calculations for rental value of government property in the Offerors possession, calculations where there is the appearance of unbalanced pricing, etc.) shall be submitted in electronic, executable format utilizing Microsoft Excel. Any additional information necessary to explain the proposed pricing that does not contain mathematical calculations may be submitted in Adobe, Microsoft Word or Microsoft Excel format.

L.3 PROPOSAL FILES

L.3.1 Format. The submission shall be clearly indexed and logically assembled. Each volume shall be clearly identified and shall begin at the top of a page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date and RFP number in the header and/or footer. A Table of Contents should be created using the Table of Content feature in MS Word. All proposal volumes shall be marked with the appropriate Controlled Unclassified Information (CUI) markings. MS Word (doc) files shall use the following page setup parameters:

- Margins Top, Bottom, Left, Right 1
- Gutter 0
- From Edge Header, Footer 0.5
- Page Size, Width 8.5
- Page Size, Height 11

L.3.2 The following additional restrictions apply:

L.3.2.1 File Packaging. All of the proposal files shall be compressed (zipped) into one file entitled proposal zip using WinZip version 6.2 or later, or as separate uploads in their native format (i.e. doc, xls, ppt, etc.). **Please note self extracting exe files are not acceptable.

L.3.2.2 Content Requirement. All information shall be confined to the appropriate file. The Offeror shall confine submissions to essential matters, sufficient to define the proposal in a concise manner, to permit a complete and accurate evaluation of each proposal. Each file of the proposal shall consist of a Table of Contents, Summary Section, and the Narrative discussion. The Summary Section shall contain a brief abstract of the file. Proprietary information shall be clearly marked. The following shall be included in the Narrative discussion:

(i) VOLUME I Technical. The volume shall be organized into the following sections:

(1) Section 1 Subfactor 1 Manufacturing Plan. The Offeror shall provide a detailed Manufacturing Plan for producing and testing of the M739A1 PD/DLY Fuze to meet the requirements of the solicitation, including the monthly delivery requirement as delineated in Section F. The description shall be for the complete fuze, including Safe and Arm (S&A) Module Assemblies, explosive devices, mechanical assemblies, and fuze assemblies. This Plan shall include a description of the essential manufacturing facilities and equipment and shall demonstrate an understanding of mechanical fuzes and S&A design and manufacture. The Manufacturing Plan must be realistic and supportable. Proposals shall address, at a minimum, the following:

(a) Provide an Integrated Master Schedule (IMS) showing the schedule of events, inclusive of qualification and environmental testing by statement of work tasks, and significant milestones. Include production rates of the Safe and Arm Assembly, the Impact Delay Module, the Fuze less Booster, and the Final Fuze Assembly. Include a breakdown of the fuze in substantial detail showing specific piece-parts, sub-assemblies and components required. The contractor shall discuss parts and assemblies that have lead times in excess of 120 days.

(b) Provide a complete flow diagram of the proposed assembly line and manufacturing process for the M739A1 PD/DLY Fuze and the M739A1 S&A Module Assembly. Include the steps required for the manufacture, assembly, inspection, test, marking, and packaging as well as the sequence of operations for all major assemblies, subassemblies, and parts.

(c) Identification of essential manufacturing and test facilities, equipment and tooling. Indicate which of the facilities and equipment are not currently owned or leased by the Offeror and indicate plans for obtaining the facilities and equipment.

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(d) A listing of the proposed sub-contractors and their involvement in the manufacture of the M739A1 PD/DLY Fuze.

(2) Section 2 Subfactor 2 Quality Assurance and Critical Safety Plan. The Offeror shall provide a description of the Quality Assurance and Critical Characteristics Plan to meet the Quality Assurance requirements as defined in the solicitation. The Offeror shall describe in detail the plan that is to be used for the M739A1 PD/DLY Fuze. The Offeror shall provide as a minimum in their plan:

(a) Identification of each Safety Critical Characteristic and associated process to include each piece of equipment involved in its fabrication, assembly, inspection and test and specific process for inspection of each critical safety characteristic.

(b) Process to control Safety Critical Characteristics at the subcontract level.

(c) Identification of the Quality Management System and whether or not it meets or exceeds the requirements of ISO 9001:2015.

(d) Description of the Quality Plan for the manufacture, test and inspection of the M739A1 PD/DLY Fuze. Also describe the process that will be used to flow down all quality requirements to subcontractors and suppliers.

(e) Identification of inspection and prevention, and control of key parameters that could result in loss of performance, test failures, or reduced reliability. (e.g., frequency of inspection, Process Control/Statistical Process Control (SPC) methods, and inventory management).

(ii) VOLUME II Past Performance. This volume shall contain past performance information regarding similar contracts. This volume shall not exceed 25 pages plus five pages for each major subcontractor, excluding Past Performance Questionnaire Forms. Offerors shall submit all Government and/or commercial contracts for the prime Offeror and each major subcontractor in performance or awarded during the past three years, from the issue date of this RFP, which are relevant to the efforts required by this solicitation. Submission of the identified contracts shall be in Excel format to include contractually scheduled delivery dates, actual delivery dates, quantities and how many days over/under (i.e. early/late deliveries). Relevant efforts are defined as services/efforts that are the same as or similar to the effort (as compared to North American Industry Classification System (NAICS) code 332993) required by the RFP. Data concerning the Offeror shall be provided first, followed by each proposed major subcontractor, in alphabetical order. The Offeror shall also submit the written consent of its major subcontractors to allow the disclosure of its subcontractors past performance information to the Offeror. This volume shall be organized into the following sections:

(1) Section 1 Contract Descriptions. This section shall include the following information in the following format.

(a) Contractor/Subcontractor place of performance, CAGE Code, UEI Number, and Data Universal Numbering System (DUNS) Number. If the work was performed as a subcontractor, also provide the name of the prime contractor and Point of Contact (POC) within the prime contractor organization (name, and current address, e-mail address, and telephone and fax numbers).

(b) Government contracting activity, and current address, Procuring Contracting Officers name, e-mail address, telephone and fax numbers.

(c) Governments technical representative/Contracting Officers Representative and current email address, telephone and fax numbers.

(d) Government contract administration activity and the Administrative Contracting Officers name, and current e-mail address, telephone and fax number.

(e) Government contract administration activities Pre-Award Monitors name, and current e-mail address, telephone and fax numbers.

(f) Contract Number and, in the case of Indefinite Delivery type contracts, GSA contracts, and Blanket Purchase Agreements, include Delivery Order Numbers.

(g) Contract Type (specific type such as Fixed-Price (FP), Cost Reimbursement (CR), Time & Material (T&M), etc.). In the case of Indefinite Delivery contracts, indicate specific type (Requirements, Definite Quantity, and Indefinite Quantity) and secondary contract type (FP, CR, T&M, etc.).

(h) Awarded price/costs

(i) Final or projected final price/cost.

(j) Original delivery schedule, including dates of start and completion or work.

(k) Final or projected final, delivery schedule, including dates of start and completion of work.

(2) Section 2 Performance. Offerors shall provide a specific narrative explanation of each contract listed in Section 1, Contract Description, describing the objectives achieved and detailing how the effort is relevant to the requirement of this RFP.

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(a) For any contracts that did not/do not meet original schedule or technical performance requirements, provide a brief explanation of the reason(s) for the shortcomings and any corrective action(s) taken to avoid recurrence. The Offerors shall list each time the delivery schedule was revised and provide an explanation of why the revision was necessary. All Requests for Deviation and Requests for Waiver shall be addressed with respect to causes and corrective actions. The Offerors shall also provide copy of any Cure Notices or Show Cause Letters received on each contract listed and a description of any corrective action implemented by the Offeror or proposed subcontractor. The Offerors shall indicate if any of the contracts listed were terminated and the type and reasons for the termination.

(b) For all contracts, the Offeror shall provide data on all manufacturing warranty returns. Data shall delineate total number of warranty returns, number of Could Not Duplicate (CND), number of failures attributable to GFE component failures, and number and nature of failures attributable to the Offerors delivered product.

(3) Section 3 Subcontracts. Offerors shall provide an outline of how the effort required by the RFP will be assigned for performance within the Offerors corporate entity and among the proposed subcontractors. The information provided for the prime Offeror and each proposed major subcontractor must include the entire company name, company address, CAGE Code, UEI Number, DUNS Number and type of work to be performed by citing the applicable Government SOW subparagraph number. This includes all subcontractors who will be providing critical hardware/ services or whose subcontract is for more than 25 % of the total proposed cost/price. This section will further include written consent of major subcontractors to allow the disclosure of their subcontractors past performance information to the Offeror. In addition, letters of commitment shall be included for all major subcontractors.

(4) Section 4 New Corporate Entities. New corporate entities may submit data on prior contracts involving its offices and employees. However, in addition to the other requirements in this section, the Offeror shall discuss in detail the role performed by such persons in the prior contracts cited. Information should be included in the files described in the sections above.

(5) Past Performance Questionnaire. For all contracts identified in Section 1, Contract Descriptions, a Past Performance Questionnaire must be completed and submitted. The Offeror shall complete Part I of the Past Performance Questionnaire and e-mail the questionnaire to the Government contracting activity POC for the past/current contract for completion with Government technical input. The POCs shall be instructed to electronically complete Part II of the questionnaire and e-mail the entire questionnaire to the Contracting Office no later than the proposal due date, to michael.j.kline56.civ@army.mil and jennifer.m.hughes56.civ@army.mil. The Offeror shall e-mail to the Contracting Officer a list of all the POCs who were sent a questionnaire. The Government must receive this list no later than the proposal due date. The POC List shall be submitted in Word for Windows Table Format to include the following fields: Solicitation Number; Company Name; Contract Number; Government Agency; POC Last Name, First Name; POC Title; POC Telephone Number; POC E-mail Address; and Date E-Mail to POC (month/day).

(6) Submissions. Offerors shall provide and submit the prime contract number and all Governmental agency POCs in lieu of subcontract numbers or prime contract POCs in situations as described above.

(7) Small Business Participation Past Performance. All Offerors shall submit information substantiating the Offerors past performance in complying with FAR 52.219-8, Utilization of Small Business Concerns, maximizing opportunities for U.S. small business subcontractors. Offerors shall also provide a statement indicating whether any negative information has been reported in the past six years concerning the Offerors past compliance with FAR 52.219-8. If any such negative information has been reported, the Offeror may submit explanations or comments responding to such negative information. Offerors with no prior contracts containing FAR 52.219-8 shall certify the same.

(iii) VOLUME III Price. The volume shall be organized into the following sections:

(1) Electronic Copy. Files contained on the Volume III Price may not be password protected. The Offeror shall provide a completed Section J, Attachment 0011 Price Matrix. The Offerors Price Matrix and any documentation that is based on or includes mathematical calculations (e.g., calculations for rental value of government property in the Offerors possession, calculations where there is the appearance of unbalanced pricing, etc.) shall be submitted in electronic, executable format utilizing Microsoft Excel. Any additional information necessary to explain the proposed pricing that does not contain mathematical calculations may be submitted in Adobe, Microsoft Word or Microsoft Excel format. Electronic links are only permissible within the Price Volume. If files contain links, the links must be intact and maintained through all revisions. The Offeror shall not include pivot tables in Excel spreadsheets.

(2) Compliance. Failure to comply with the RFP requirements for Price information may result in an adverse assessment of an Offerors proposal and reduce or eliminate its chance of being selected for award. Offerors shall ensure that the information presented in this volume is consistent and correlates with the information contained in the other proposal volumes. Also, the Offeror shall ensure that the information submitted in this volume is consistent with and fully supports the amounts set forth in the SF 33 and continuation sheets.

(3) General Instructions. In accordance with Federal Acquisition Regulation (FAR) 15.402 and 15.403-1, certified cost or pricing data are not required based on the fact that adequate competition is expected for this procurement. If after receipt of proposals the Contracting Officer determines that there is insufficient information available to determine price reasonableness, the Offeror may be required to submit cost or pricing data. Information other than certified cost or pricing data may be provided in contractor format providing that sufficient information is made available. Information submitted shall be prepared following the instruction in FAR 15.403-5.

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(4) Single Offeror: Additionally, in the event that adequate competition is not obtained (i.e. single responsible Offeror), IAW DFARS 215.371-3, the Contracting Officer shall obtain additional cost or pricing data, if needed to determine a fair and reasonable price. If the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, the cost or pricing data shall be certified and the Contracting Officer shall incorporate FAR 52.215-20 entitled, Requirements for Cost or Pricing Data or Information Other Than Cost or Pricing Data, into the solicitation and request a Certificate of Current Cost or Pricing Data. The Government will evaluate the cost or pricing data when determining whether the competitive offered price is fair and reasonable utilizing price and cost analysis procedures IAW FAR 15.404-1. However, should negotiations be warranted, the negotiated price will not exceed the offered price.

(5) If no additional cost or pricing data are required to determine through cost or price analysis that the offered price from the single offeror is fair and reasonable, the Contracting Officer shall require that any cost or pricing data provided in the proposal be certified if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply.

(6) There are no page limitations for this volume. Proposal information included in this volume which is not directly related to Cost will be disregarded.

(7) The Offerors shall submit pricing in the Price Matrix for all priced CLINs, for all ordering periods, for all specified quantities. Failure to provide a price for any item/CLIN/ordering period may result in the offer not being considered for award.

(a)Production CLINs: The Offeror shall propose a Firm Fixed Price (FFP) unit price for each CLIN for all ordering periods for all specified quantities reflected in the Price Matrix Production CLINs Worksheet. The proposed unit prices for Production CLINs shall be inclusive of all fabricating, testing, inspection, packaging, and delivery of the solicited item.

(b) First Article Test (FAT) CLINs. The Offeror shall propose a Firm Fixed Price for each Initial FAT and Additional FAT (AFAT) CLIN for all ordering periods reflected in the Price Matrix FAT CLINs Tab. Failure to provide a price for all required Initial FAT and AFAT CLINs for all ordering periods may result in the offer not being considered for award.

(8) Delivery Orders will be issued in accordance with the procedures for future Delivery Orders as stated in Section H of the Solicitation/Contract.

(9) Based upon the unit prices proposed for the specified quantities for the Production CLINs, corresponding pricing curve formulae will be automatically calculated, and the formulae will be reflected in the applicable cell in the Price Matrix. A separate pricing curve will be established for every interval between two specified quantities, based upon the unit prices proposed for those quantities, and the corresponding power curve formula will be utilized to calculate a unit price for the quantities within that interval. Offerors shall not change or edit the curve formulae provided in the Price Matrix. Any alteration of the formulae for the pricing curve may result in the Offerors proposal being rejected. The power curve formula will be $Y = Ax^b$, whereby:

- Y represents the unit price to be calculated,
- A represents the T-1 value, which is the theoretical unit price for the first unit based upon the respective curve formula,
- x represents the quantity to be ordered, and
- b represents the slope for the applicable quantity curve.

(10) The resultant curve formulae will be incorporated into the awarded contract(s) and utilized on future delivery orders to calculate a unit price when quantities other than the specified quantity points are ordered.

(11) In accordance with FAR 45.202(a), the Government shall consider any potentially unfair competitive advantage that may result from an Offeror using Government property. To eliminate the competitive advantage, a rental equivalent evaluation factor shall be added to each offer which is predicated on the use of Government property already in the offerors or subcontractors possession. Offerors shall propose the per unit value of Government property for each CLIN/specified quantity in accordance with FAR 52.245-9, Use and Charges in the Price Matrix Production Govt Property and FAT Govt Property Worksheets, as applicable. If proposed, offerors shall provide detailed calculations demonstrating how the per unit rental value was derived and documentation supporting the rental charges in sufficient detail to permit verification of the rental charges and evaluation of the per unit rental value.

(12) Unbalanced Pricing. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly over or understated as indicated by the application of cost or price analysis techniques. The greatest risks associated with unbalanced pricing occur when (a) Startup work, mobilization, first articles, or first article testing are separate line items; (b) Base quantities and option quantities are separate line items; or (c) The evaluated price is the aggregate of estimated quantities to be ordered under separate line items of an indefinite-delivery contract. Offerors shall provide documentation, including data, calculations and supporting rationale, for any apparent unbalanced pricing which will be used to determine if the proposed prices are balanced.

(iv) VOLUME IV Small Business Participation. The volume shall be organized and consist of the following:

- (1) The Small Business Participation Factor Volume is comprised of a single volume. Offerors are responsible for including sufficient

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detail to permit a complete evaluation. Any information provided as part of the Small Business Participation Factor Volume may be used to correlate the evaluation of the other proposal volumes.

(2) This provision applies to every Offeror (U.S. and non-U.S.), regardless of size status or locations of working facilities or headquarters. For proposal preparation purposes, the Offeror's Small Business Participation proposals shall be consistent with any subcontracting references/identification contained elsewhere in any other Factor Volume. Percentages are calculated using proposed total contract price as calculated in accordance with D.5.b.v. This price becomes the denominator and includes first-tier subcontractors only. Offerors shall also explain their rationale as to why the percentage of small business (SB) participation being utilized for this effort is appropriate for their company. Offerors shall describe their approach and efforts undertaken to utilize SB. SB targets will be incorporated into any resulting prime contract and contractors will be required to report SB participation.

(3) All Offerors, including Offerors who are themselves U.S. small business concerns based on the NAICS code assigned to this requirement, are to identify the extent to which U.S. small business concerns will be utilized as first-tier subcontractors in the performance of this proposed contract. U.S. small business concerns are defined (1) in FAR 19.001 and (2) by the criteria and size standards in FAR 19.102 for the applicable NAICS code. U.S. small business concerns include Small Businesses (SBs), Small Disadvantaged Businesses (SDBs), Woman-Owned Small Businesses (WOSBs), HUBZone Small Businesses (HUBZone SBs), Veteran-Owned Small Businesses (VOSBs), and Service-Disabled Veteran-Owned Small Businesses (SDVOSBs).

(4) If the Offeror (to include any U.S. small business concerns who are proposing as part of a joint venture or teaming arrangement) is itself a U.S. small business concern, the Offeror's own participation as a SB, SDB, WOSB, HUBZone SB, VOSB, or SDVOSB shall be detailed in the same manner as subcontracts to first-tier U.S. small business concerns.

(5) Small Business Amounts: All Offerors shall address anticipated U.S. small business concern participation and subcontracting based on the total contract dollars proposed by the Offeror.

(6) The Offeror shall provide information for small business participation and subcontracting in a table format in accordance with the following example:

Small Business Participation Table (in Millions)			
Business Category	\$ Cost All Contracts	% of SB Participation	Cost Total SubK
SB	\$10.34	24.00%	\$10.34 of \$43.00
SDB	\$2.86	6.65%	\$2.86 of \$43.00
WOSB	\$1.55	3.60%	\$1.55 of \$43.00
HUBZone SB	\$1.08	2.50%	\$1.08 of \$43.00
VOSB	\$1.55	3.60%	\$1.55 of \$43.00
SDVOSB	\$1.46	3.40%	\$1.46 of \$43.00

(7) Guidance for filling in the above "Small Business Participation" Table:

(a) Include first-tier subcontractors only. Note that members of a joint venture may be considered the Offeror or the first-tier subcontractors, depending on the legal form of the joint venture as defined in its agreement document.

(b) If the Offeror is a U.S. small business concern, detail the extent of the Offeror participation as a U.S. small business concern in the same manner as subcontracts to first tier U.S. small business concerns.

(c) Percentages should be rounded to the nearest hundredth of a percent.

(d) Additional Guidance for particular Business Categories:

For "Contract Total Price": Include the Offeror's proposed Total Contract Price on this line.

For SB: Include U.S. small business concerns from all categories (i.e. SB, SDB, WOSB, HUBZone SB, VOSB, and SDVOSB and in the dollars and percentage on this line. The SDB, WOSB, HUBZone SB, VOSB and SDVOSB are subcategories of SB and the dollars in each of these may not add to match the total dollars in the SB line due to the following: In some cases the same dollars may be reported in more than one block (i.e., a \$10,000 subcontract to a Woman-Owned Small Business that is also a Service-Disabled Veteran-Owned Small Business should be entered on four rows: \$10,000 under SB, \$10,000 under WOSB, \$10,000 under VOSB and \$10,000 under SDVOSB). Be sure that the dollars are counted in the SB line only once and not four times (e.g. \$40,000 representing the same firm participating at \$10,000 in differing categories). Note that the SB percentage is not simply a total of the percentages of each SB subcategory and must be calculated separately as shown in the chart.

For HUBZone SB: Include only "SBA certified" HubZone SBs. Note that this is different from some of the state HUB certifications.

(8) Small Business List: All Offerors shall provide the names and CAGE codes, UEI Number of small business concerns (including the Offeror if a small business concern) who would participate in accomplishing the proposed contract; the small business classification of

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each U.S. small business concern (i.e. SB, SDB, WOSB, HUBZone SB, VOSB and SDVOSB); a short description of the specific services to be provided by each small business concern; and the estimated total dollars for each service or product.

(a) This data shall be provided in a table format in accordance with the following example:

Name of SB Concern	Cage Code	Location	SB Class	Description of Supplies or Services	Total \$ (in Millions)
ABC Co.	123XX	City, USA	SB	Wire	\$0.50
DEF Co.	XX123	City, USA	SB	Plating	\$0.75
GHI, Inc.	DD123	City, USA	SB, WOSB, VOSB	Circuit Cards	\$1.20

(b) If a small business does not have a CAGE code, UEI number, insert the word "None" in the table above. Note that during the evaluation, the Government may request that the Offeror submit a letter from the small business affirming the information provided in your proposal.

(c) For SB Classifications(s), list all SB classifications that apply to each concern in the table above.

(9) If the Offeror IS NOT a U.S. small business concern and must submit a Small Business Subcontracting Plan under the RFP in accordance with FAR 52.219-9, the Small Business Subcontracting Plan shall be consistent with the Offeror's Small Business Participation proposal information provided (recognizing that the Small Business Subcontracting Plan percentages will be different in that the percentage calculation denominator is total subcontracting amount as opposed to this Small Business Participation Factor where the percentage calculation denominator is the Offerors proposed Total Contract Price).

(10) Compliance with FAR 52.219-9.

(a) Offerors which are both: (a) other than U.S. small business concerns (as defined by the NAICS code applicable to the RFP), and (b) have had prior contracts requiring the submission of a Small Business Subcontracting Plan in accordance with FAR 52.219-9 are to:

Provide a description of their performance in complying with the requirements of FAR 52.219-9, including documentation of both their goals and their accomplishment of the goals established under subcontracting plans of prior contracts performed over the past twelve (12) months (from date of solicitation issuance). This documentation shall include Individual Subcontracting Reports (ISRs/DD Form 294s) which list both goals and accomplishments against individual or master plans. If over the last twelve (12) months from the date of RFP release, the Offeror reported accomplishments against commercial or comprehensive subcontracting plans in lieu of individual or master plans, the Offeror shall submit the plans to document the goals and the Summary Subcontract Reports (SSRs/DD Form 295s) to document the accomplishments. (Note: if the Offeror has not performed a contract over the past twelve (12) months, which included FAR 52.219-9, the Offeror shall so state).

(c) Offerors which have had prior contracts requiring a Small Business Subcontracting Plan IAW FAR 52.219-9 and provide the information requested above shall not respond to paragraph 11 below.

(d) If the reporting entity listed on a subcontracting report is different from the name of the proposing prime, provide an explanation of the legal relationship between the other entity and the proposing prime and a description of how the other entity's small business accomplishments reported are applicable to the current proposal. This explanation should include Business Name, CAGE Code, UEI Number and DUNS number of the other entity and the proposing prime.

(11) Approach to meeting FAR 52.219-8. Offerors which are either U.S. small business concerns, or other than U.S. small business concerns (as defined by the NAICS code applicable to the RFP) having had no prior contracts requiring a Small Business Subcontracting Plan in accordance with FAR 52.219-9 shall substantiate their proposed approach to meeting the requirement of FAR 52.219-8. Substantiation may include providing:

(a) A description of the Offeror's performance, over the past twelve (12) months (from date of solicitation issuance), in complying with the requirements of FAR 52.219-8 (Note: if the Offeror has not performed a contract over the past twelve (12) months (from date of solicitation issuance), which included FAR 52.219-8, the Offeror shall so state);

(b) A description and available documentation of any methods or techniques used to promote small business participation;

(c) Any listings of U.S. small business concerns who are subcontracting candidates;

(d) Internal procedures used to monitor small business participation during contract performance; and/or

(e) Any other information substantiating that the Offeror will satisfy the requirements of FAR 52.219-8.

(v) VOLUME V SOLICITATIONS, OFFER AND AWARD DOCUMENTS AND CERTIFICATIONS/REPRESENTATIONS.

Certifications and Representations Each Offeror shall complete (fill-in and signatures) the solicitation sections indicated below using

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the file (without modification to the file) provided with the RFP. An authorized official of the firm shall sign the SF 33/ SF 1449 and all certifications requiring original signature. An Acrobat PDF file shall be created to capture the signatures for submission:

- Section A: Standard Form 33 (SF 33), Solicitation, Offer and Award
- Section A, C through M Fill-ins as required (Section B is not a Fill-in as a completed Price Matrix is required)
- Section G: Contract Administration Data
- Section J: Contract Data Requirements List (DD1423)
- Section K: Completed Representations, Certifications and Other Statements of Offeror Small Business Subcontracting Plan shall be submitted in accordance with FAR 52.219-9
- Solicitation Offer and Award Documents and Certifications/Representations shall not be addressed separately from those submitted in VOLUME V SOLICITATIONS, OFFER AND AWARD DOCUMENTS AND CERTIFICATIONS /REPRESENTATIONS.
- Attachment: 0011 Pricing Matrix

*** END OF NARRATIVE L0001 ***

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the provision requires additional or unique information, then that information is provided immediately after the provision title.

	Regulatory Cite	Title	Date
L-1	52.204-7	SYSTEM FOR AWARD MANAGEMENT (NOV2024)	NOV/2024
L-2	52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING	AUG/2020
L-3	52.204-22	ALTERNATIVE LINE ITEM PROPOSAL	JAN/2017
L-4	52.207-6	SOLICITATION OF OFFERS FROM SMALL BUSINESS CONCERNS AND SMALL BUSINESS TEAMING ARRANGEMENTS OR JOINT VENTURES (MULTIPLE-AWARD CONTRACTS)(AUG 2024)	AUG/2024
L-5	52.215-16	FACILITIES CAPITAL COST OF MONEY	JUN/2003
L-6	52.215-22	LIMITATIONS ON PASS-THROUGH CHARGES -- IDENTIFICATION OF SUBCONTRACT EFFORT	OCT/2009
L-7	52.216-27	SINGLE OR MULTIPLE AWARDS	OCT/1995
L-8	52.219-31	NOTICE OF SMALL BUSINESS RESERVE	MAR/2020
L-9	252.204-7019	NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS	NOV/2023
L-10	252.204-7024	Notice on the Use of the Supplier Performance Risk System (Mar 2023)	MAR/2023
L-11	252.206-7000	DOMESTIC SOURCE RESTRICTION	AUG/2023
L-12	252.215-7008	ONLY ONE OFFER (DEC 2022)	DEC/2022
L-13	252.215-7013	SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023)	JAN/2023
L-14	252.215-7016	NOTIFICATION TO OFFERORS--POSTAWARD DEBRIEFINGS (DEC 2022)	DEC/2022
L-15	52.211-14	NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE	APR/2008

Any contract awarded as a result of this solicitation will be [] DX rated order; [X] D0 rated order; certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of Provision)

L-16	52.216-1	TYPE OF CONTRACT	APR/1984
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The Government contemplates award of a (up to two (2)) Firm Fixed Price (FFP), Indefinite Delivery, Indefinite Quantity (ID/IQ) contract(s) with five (5) One-Year Ordering Periods resulting from this solicitation.

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(End of Provision)

L-17 52.233-2 SERVICE OF PROTEST SEP/2006

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Attn: CCNJ-CA (Jennifer M. Hughes), Bldg. 10, Picatinny Arsenal, NJ 07806-5000.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

L-18 252.215-7012 REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA JAN/2018
The Offeror shall submit the cost portion of the proposal via the following electronic media: Department of Defense (DOD) Secure Access File Exchange (SAFE)

(End of provision)

L-19 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE FEB/1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of provision)

L-20 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS NOV/2020

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DoD FAR SUPPLEMENT (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

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SECTION M - EVALUATION FACTORS FOR AWARD

M.1 BASIS FOR AWARD

M.1.1 The solicitation may result in up to two (2) awards, with one award reserved for Small Business. The Government will select for award(s) the proposal(s) that is/are most advantageous and represents the best value to the Government. Best Value Subjective Trade-off procedures in accordance with FAR 15.101-1 will be utilized. The Government will weigh the relative benefits of each proposal and award will be made based on an integrated assessment of the results of the evaluation, give the appropriate consideration to the four evaluation Factors: Technical, Past Performance, Price, and Small Business Participation. The Government will weigh the relative benefits of each proposal and award(s) will be made on an integrated assessment of the results of the evaluation. In making the integrated assessment of the evaluation results, the Government will give due consideration to all of the Factors and Subfactors and their relative order of importance. For evaluation purposes, the Technical Factor is more important than the Past Performance Factor, the Past Performance Factor is more important than the Price Factor, and the Price Factor is more important than the Small Business Participation Factor. Price will be evaluated but will not be rated with a color or adjectival rating. Additionally, any offeror other than a small business offeror must have an acceptable Small Business Subcontracting Plan to receive an award in accordance with FAR 19.702(a). The Government reserves the right to make an award to other than the lowest priced Offeror, or to other than the Offeror with the highest Technical and/or Past Performance rating(s) if the Government determines that to do so would result in the best value to the Government. Also, an offer with a Past Performance rating of Limited or No Confidence shall be deemed un-awardable. The basis for award of a contract resulting from this solicitation will be the results of the evaluation factors and subfactors. This process permits trade-offs among cost or price and non-cost factors and allows the Government to accept the proposal other than the lowest price.

M.2 FACTORS AND SUBFACTORS TO BE EVALUATED

Careful, full, and impartial consideration will be given to all proposals received pursuant to the RFP. A team of Government personnel will evaluate each proposal relative to the Factors and Subfactors. The following evaluation factors and subfactors will be used to evaluate each proposal: Award will be made to the Offeror whose proposal is most advantageous to the Government based upon an integrated assessment of the evaluation factors and subfactors described below. The Government reserves the right to make award based upon the Price factor in the event that the Technical, Past Performance, and Small Business Participation evaluation results of all Offerors proposals are substantially the same. Offerors that receive a final rating of Red/Unacceptable at any Factor/Subfactor level are ineligible for award.

M.2.1 Factor 1: Technical Factor: The Technical factor is further divided into the following subfactors:

- a. Subfactor 1 - Manufacturing Plan
- b. Subfactor 2 - Quality Assurance and Critical

M.2.1.1 Subfactor 1: Manufacturing Plan and Subfactor 2: Quality Assurance and Critical Safety Plan are of equal importance. Evaluation of the Offerors proposal shall address each Technical subfactor as it applies to the Statement of Work (SOW). A detailed explanation of the criteria for the evaluation is set forth in the Evaluation Approach, Paragraph D of this section. During evaluation of each proposal, the Government will assign each Technical subfactor an adjectival rating and write a narrative evaluation reflecting the identified findings. The compilation of these subfactor adjectival ratings will form the basis of the Technical Factor rating.

M.2.2 Factor 2: Past Performance: Each Offerors past performance will be reviewed to determine relevancy and confidence assessment. The Past Performance Factor does not have any subfactors.

M.2.3 Factor 3: Price: Price will be evaluated but not rated. Adjectival ratings shall not be used for offerors Price proposals. The resulting award(s) will be an ID/IQ contract utilizing Firm-Fixed Price (FFP) delivery orders, for a total of five years. Prices proposed in Attachment 0011 - Price Matrix of the Solicitation will be utilized to compute a total evaluated price. Price reasonableness will be utilized in the evaluation of the effort. The Price Factor does not have any subfactors.

M.2.4 Factor 4: Small Business Participation: Each Offerors level and degree of commitment to utilize small business in execution of the requirement will be evaluated. The Small Business Participation Factor does not have any subfactors.

M.3 EVALUATION APPROACH

All proposals shall be evaluated by the Source Selection Team (SST).

M.3.1 The overarching evaluation approach for all factors and subfactors is as follows:

- a. Adequacy of Response. The proposal will be evaluated to determine whether the Offerors methods and approach have adequately and completely considered, defined, and satisfied the requirements specified in the RFP. The proposal will be evaluated to determine the extent to which each requirement has been addressed in the proposal in accordance with the proposal submission section of the RFP.
- b. Feasibility of Approach. The proposal will be evaluated to determine the extent to which the proposed approach is workable and the end results achievable. The proposal will be evaluated to determine the extent to which successful performance is contingent upon proven

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devices and techniques. The proposal will be evaluated to determine the extent to which the Offeror is expected to be able to successfully complete the proposed tasks and technical requirements within the required schedule.

M.3.2 The Technical factor is divided into the following subfactors:

M.3.2.1 Subfactor 1 Manufacturing Plan. The Government will evaluate the Offerors detailed Manufacturing Plan for producing and testing of the M739A1 PD/DLY Fuze to meet the requirements of the solicitation. The Government will assess the Offerors description for manufacturing the complete M739A1 PD/DLY Fuze, including S&A Module Assemblies for the M739A1 PD/DLY Fuze, explosive devices, mechanical assemblies, and fuze assemblies. The Government will evaluate the description of the essential manufacturing facilities and equipment and will determine whether or not there is an adequate understanding of mechanical fuzes and S&A design and manufacture. The Government will evaluate the Offerors Manufacturing Plan for realism and supportability. The Government will evaluate the following areas:

(a) The adequacy and completeness of the Integrated Master Schedule (IMS) showing the schedule of events, inclusive of qualification and environmental testing by SOW tasks, and significant milestones. The adequacy and feasibility of the proposed production rates of the Safe and Arm Assembly, the Impact Delay Module, the Fuze less Booster, and the Final Fuze Assembly. The Government will assess the Offerors breakdown of the M739A1 PD/DLY Fuze in substantial detail showing specific piece-parts, sub-assemblies, and components required. The Government will evaluate the Offerors discussions of parts and assemblies that have lead times in excess of 120 days.

(b) The adequacy and completeness of the flow diagram of the proposed assembly line and manufacturing process for the M739A1 PD/DLY Fuze and the M739A1 PD/DLY Fuze S&A Module Assembly, to include the steps required for manufacture, assembly, inspection, test, marking and packaging as well as the sequence of operations for all major assemblies, subassemblies, and parts.

(c) The capability of the manufacturing and test facilities, equipment and tooling to meet the Government requirements and schedule, including the monthly delivery requirement as delineated in Section F. This will include facilities and equipment that are not currently owned or leased by the Offeror and their plans for obtaining the facilities and equipment.

(d) The proposed sub-contractors and their involvement in the manufacture of the M739A1 PD/DLY Fuze.

M.3.2.2 Subfactor 2 Quality Assurance and Critical Safety Plan. The Government will evaluate the Offerors description of their Quality Assurance and Critical Characteristics Plan to meet the Quality Assurance requirements as defined in the solicitation. The Government will assess the Offerors plan that is to be used for the M739A1 PD/DLY Fuze. The Government will evaluate the following areas:

(a) The adequacy of the Safety Critical Characteristic and associated process including each piece of equipment involved in its fabrication, assembly, inspection and test and specific process for inspection of each critical safety characteristic.

(b) The adequacy of the process to control Safety Critical Characteristics at the subcontract level.

(c) The adequacy of the Quality Management System and whether or not it meets or exceeds the requirements of ISO 9001:2015.

(d) The adequacy and completeness of the Quality Plan for the manufacture, test and inspection of the M739A1 PD/DLY Fuze. The Government will also evaluate the adequacy of the Offerors process that will be used to flow down all quality requirements to subcontractors and suppliers.

(e) The adequacy of the process for inspection and prevention, and control of key parameters that could result in loss of performance, test failures, or reduced reliability. (e.g., frequency of inspection, Process Control/Statistical Process Control (SPC) methods, and inventory management).

M.3.2.3 In accordance with the Army Source Selection Supplement (AS3), Section 3.1, the Army methodology for evaluating Technical Approach and Related Risk is the Combined Technical/Risk Rating, (see Table 1 below). This methodology considers risk, in conjunction with the strengths, weaknesses, significant weaknesses, uncertainties, and deficiencies in determining technical ratings. The definitions of Technical Risk (Table 2) are included for further clarification but should not be evaluated as a separate rating.

TABLE 1 COMBINED TECHNICAL/RISK RATINGS

Color	Rating	Description
Blue	Outstanding	Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength, and risk of unsuccessful performance is low to moderate
Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation, and thus, contains one or more deficiencies,

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_____ and/or risk of unsuccessful performance is unacceptable. Proposal is unawardable.

TABLE 2 - Technical Risk Definitions

Adjectival Rating	Description
Low	Proposal may contain weakness(es) which have little potential to cause disruption of schedule, increased cost or degradation of performance. Normal contractor effort and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may potentially cause disruption of schedule, increased cost or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.
High	Proposal contains significant weakness or combination of weaknesses which is likely to cause significant disruption of schedule, increased cost or degradation of performance. Is unlikely to overcome any difficulties, even with the special contractor emphasis and close Government monitoring.
Unacceptable	Proposal contains a material failure or a combination of significant weaknesses that increases the risk of unsuccessful performance to an unacceptable level.

M.3.3 Past Performance Factor. The Government will evaluate the Offerors record of past and current performance to ascertain the probability of successfully performing the required efforts of the SOW.

\ Evaluation of past performance shall be in accordance with this plan utilizing the forms and questionnaires set forth in Appendix D.

\ The Government will focus its inquiries on the Offerors (and major subcontractors) record of performance as it relates to all solicitation requirements, including cost, schedule, performance and management of subcontractors and compliance with FAR 52.219-8, Utilization of Small Business Concerns, and FAR 52.219-9, Small Business Subcontracting Plan. For the purposes of this SSP/ Requirement, major subcontractors are defined as members of an Offerors overall team who are expected to perform 25% percent or more of the proposed effort. A significant achievement, problem, or lack of relevant data in any element of the work can become an important consideration in the evaluation process. Therefore, Offerors will be reminded to include the most recent and relevant efforts (within the past three years) in their proposal. Absent any recent and relevant past performance history or when the performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned, the Offeror will be assigned a neutral confidence rating and its proposal will not be evaluated either favorably or unfavorably on past performance. The Government may use data provided by the Offeror in its proposal and data obtained from other sources, including data in Government files or data obtained through interviews with personnel familiar with the contractor and their current and past performance under Federal, State or Local government or commercial contracts for same or similar services as compared to the NAICS 332993.

\ Offerors shall submit all Government and/or commercial contracts for the prime Offeror and each major subcontractor in performance or awarded during the past three (3) years, from the issue date of this RFP, which are relevant to the efforts required by this RFP. The Government may consider a wide array of information from a variety of sources but is not compelled to rely on all of the information available.

\ The past performance factor considers each Offerors demonstrated recent and relevant record of performance in supplying products and services that meet the contract requirements. There are three aspects to the past performance evaluation: recency, relevancy, and quality.

M.3.3.1 RECENCY: The first aspect is to evaluate the recency of the Offerors past performance. Recency is generally expressed as a time period during which past performance references are considered relevant and is critical to establishing the relevancy of past performance information.

M.3.3.2 RELEVANCY: The second aspect is to determine how relevant a recent effort accomplished by the Offeror is to the effort to be acquired through the source selection. Relevancy is not separately rated; however, the following criteria (see Table 3) will be used to establish what is relevant which shall include similarity of service/support, complexity, dollar value, contract type, and degree of subcontract/teaming.

Table 4 - Past Performance Relevancy Ratings

Rating	Definition
Very Relevant	Present/Past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires
Relevant	Present/Past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.

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Somewhat Relevant	Present/Past performance effort involved some of the scope and magnitude of effort and complexities		
	this solicitation requires.		
Not Relevant	Present/Past Performance effort involved little or none of the scope and magnitude of effort and		
	complexities this solicitation requires; or the data is not recent.		

M.3.3.3 QUALITY ASSESSMENT: The third aspect assesses the overall quality of the Offerors past performance. Documented results from Past Performance Questionnaires, interviews, CPARS, and other sources form the support and basis for this assessment.

e. Performance Confidence Assessment: Utilize the Performance Confidence Assessment (see Table 4 below) to select the most appropriate confidence level for each Offeror. Ensure the rationale for the conclusions reached are included.

TABLE 5 - Performance Confidence Assessments

Rating	Definition		
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the Government has a high		
	expectation that the Offeror will successfully perform the required effort.		
Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the Government has a reasonable		
	expectation that the Offeror will successfully perform the required effort.		
Neutral Confidence	No recent/relevant performance record is available, or the Offeror's performance record is so sparse		
	that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not		
	be evaluated favorably or unfavorably on the factor of past performance.		
Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a low expectation		
	that the Offeror will successfully perform the required effort.		
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has no expectation that		
	the Offeror will be able to successfully perform the required effort.		

M.3.4 Price Factor. Adjectival ratings shall not be used for Offerors Price proposals. The Government will fully evaluate all priced Contract Line-Item Numbers (CLINs) for all ordering periods for award. The evaluation of all ordering periods will not obligate the Government to place more than the minimum order. The Offerors Price proposal will be evaluated as follows.

a. FFP Evaluation. For a price to be fair and reasonable, it must represent a price to the Government that a prudent person would pay in the conduct of competitive business. Prices proposed in Section J, Attachment 0011 Price Matrix will be utilized to compute a total evaluated price. A price reasonableness determination will be made on the total evaluated price, using one or more of the techniques described in FAR 15.404-1. If the Government determines that adequate price competition was not obtained (i.e. single offeror) and/or if the total evaluated price cannot be deemed fair and reasonable, the Government reserves the right to request cost or pricing data and to evaluate such data utilizing the proposal analysis techniques delineated in the FAR 15.404-1 as deemed appropriate.

M.3.4.1 If an Offeror proposes the use of Government property in its possession, the total evaluated price will be adjusted to include a rental equivalent factor for each item of such property calculated in accordance with FAR 52.245-9. This adjustment will apply for the use of Government property by the Offeror as well as any subcontractor thereto. The value of the proposed Government property will be evaluated for cost realism.

b. Overall /Price Proposal Evaluation: The overall Price proposal will be evaluated for the following:

M.3.4.2 Compliance: The Price proposal submitted by the Offeror will be evaluated for compliance based upon the submission requirements contained in the Section L Instructions to the Offerors.

M.3.4.3 Unbalanced Pricing: The Offerors overall Price proposal will be evaluated for unbalanced pricing as defined in FAR 15.404-1(g). An offer may be rejected if the contracting officer determines that the lack of balance poses an unacceptable risk to the Government (see FAR 15.404-1(g)(1) through FAR 15.404-1(g)(3)).

M.3.4.4 Errors: The Offerors Price proposal will be reviewed for errors. The Offeror may be given an opportunity to clarify certain aspects of their proposal at the sole discretion of the Contracting Officer.

M.3.4.5 Total Evaluated Price: The total evaluated price will be computed by summing the weighted evaluated prices for Initial FAT and AFAT and the weighted evaluated prices from the Production CLINs, computed from the unit prices proposed in the Price Matrix, including the evaluated per unit rental value for Government property already in the Offerors (and any subcontractors) possession, when applicable. The per unit rental value adjustment for Government property shall be calculated using the same methodology as noted for the applicable CLINs detailed below. The weighted evaluated prices will be calculated as follows:

M.3.4.7 Initial FAT and Additional FAT CLINs: The evaluated quantity will be the stated quantity/lot. The evaluated quantity will be multiplied by the proposed price, including the evaluated per unit rental value to derive the evaluated amount, which will be rounded to

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the nearest hundredth (two decimal places). The evaluated amount will be multiplied by the assigned weighting to derive a weighted evaluated price, rounded to the nearest whole dollar. The weighted evaluated prices will be summed to determine the weighted evaluated price for Initial and Additional FAT.

M.3.4.8 Production CLINs: A weighted unit price for each CLIN and ordering period will be computed by multiplying the assigned weight percent by the proposed unit price for the specified quantities, including the evaluated per rental value, rounded to the nearest hundredth (two decimal places) and summing the weighted unit prices within each CLIN. The weighted unit price for each CLIN will be multiplied by the evaluated quantity, which is based on the Governments estimates, to derive the weighted evaluated price for each CLIN. The weighted evaluated price for each CLIN/ordering period will be summed to compute the weighted evaluated price for the Production CLINs.

M.3.5 Small Business Participation Factor. The Small Business Participation Factor will receive a color/adjectival rating. The Government will evaluate the extent of first-tier small business participation (in terms of the Offeror's proposed Total Contract Price) which the Offeror credibly proposes to subcontract to U.S. small business (SB) concerns (including Small Business (SB), Small Disadvantaged Businesses (SDB), Women-Owned Small Businesses (WOSB), Historically Underutilized Business Zone (HUBZone SB), Veteran-Owned Small Businesses (VOSB), and Service Disabled Veteran-Owned Small Businesses (SDVOSB) in the performance of the contract. For the purpose of this evaluation, the extent of Offeror (or joint venture partner/teaming arrangement) participation in proposed contract performance, where the Offeror is a U.S. small business concern, for North American Industry Classification System (NAICS) code 332993, will also be considered small business participation.

M.3.5.1 The evaluation will consist of the following:

\ The extent to which the proposal identifies challenging goals for participation by U.S. small business concerns and the adequacy of the rationale that support those goals (to include, as described above, the participation of the Offeror if it is a U.S. small business concern). The extent of participation of such concerns will be evaluated in terms of the percentage of the Offeror's proposed Total Contract Price.

\ An assessment of the realism, which includes strengths and weaknesses, that the Offeror will achieve the levels of small business participation identified in the proposal. This assessment will be based on an assessment of the Offeror's proposed small business participation approach and the probability that the Offeror will satisfy commitments and requirements, on the resulting MPF contract, based upon the extent of satisfaction of FAR 52.219-8 and/or FAR 52.219-9 (as applicable) commitments on prior contracts.

Color	Rating	Description
Blue	Outstanding	Proposal indicates an exceptional approach and understanding of small business objectives.
Purple	Good	Proposal indicates a thorough approach and understanding of small business objectives.
Green	Acceptable	Proposal indicates an adequate approach and understanding of small business objectives.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the small business objectives.
Red	Unacceptable	Proposal does not meet small business objectives.

M.4 DISCUSSIONS

M.4.1 GENERAL INFORMATION. In accordance with FAR 15.306(d), discussion sessions with each Offeror may be held, although the Government reserves the right to make an award without first entering into discussions. Should discussions take place, all Offerors in the competitive range will be allowed a minimum of seven (7) calendar days to submit Final Proposal Revisions.

M.4.2 DISCUSSION SCHEDULING. If discussions are conducted, the Contracting Officer will schedule the discussion sessions, and each Offeror will be notified of the time and place at least two (2) business days prior to their discussion session. Appropriate security clearances should be provided by the Offerors in sufficient time to process the requests. The Contracting Officer will provide additional instructions with the notification. The discussion sessions will take place via video teleconference or conference call in.

M.5 DETERMINATION OF RESPONSIBILITY

M.5.1 As an element of determining the responsibility of Offerors who are large businesses, the PCO will evaluate the adequacy of the Offerors Small Business Subcontracting Plan in accordance with FAR 19.705.

M.5.2 For small businesses, a Certificate of Competency may be required by the Contracting Officer in accordance with FAR 19.6.

M.5.3 A Pre-award Survey may be required by the Contracting Officer in accordance with FAR 9.106.

M.5.4 For actions over \$10M, a Pre-award Clearance by the Office of Federal Contract Compliance Programs (OFCCP) will be required in accordance with FAR 22.805(a).

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*** END OF NARRATIVE M0001 ***

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the provision requires additional or unique information, then that information is provided immediately after the provision title.